LLB · 5TH SEMESTER · OSMANIA UNIVERSITY

Civil Procedure Code & Limitation Act

The complete super notes — every topic of all five units, in the order a suit actually moves, explained simply with pictures, real-life stories, case stories and the bare act decoded.

- ✓ All 52 topics, unit-wise, in reading order
- ✓ A picture on every topic
- ✓ Real-life Indian examples
- ✓ Cases told as story → held → why it matters
- ✓ Bare-act sections decoded line by line
- ✓ ★ ratings and marks from 23 past papers
- ✓ 'How it was asked' + 'write it like this'
- ✓ Index, section finder, numbers and maxims

Unit I
The Code, the courts and the start of a suit

Unit II
Pleadings — what each side must say, and how

Unit III
The trial, interim protection and execution

Unit IV
Special suits, supplemental proceedings and the road upward

Unit V
The Limitation Act, 1963 — the law of time

Code of Civil Procedure, 1908 · Limitation Act, 1963

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How this book works

Read it like a story, revise it like a checklist

Every topic follows the same path, so after two topics your eyes know where to look. Topics are numbered in the order a civil suit actually moves — from the first question 'which court?' to the last step 'execution' — so **read them in order** and each one prepares you for the next.

? **Think first**
A question to try in your head before reading — your brain remembers answers it went looking for.

1 **In one line**
The whole topic in one highlighted sentence. Revise only these on the last day.

PIC **The picture**
Flow, tiles, checklist, ladder or side-by-side comparison — draw it in the exam.

→ **Get it — simply**
The explanation in short plain points with the sections in brackets.

§ **Bare Act**
The actual words of the key section, decoded phrase by phrase, and the sections to quote.

✎ **Real-life story**
An everyday Indian example (dashed box) — the thing you will remember in the hall.

★ **Golden rules**
The 3–5 lines to remember. Your last-minute revision.

⚖ **Case cards**
Story → Held → Why it matters. Quote the name and the one highlighted line.

? **Doubt clear**
Common confusions answered — no question is silly.

✍ **In the exam**
How it was asked before (with marks) and how to write it.

Stars and marks — as per previous year question paper analysis

Stars come from all **325 questions in 23 Osmania LLB CPC & Limitation papers (2009–2025)**. Essays and problems count double. ★★★ asked again and again · ★★☆ asked several times · ★☆☆ asked once or twice · ☆☆☆ not asked yet (read once — it helps the rest). The header of each topic shows how many papers asked it and in which form. Stars show what was asked before — not a prediction.

Part	Type	Marks each	Questions in 23 papers	How to write
A	Short note	6	168	Define → section → 3–4 points → one case → one example (about a page)
B	Essay	15	86	Intro → sections → every condition/kind → 2–3 cases → picture/table → conclusion (about three pages)
C	Problem	10	72	**Issue → Law (section) → Application to the facts → Conclusion**, with one case

A four-week plan

When	Read	Focus
Week 1	How to read a bare act + Unit I (Topics 1–13)	Jurisdiction, place of suing, parties, res judicata
Week 2	Unit II (14–23) + start Unit III	Plaint, return/rejection, set-off/counter-claim, issues
Week 3	Unit III (24–37)	Ex parte, injunctions, execution, arrest, attachment
Week 4	Units IV & V (38–52)	Government suits, appeals, review/revision, all of Limitation
Last 3 days	★★★ list, golden rules, problem solver, numbers	Pages at the end of the book

How to read a Bare Act

Two pages that make every section in this book easier

A bare act is not read like a story — it is read like a **machine**. Every section is built from the same parts, and a few small words change everything. Learn the parts and the power-words once, and you can open any section and understand it in a minute.

1 · How the two Acts are built

CPC 1908 (Act V of 1908) → **158 Sections** (the 'what' & 'where' — principles, jurisdiction) + **First Schedule: 51 Orders** (the 'how' — Rules of procedure) + **Appendices A–H** (model forms)

Limitation Act 1963 (in force 1-1-1964) → **32 Sections** (the rules — bar, extension, exclusion, fresh start) + **Schedule: 137 Articles** (Suits 1–113 · Appeals 114–117 · Applications 118–137)

2 · The parts of a provision — and what each one does

Section + heading	*'11. Res judicata.—No Court shall try...'*	The number and the topic. Cite as **S.11 CPC**.
Sub-section (1), (2)	*'80. (1) ... (2) A suit to obtain an urgent...'*	Separate rules inside one section — **S.80(2)**.
Clause (a), (b), (c)	*'(a) the defendant... (b) any of the defendants... (c) the cause of action...'*	A list — check whether joined by **'and'** (all needed) or **'or'** (any one).
Proviso	*'Provided that nothing in this rule shall apply to non-joinder of a necessary party.'*	An **exception** cut out of the main rule (O.I r.9).
Explanation	*'Explanation IV.—Any matter which might and ought to have been made...'*	**Clarifies or widens** the meaning (constructive res judicata).
Definition	*'2(2) "decree" means...' · '"suit" does not include an appeal'*	**'means'** = complete list · **'includes'** = widens the ordinary meaning.
Order and Rule	*'O.VII r.11 — The plaint shall be rejected...'*	The **First Schedule**: the step-by-step method. Cite as **O.VII r.11 CPC**.
Article (Schedule)	*'Art. 65 — For possession ... based on title — 12 years — when possession becomes adverse'*	Limitation Act Schedule: **description · period · starting point**.

3 · Twelve power-words

shall	a command — the court/party must (S.3: 'shall be dismissed').	**may**	a discretion — the court can, but need not (S.5: 'may be admitted').
No Court shall...	a total bar (S.10, S.11, S.80).	**Notwithstanding**	this provision wins over the ones it names.
Subject to	this provision gives way to the ones it names (S.3 — subject to Ss.4–24).	**Provided that**	the exception (proviso) — read it immediately after the rule.
deemed	a legal fiction — treat it as if it were (rejection of plaint = deemed decree).	**and / or**	'and' = every condition; 'or' = any one (S.19: wrong done OR defendant resides).
at any stage	no time limit (O.I r.10, O.VI r.17).	**sufficient cause**	a genuine reason, read liberally (O.IX r.13, S.5 Lim.).
reasons to be recorded	the order must show its reasons (O.XXXIX r.3).	**as far as may be**	apply with necessary changes (O.XXXII r.15).

4 · The five-question method — decode any section (worked on S.80 CPC)

WHO?	Whose power, duty or right is it?	Against the **Government** or a **public officer**.
WHEN?	What triggers it — the conditions?	For an act done in his **official capacity**.
WHAT?	What must or may be done?	**Written notice**, wait **two months**, then sue.
EXCEPT?	Proviso, explanation, sub-section?	**S.80(2)** urgent relief with leave · **S.80(3)** small defects not fatal.
SO WHAT?	Consequence if not followed / the remedy?	Suit **not maintainable** — plaint rejected (O.VII r.11(d)).

USING THE BARE ACT IN YOUR ANSWER

- ★ **Quote the key words, not the whole section** — 'No suit shall be instituted against the Government … until the expiration of two months …'.
- ★ **Break it into conditions** and number them — examiners give a mark for each.
- ★ **Always read the proviso and Explanations** — most Part C problems hide inside them.
- ★ **Cite exactly:** S.11 Expl. IV CPC · O.XXXIX r.1 & 2 CPC · S.5 Limitation Act · Art. 65 Limitation Act.

The whole subject on one page

The journey of a civil suit — and where each topic sits on it

Which court? Topics 3–5 → Who & what claim? Topics 6–7 → File & summon Topics 8–9 → Bars Topics 10–13 → Plaint Topics 14–18 → Written statement Topics 19–21 →

Settle / issues Topics 22–23 → Hearing & evidence Topics 24–30 → Interim protection Topics 31 → Judgment & decree Topics 32 → Execution Topics 33–37 →

Appeal · review · revision Topics 43–45 → Time limits all through Topics 46–52

Special suits (Government, minors, indigent, interpleader) and arrest/attachment before judgment — Topics 38–42 — are side roads off the same journey.

Unit I · The Code, the courts and the start of a suit

- **1** Codification of civil procedure — the CPC at a glance ★☆☆
- **2** Important definitions — decree, judgment, order and others ★★★
- **3** Suits of a civil nature — jurisdiction of civil courts (S.9) ★★★
- **4** Place of suing — where to file the suit ★★★
- **5** Transfer of suits ☆☆☆
- **6** Parties to a suit — joinder, misjoinder and non-joinder ★★★
- **7** Frame of suit and cause of action ★★☆
- **8** Institution of suits ★☆☆
- **9** Summons and service of summons (including foreign summons) ★★☆
- **10** Bars to a suit — when the court must not try it ☆☆☆
- **11** Res sub judice — stay of suit (S.10) ★★★
- **12** Res judicata (S.11) ★★★
- **13** Foreign courts and foreign judgments ★☆☆

Unit II · Pleadings — what each side must say, and how

- **14** Pleadings — meaning and the basic rules ★★☆
- **15** Forms of pleading ★☆☆
- **16** The plaint — its essential particulars ★★★
- **17** Production and marking of documents with the plaint ☆☆☆
- **18** Return of plaint and rejection of plaint ★★☆
- **19** Written statement — the defendant's answer ★★☆
- **20** Set-off and counter-claim ★★★
- **21** Striking out and amendment of pleadings ★★☆
- **22** Section 89 — settlement of disputes outside the court (ADR) ☆☆☆
- **23** Framing of issues ★★☆

Unit III · The trial, interim protection and execution

- **24** Appearance of parties, examination of parties and adjournments ★☆☆
- **25** Non-appearance of parties and ex parte proceedings ★★★
- **26** Summoning and attendance of witnesses ★☆☆
- **27** Discovery, production, impounding and return of documents ☆☆☆
- **28** Examination of witnesses and admissions ★☆☆
- **29** Hearing of the suit and affidavits ★★☆
- **30** Commissions and costs ★★☆
- **31** Stay, temporary injunctions and receivers ★★★
- **32** Judgment, decree, interest and interim orders ★★☆
- **33** Execution — concept, courts and general principles ★☆☆
- **34** Powers of the executing court, S.47 and the execution procedure ★☆☆
- **35** Modes of execution — including arrest and detention ★★★
- **36** Attachment and sale in execution ★★☆
- **37** Restitution, inherent powers and other general provisions ★★☆

Unit IV · Special suits, supplemental proceedings and the road upward

- **38** Suits by or against the Government and public officers ★★★
- **39** Suits relating to public matters — public nuisance and public charities ★★☆
- **40** Suits by or against minors and persons of unsound mind ★☆☆
- **41** Suits by indigent persons and interpleader suits ★★★
- **42** Incidental and supplementary proceedings — arrest and attachment before judgment ★★★
- **43** Appeals from original decrees and second appeals ★★★
- **44** Appeals from orders and general provisions on appeals ★☆☆
- **45** Reference, review and revision ★★★

Unit V · The Limitation Act, 1963 — the law of time

- **46** Law of limitation — concept, object and the bar under S.3 ★★★
- **47** The Schedule and computing the period of limitation ★★★
- **48** Extension of the prescribed period — condonation of delay (S.5) ★★★
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UNIT I

The Code, the courts and the start of a suit

Which law? Which court? Who sues whom? What must be claimed? And what can block a suit at the very door?

The story of this unit. Meena paid a builder ₹40 lakh for a flat in Kukatpally and never got the keys. Before any judge looks at her case, five questions must be answered — and this unit answers them in that order: **(1)** what the CPC is and its key words (Topics 1–2); **(2)** which court can hear her — the right *kind* of court, in the right *place* (Topics 3–5); **(3)** whom she must sue and what she must claim (Topics 6–7); **(4)** how the suit is filed and the builder is called (Topics 8–9); **(5)** what could block her suit — a pending case, a decided case or a foreign judgment (Topics 10–13). Read in this order and the unit becomes one story.

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2 Important definitions — decree, judgment, order and others ★★★ p. 10

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UNIT I · TOPIC 1

01 Codification of civil procedure — the CPC at a glance

★☆☆ asked in 1 of 23 papers · 15-mark essay ×1

CPC 1908 (Act 5 of 1908) · S.1 · S.121–122 · First Schedule

? **Think first:** *If the Contract Act says the builder must give Meena her flat — which law tells her how to make the court force him?*

1 IN ONE LINE

Substantive law tells you what your right is; the CPC tells you **how to get that right enforced by a civil court**.

How the Code grew

- **1859** — first uniform Code
- **1877** — second Code
- **1882** — third Code
- **1908** — present Code — in force 1-1-1909
- **1976** — anti-delay amendment
- **1999/2002** — time limits, S.89
- **2015** — Commercial Courts

GET IT — SIMPLY

- Law has two halves: **substantive law** gives the right (Contract Act, TP Act); **procedural law** gives the road to enforce it. The CPC is that road for all civil disputes.
- History in one breath: Codes of **1859 → 1877 → 1882 → 1908**. The present Code is Act V of 1908, in force from **1 January 1909**.
- Big amendments: **1976** (cut delay), **1999/2002** (time limits, S.89 settlement, affidavit evidence), **2015** (Commercial Courts — strict timelines).
- Two parts: **158 sections** (the *what* and *where* — principles, jurisdiction) and **51 Orders** with Rules in the First Schedule (the *how* — step-by-step procedure).
- Only **Parliament** can change sections; **High Courts** can amend the Orders for their State (S.122).
- Spirit of the Code: procedure is the **handmaid of justice, not its mistress** (Sangram Singh).

The two halves of the Code

	Sections 1–158	First Schedule — 51 Orders
What they do	Principles, jurisdiction, powers	Step-by-step method (Rules)
Example	S.9 jurisdiction · S.11 res judicata	O.VII plaint · O.XXXIX injunction
Who amends	Only Parliament	High Courts too (S.122)

§ SECTIONS TO QUOTE

S.1 Short title; came into force on 1 January 1909; extends to the whole of India.

S.121 The Rules in the First Schedule have effect as if enacted in the body of the Code.

S.122 High Courts may annul, alter or add to the Rules for courts under their control.

S.151 Nothing in the Code limits the court's inherent power to make orders necessary for justice or to prevent abuse of process.

✎ REAL-LIFE STORY

Meena buys a flat in Kukatpally and pays ₹40 lakh, but the builder refuses to hand over possession. The **Contract Act** and the Specific Relief Act tell her she can ask for specific performance. But *where* does she file, *what* does she write, *how* is the builder called to court, *how* is evidence taken, and *how* is the final order enforced? Every one of those answers is in the **CPC**.

★ GOLDEN RULES — REMEMBER THESE

- ★ CPC = **158 sections + 51 Orders**; Act V of 1908, in force from **1-1-1909**.
- ★ Sections = *what & where* (jurisdiction, principles). Orders = *how* (procedure).
- ★ Only Parliament amends sections; High Courts can amend Orders (S.122).

⚖ Sangram Singh v Election Tribunal, Kotah

AIR 1955 SC 425

STORY A party was absent at one hearing; the question was whether he could later be allowed to participate, or whether procedural default shut him out for good.

HELD The Supreme Court said a code of procedure is designed to facilitate justice and further its ends — it is **not a penal enactment for punishment and penalties**. Procedural rules must be read so that a party is not shut out unless the law clearly requires it.

WHY IT MATTERS This is the classic quote for any answer on the *nature and object* of the CPC. Use it to show you understand procedure as a tool for justice.

⚖ Salem Advocate Bar Association v Union of India

(2005) 6 SCC 344

STORY The 1999 and 2002 amendments (time limits, S.89, affidavit evidence, limits on adjournments) were challenged as unconstitutional.

HELD The Supreme Court upheld the amendments and approved model rules for mediation and case management. It held that time limits such as the 90 days for a written statement are ordinarily to be followed, though not in a rigid way that defeats justice.

WHY IT MATTERS Shows the modern purpose of the CPC — **speedy justice**. Quote it when writing about the 1999/2002 amendments or S.89.

? DOUBT CLEAR — NO SILLY QUESTIONS

Q. If Orders are only 'rules', are they less binding than sections?
No. S.121 says the Rules in the First Schedule have effect **as if enacted in the body of the Code**. They bind like sections — only the power to amend differs.

IN THE EXAM

- **B · 15-mark** May/June 2019 — Salient features of recent CPC amendments (copy partly illegible)

Write it like this: A short note on 'Nature and scope of CPC' scores well if it has: history (1859→1908), structure (sections vs Orders), amendments (1976, 1999/2002, 2015), and one quote — Sangram Singh.

UNIT I · TOPIC 2

02 Important definitions — decree, judgment, order and others

★★★ asked in 10 of 23 papers | 6-mark note ×10 | 15-mark essay ×1 | 10-mark problem ×1

S.2(2) decree | S.2(9) judgment | S.2(14) order | S.2(11) legal representative | S.2(12) mesne profits

Think first: *The judge writes 20 pages and then one formal paragraph declaring who wins. Which part is the 'decree' and which is the 'judgment'?*

1 IN ONE LINE

A **judgment** gives the reasons, a **decree** declares the rights, and an **order** is every other formal decision of a civil court.

Where each word sits in a suit

Arguments heard → **Judgment** reasons — S.2(9) → **Decree** formal declaration — S.2(2) → **Execution** enforce the decree

GET IT — SIMPLY

- **Judgment (S.2(9))** = the judge's **reasons**.
- **Decree (S.2(2))** = the **formal declaration of rights** that conclusively settles the dispute — 5 elements: adjudication · in a suit · rights of parties · matters in controversy · conclusive.
- **Order (S.2(14))** = every **other** formal decision (injunction, receiver, adjournment).
- Kinds of decree: **preliminary** (rights decided, more work left — partition, accounts), **final**, or **partly both**.
- **Deemed decrees:** rejection of plaint · S.144 restitution. **Not decrees:** appealable orders · dismissal for default.
- Other words: decree-holder, judgment-debtor, **legal representative** (includes an intermeddler), **mesne profits** (profits of wrongful possession, but **not from the possessor's own improvements**).

Judgment · Decree · Order

	Judgment	Decree	Order
Meaning	Reasons	Declaration of rights	Any other decision
Arises in	Suit or proceeding	Only a suit (or deemed)	Any proceeding
How many	One	One (preliminary + final possible)	Many
Appeal	Not by itself	Always — S.96	Only listed orders — S.104, O.XLIII

Judgment = WHY · Decree = WHAT · Order = everything else

§ BARE ACT — READ IT LIKE THIS · S.2(2) — DECREE

> *'the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit...'*

formal expression	It must be written out formally — a passing remark is not a decree.
of an adjudication	The court must have *decided* something judicially.
conclusively determines	Final for that court — not a step on the way.
rights of the parties	About rights, not about procedure (procedure = order).
in the suit	Only a suit produces a decree — an application gives an order (except deemed decrees).
includes ... excludes	Includes rejection of plaint and S.144; excludes appealable orders and dismissal for default.

§ SECTIONS TO QUOTE

S.2(9) Judgment — the statement of the grounds of a decree or order.

S.2(11) Legal representative — represents the estate of a deceased person; includes an intermeddler.

S.2(12) Mesne profits — profits from wrongful possession, with interest, excluding profits from the possessor's improvements.

S.2(14) Order — formal expression of a decision that is not a decree.

✎ REAL-LIFE STORY

Ravi sues his brother for partition of their father's house in Secunderabad. The court first declares that each brother has a ½ share — that is a **preliminary decree**. A commissioner then divides the house physically; the court approves the division by a **final decree**. The written reasons the judge gives each time are the **judgment**. When, during the suit, the court stops the brother from selling the house, that is an **order** (temporary injunction).

★ GOLDEN RULES — REMEMBER THESE

- ★ Decree has **5 elements**: adjudication · suit · rights of parties · matters in controversy · conclusive.
- ★ Deemed decrees: **rejection of plaint** and **S.144 determination**.
- ★ Not decrees: **appealable orders** and **dismissal for default**.
- ★ Mesne profits **exclude** profits from the possessor's own improvements.

⚖ Balraj Taneja v Sunil Madan
(1999) 8 SCC 396

STORY The defendant did not file a written statement. The trial court passed a decree without discussing the case or giving reasons.

HELD The Supreme Court held that even when the defendant fails to file a written statement (O.VIII r.10), the court cannot mechanically decree the suit. A judgment must **state the points, the decision and the reasons** so the decree can be tested in appeal.

WHY IT MATTERS Perfect illustration of what a *judgment* is under S.2(9): reasons are its soul. Cite it whenever you distinguish judgment from decree.

⚖ Phoolchand v Gopal Lal
AIR 1967 SC 1470

STORY In a partition suit, after a preliminary decree, one of the parties died and the shares changed. The question was whether a second preliminary decree could be passed.

HELD The Court held that nothing in the CPC prohibits **more than one preliminary decree** in a partition suit when circumstances change before the final decree.

WHY IT MATTERS The leading case on preliminary decrees — useful in any question on 'kinds of decree'.

IN THE EXAM

- **C · 10-mark** 2014 — "A" is one of the partner of Construction Firm "B". He filed a suit for dissolution of the firm and renderance of accounts and claimed 50% share....
- **B · 15-mark** May/June 2010 (backlog) — Distinguish judgment and decree

Write it like this: 'Distinguish judgment, decree and order' is a favourite Part A/B question. A three-column table plus the two exclusions from 'decree' gets full marks.

UNIT I · TOPIC 3

03 Suits of a civil nature — jurisdiction of civil courts (S.9)

★★★ **asked in 10 of 23 papers** | 6-mark note ×5 | 15-mark essay ×5 | 10-mark problem ×3

S.3 | S.9 | Explanations I & II | S.6 pecuniary | S.15

Think first: *A temple priest is removed from office; a man is not invited to the front row of a festival. Which of the two can go to a civil court?*

1 IN ONE LINE

Every civil court can try **all suits of a civil nature** unless their cognizance is barred — expressly or by necessary implication.

The two-step S.9 test

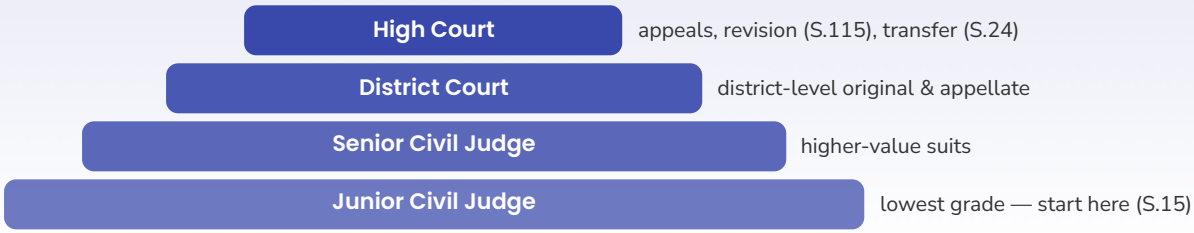
Can a civil court hear it?

Step 1 — civil right?	Step 2 — any statute bars it?	Yes → civil court
Property, office, money, status → **yes**. Mere honour, caste dinner, rite → **no**.	Express ('no civil court shall...') or implied (special Act with its own full remedy).	No bar + civil right = **S.9 jurisdiction**.

GET IT — SIMPLY

- **Jurisdiction** = the court's power to decide. Three faces: **territorial** (where), **pecuniary** (how much), **subject-matter** (what kind).
- Other kinds (short note!): original / appellate · exclusive / concurrent · general / special.
- **S.9:** civil courts try **every suit of a civil nature** unless barred **expressly** or by **necessary implication**.
- 'Civil nature' = the main question is a **civil right** — property, office, money, status. Pure religious rites, caste dinners, social honours are not.
- **Expl. I:** a right to property or **office** is civil even if it depends on religious rites. **Expl. II:** fees or no fees, it is still civil.
- Bar is **never lightly inferred** (Dhulabhai). A decree without subject-matter jurisdiction is a **nullity**; territorial/pecuniary defects are curable (S.21).
- **S.3** ladder: Junior Civil Judge → Senior Civil Judge → District Court → High Court.

Ladder of civil courts in Telangana (S.3)



BARE ACT — READ IT LIKE THIS · S.9

> *'The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred.'*

shall … have jurisdiction	A command — jurisdiction is the rule, exclusion the exception.
all suits of a civil nature	Any dispute whose main question is a civil right.
expressly barred	A statute says 'no civil court shall entertain…' (e.g. SARFAESI S.34).
impliedly barred	A special Act creates a new right with its own complete remedy (e.g. Industrial Disputes Act).
Expl. I & II	Office or property + religion = still civil; fees don't matter.

SECTIONS TO QUOTE

S.3 Subordination of courts — District Court to High Court; inferior courts and Small Cause Courts to both.

S.9 Expl. I A suit for a right to property or office is civil even though it depends on religious rites or ceremonies.

S.9 Expl. II Immaterial whether fees are attached to the office or it is attached to a particular place.

S.6 Nothing gives a court jurisdiction over suits beyond its pecuniary limits.

REAL-LIFE STORY

Pujari Venkatesh is removed from a temple office that carries a monthly payment and a share of offerings. His suit to be restored to the office is a **suit of a civil nature** (Expl. I and II). But if a family member sues only because he was not invited to sit in the front row during a festival procession, that is about **social honour**, not a civil right — the civil court will not try it.

A factory worker dismissed from service wants reinstatement under the Industrial Disputes Act — his remedy is the Labour Court; the civil court's jurisdiction is **impliedly barred** for rights created by that Act.

GOLDEN RULES — REMEMBER THESE

- ★ Civil nature = a **civil right** is the main question (property, office, money, status).
- ★ Religious office with or without fees → still civil (Expl. I & II).
- ★ Bar must be **express or by necessary implication**; never lightly inferred (Dhulabhai).
- ★ Caste questions, social honours, pure religious rites → not civil.

⚖ Dhulabhai v State of Madhya Pradesh
AIR 1969 SC 78

STORY Sales tax was collected under a State Act that was later found unconstitutional. The traders sued in a civil court to get the money back; the State said the Act barred civil suits.

HELD Hidayatullah CJ laid down **seven principles** on exclusion of civil court jurisdiction: where the statute gives finality to orders of special tribunals, civil court jurisdiction is excluded only if those tribunals provide an adequate remedy; a challenge to the constitutionality of the Act itself can be brought in a civil court; exclusion is not readily inferred.

WHY IT MATTERS The leading authority on 'bar of civil court jurisdiction'. Mention 2–3 of the principles in any answer on S.9.

⚖ Most Rev. P.M.A. Metropolitan v Moran Mar Marthoma
1995 Supp (4) SCC 286

STORY A long-running dispute between two factions of the Malankara Church over control of churches and the right to ecclesiastical offices.

HELD The Supreme Court held that the words 'of a civil nature' are wide; **suits about religious offices and church property are civil suits** under S.9 and Explanation I. Civil courts have a duty to decide them.

WHY IT MATTERS The best case to explain **Explanation I**: religious questions become justiciable when a civil right (property or office) depends on them.

IN THE EXAM

- C · 10-mark Aug/Sept 2013 — In a suit for specific performance of sale agreement of agricultural land by 'A' to 'B', Court decides to frame incidental issue 'whether 'B' is a...
- C · 10-mark January 2018 — A suit for maintenance is filed in the Junior Civil Judge's Court. Is it maintainable?

Write it like this: Part C problem on a temple office, a caste/society expulsion or a special Act? Write: civil right? → S.9 → any bar (Dhulabhai) → conclusion.

UNIT I · TOPIC 4

04 Place of suing — where to file the suit

★★★ asked in 14 of 23 papers | 6-mark note ×11 | 10-mark problem ×9

S.15 S.16 S.17 S.18 S.19 S.20 S.21 S.21A

Think first: *Neha is defamed in Hyderabad by a reporter who lives in Vijayawada. Must she travel to Vijayawada to sue?*

IN ONE LINE

File in the **lowest court competent** to try it (S.15) — and in the right place: where the **land lies** (S.16), where the **wrong was done or the defendant lives** (S.19), or where the **defendant lives or the cause of action arose** (S.20).

Where do I sue? — three doors

What kind of suit is it?

Land / right in land	Wrong to person or movables	Contract, money, everything else
S.16 — only where the property is. Proviso: personal obedience → also where defendant lives.	**S.19** — where the wrong happened **or** where the defendant lives.	**S.20** — where the defendant lives/works **or** where the cause of action arose.

Land stays put · Wrongs give a choice · Everything else follows the defendant or the cause

GET IT — SIMPLY

- First, the **lowest competent court** (S.15) — value decides Junior/Senior Civil Judge or District Court.
- Then pick the **place** by the kind of suit:
  - **Land** (possession, partition, mortgage, rights in land) → where the **property is** (S.16). Land in two court areas → any of them (S.17).
  - **Wrong to person or movables** (accident, defamation) → where the wrong was done **or** where the defendant lives — **plaintiff's choice** (S.19).
  - **Everything else** (contracts, money) → where the defendant lives/works **or** where the cause of action arose (S.20).
- **Company:** sue at its principal office, or at the **branch** where the cause of action arose (S.20 Expl.; Patel Roadways).
- Parties can **choose** between courts that have jurisdiction, but can **never create** jurisdiction by agreement.
- Objections must come early and succeed only on **failure of justice** (S.21); no separate suit to set aside a decree on this ground (S.21A).

§ BARE ACT — READ IT LIKE THIS · S.20 (WITH EXPLANATION)

> *'...every suit shall be instituted in a Court within the local limits of whose jurisdiction — (a) the defendant ... actually and voluntarily resides, or carries on business, or personally works for gain; or (b) any of the defendants ... provided ... leave of the Court is given, or the defendants who do not reside ... acquiesce; or (c) the cause of action, wholly or in part, arises.'*

(a) the defendant resides...	Go to the defendant's home ground.
(b) any of the defendants	Several defendants: sue where one lives — but get **leave** or the others' consent.
(c) cause of action ... in part	Even a part of the bundle of facts (contract signed, payment due) gives jurisdiction.
Explanation	A company 'carries on business' at its principal office, or at a **subordinate office** for causes arising there.

§ SECTIONS TO QUOTE

S.15 Suit to be instituted in the court of the lowest grade competent to try it.

S.16 Suits for immovable property to be instituted where the property is situate; proviso — personal obedience.

S.19 Compensation for wrongs to person or movables — where wrong done or where defendant resides, at plaintiff's option.

S.21 Objections to place of suing or pecuniary jurisdiction — earliest opportunity; failure of justice.

S.21A No suit to set aside a decree on objection to place of suing.

REAL-LIFE STORY

Neha, living in Hyderabad, is defamed by a newspaper article written by a reporter in Vijayawada and published in both cities. Under **S.19** she can sue in Hyderabad (where the wrong was done — the article was read there) or in Vijayawada (where the reporter lives).

A courier company has its head office in Mumbai and a branch in Ameerpet. A parcel booked at the Ameerpet branch is lost. The customer should sue in **Hyderabad**, where the subordinate office is and the cause of action arose — not in Mumbai (S.20 Explanation, Patel Roadways).

GOLDEN RULES — REMEMBER THESE

- ★ Land → **where the land is** (S.16) — agreement cannot change it.
- ★ Wrong to person/movables → **plaintiff's choice** (S.19).
- ★ Others → **defendant's place or cause of action** (S.20).
- ★ Company with a branch where the cause arose → sue **there** (Patel Roadways).
- ★ Objections: early + **failure of justice** (S.21).

⚖ Patel Roadways Ltd v Prasad Trading Co
(1991) 4 SCC 270

STORY Goods booked with a transport company at its branch office were damaged. The consignment note said only Bombay courts (head office) would have jurisdiction; the customer sued where the branch was.

HELD The Supreme Court held that under the Explanation to S.20, where the cause of action arises at a place where the corporation has a **subordinate office**, it is **deemed to carry on business there** and only that court (not the principal-office court) has jurisdiction. The clause choosing Bombay was invalid because the Bombay court had no jurisdiction.

WHY IT MATTERS The leading case on suing a company — and on the rule that parties cannot confer jurisdiction on a court that has none.

⚖ Harshad Chiman Lal Modi v DLF Universal Ltd
(2005) 7 SCC 791

STORY A buyer filed a suit in Delhi for specific performance of an agreement for a plot in Gurgaon (Haryana), relying on a jurisdiction clause in favour of Delhi courts.

HELD Held: a suit for specific performance that requires **delivery of immovable property** falls under S.16 and must be filed where the property is situated. The 'personal obedience' proviso did not apply because possession of land had to be delivered. Parties cannot confer jurisdiction by agreement.

WHY IT MATTERS The key case on S.16 and its proviso.

IN THE EXAM

- C · 10-mark Nov/Dec 2009 — Defamatory statement made in Hyderabad by a person living in Warangal — where can the victim sue?
- C · 10-mark June/July 2011 (backlog) — Venue for a specific performance suit when the parties live in different cities

Write it like this: Part C problems on 'where to sue' have come almost every year (defamation, NI Act note, company branch, land in another town). Identify the kind of suit first, then pick S.16, 19 or 20.

UNIT I · TOPIC 5

05 Transfer of suits

★ ★ ★ not asked so far — read for understanding

S.22 S.23 S.24 S.25

Think first: *A wife living in Karimnagar is sued for divorce in Bengaluru. Who can move the case closer to her — and on what grounds?*

1 IN ONE LINE

A suit can be moved from one court to another only by a **higher court** — on a party's application or on its own.

Three levels of transfer

Section	Who transfers	When / scope
S.22–23	Appellate court / High Court	Defendant's option, two courts competent, before issues
S.24	High Court or District Court	Any party or suo motu, any stage, within the State
S.25	Supreme Court	From one State to another

22 = defendant's choice · 24 = within the State · 25 = across States

GET IT — SIMPLY

- **S.22** — when two courts both have jurisdiction, the **defendant** may ask for transfer, early — before issues are settled.
- **S.23** — the application goes to the common appellate court, or the High Court.
- **S.24** — **High Court or District Court**, on any party's application or **on its own (suo motu)**, at **any stage**, can transfer or withdraw a case within the State.
- **S.25** — the **Supreme Court** transfers from **one State to another**.
- Grounds: convenience of parties and witnesses · **reasonable apprehension** of injustice (not mere allegation) · avoid conflicting decisions · in family cases, the **wife's convenience**.

§ SECTIONS TO QUOTE

S.22 Defendant may apply for transfer where the suit could be filed in more than one court.

S.23 To which court the S.22 application lies.

S.24 General power of transfer and withdrawal of the High Court and District Court.

S.25 Power of the Supreme Court to transfer suits from one State to another.

REAL-LIFE STORY

After separation, Ayesha moves back to her parents in Karimnagar with her infant son. Her husband files a divorce petition in Bengaluru. Ayesha can apply to the **Supreme Court under S.25** to transfer the case to a court in Telangana — the Court usually considers the wife's difficulty in travelling with a small child.

GOLDEN RULES — REMEMBER THESE

- S.22–23: defendant's option, **before issues are settled**.
- S.24: High Court / District Court — any party or **suo motu**, any stage.
- S.25: **Supreme Court**, inter-State transfer.
- Grounds: convenience, reasonable apprehension, avoiding conflicting decisions.

⚖ Kulwinder Kaur v Kandi Friends Education Trust

(2008) 3 SCC 659

STORY A party sought transfer of a suit from one court to another under S.24, alleging inconvenience and bias.

HELD The Supreme Court summarised the grounds for transfer under S.24: balance of convenience, convenience of parties and witnesses, a **reasonable apprehension** in the mind of the party that he will not get justice, issues of law or fact common to proceedings in different courts, and the possibility of conflicting judgments. The power must be used sparingly and not on mere allegations.

WHY IT MATTERS The case that gives you the list of grounds for transfer.

⚖ Sumita Singh v Kumar Sanjay

(2001) 10 SCC 41

STORY A wife sought transfer of a matrimonial case filed by her husband in another State.

HELD The Court allowed the transfer, observing that in matrimonial matters it is the **wife's convenience** that must be looked at.

WHY IT MATTERS Shows how S.25 is used in family disputes across States.

IN THE EXAM

Write it like this: Short note 'Transfer of suits' = the three-row table + grounds from Kulwinder Kaur.

UNIT I · TOPIC 6

06 Parties to a suit — joinder, misjoinder and non-joinder

★★★ asked in 10 of 23 papers | 6-mark note ×6 | 15-mark essay ×2 | 10-mark problem ×6

O.I r.1, 3, 8, 9, 10, 13 | O.XXII (death of parties)

Think first: *Salma files for partition of her father's land but forgets her married sister. Will the suit survive?*

1 IN ONE LINE

Bring in everyone you need a relief against; leave out those you don't. A suit fails for **non-joinder of a necessary party** — not for other mistakes about parties.

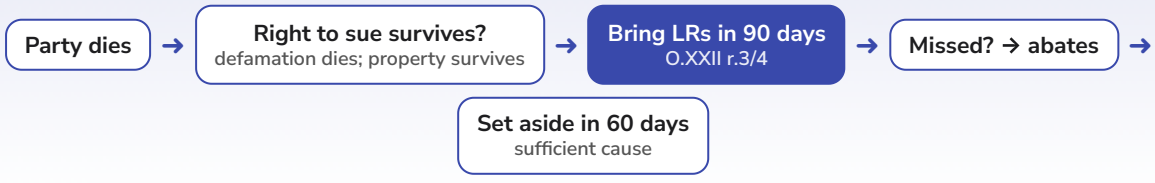
Necessary v proper party

	Necessary party	Proper party
Relief against him?	Yes	Not necessarily
Decree without him?	Not effective	Possible, but incomplete
Left out → ?	**Suit fails** (r.9 proviso)	Suit goes on
Example	Co-sharer in partition	Tenant in a sale suit

GET IT — SIMPLY

- Join plaintiffs/defendants together when the claim comes from the **same transaction and** raises a **common question** (O.I r.1, 3).
- **Necessary party** = relief claimed against him **and** no effective decree without him. **Proper party** = helps the court decide completely (Kasturi).
- **O.I r.9:** a suit is **not defeated** by misjoinder or non-joinder — **except non-joinder of a necessary party**.
- **O.I r.10:** the court may add or strike out parties at any stage; the plaintiff is **dominus litis** (master of his suit) but cannot stop the court adding a necessary party.
- **Representative suit (O.I r.8):** same interest + court's **permission** + **notice** to all → decree binds everyone.
- Objections to parties — at the earliest stage (r.13).
- **Death (O.XXII):** suit survives if the **right to sue survives**; bring legal representatives in **90 days**, else it **abates**; set aside abatement in **60 days**. Personal suits (defamation) die with the person.

Death of a party — O.XXII



§ BARE ACT — READ IT LIKE THIS · O.I R.9

> *'No suit shall be defeated by reason of the misjoinder or non-joinder of parties... Provided that nothing in this rule shall apply to non-joinder of a necessary party.'*

No suit shall be defeated	Party mistakes are normally curable — the court corrects them (r.10).
misjoinder / non-joinder	Wrongly added / wrongly left out.
Provided that ...	A **proviso** cuts an exception out of the rule: leaving out a **necessary** party *is* fatal.

§ SECTIONS TO QUOTE

O.I r.1, 3 Who may be joined as plaintiffs / defendants — same transaction + common question.

O.I r.8 Representative suit with permission and notice; decree binds all represented.

O.I r.10 Court may strike out or add parties at any stage; substitution of plaintiff in bona fide mistake.

O.I r.13 Objections to be taken at the earliest possible opportunity.

O.XXII r.1, 3, 4 No abatement if right to sue survives; LRs to be brought on record within 90 days.

O.XXII r.9 Effect of abatement — no fresh suit; set aside abatement within 60 days.

✎ REAL-LIFE STORY

Fifty residents of a gated colony in Gachibowli want to stop the association from converting their children's park into a commercial hall. Instead of 50 suits, three residents file one **representative suit** under O.I r.8 with permission of the court and a newspaper notice — the decree binds all 50.

Salma sues for partition of her father's land but forgets to make her married sister a party. The sister is a co-sharer, so she is a **necessary party** — without her no effective partition decree can be passed. The court will allow Salma to add her under O.I r.10; if Salma refuses, the suit fails.

★ GOLDEN RULES — REMEMBER THESE

- ★ Two tests of a necessary party: **relief against him** + **no effective decree without him** (Kasturi).
- ★ Non-joinder of a **necessary** party is fatal; everything else is curable (r.9).
- ★ Representative suit = **same interest + permission + notice**; decree binds all.
- ★ Plaintiff is **dominus litis**, but the court can still add parties under r.10.
- ★ Death of a party: **no abatement if right survives**; LRs in **90 days**, set aside abatement in **60 days** (O.XXII).

⚖ Kasturi v Iyyamperumal
(2005) 6 SCC 733

STORY In a suit for specific performance of an agreement to sell, third parties who claimed an independent title to the land asked to be added as defendants.

HELD The Supreme Court laid down **two tests for a necessary party**: (1) there must be a right to some relief against him on the matters in the suit, and (2) no effective decree can be passed in his absence. Strangers claiming independent title are not necessary parties to a specific performance suit — the suit is only between the parties to the contract.

WHY IT MATTERS The standard definition of 'necessary party'. Quote the two tests in every answer on O.I.

⚖ Mumbai International Airport Pvt Ltd v Regency Convention Centre & Hotels
(2010) 7 SCC 417

STORY A hotel sued the airport authority. The airport operator, which had taken over airport management, sought to be added as a party.

HELD The Court explained the difference between **necessary** and **proper** parties and held that O.I r.10(2) gives the court discretion to add a party whose presence is needed to decide the real controversy — but **the plaintiff is dominus litis** (master of the suit) and cannot be forced to fight against a person he does not want to sue, unless the court thinks it necessary.

WHY IT MATTERS Use it for 'proper party' and for the *dominus litis* principle under O.I r.10.

⚖ **Chairman, Tamil Nadu Housing Board v T.N. Ganapathy**
(1990) 1 SCC 608

STORY Many allottees of houses objected to the Housing Board's demand for higher prices; one suit was filed in a representative capacity.

HELD The Court held that O.I r.8 must be read liberally; persons having a **common interest and a common grievance** can be represented in one suit, even though their individual amounts differ.

WHY IT MATTERS The leading case for representative suits under O.I r.8.

✍ **IN THE EXAM**

- C · 10-mark May/June 2010 (backlog) — Decree in a representative suit — does it bind a non-party who later sues (res judicata)?
- C · 10-mark Nov/Dec 2009 — Plaintiff suing for possession of land on title dies during the suit — effect on the suit?

Write it like this: 'Effect of non-joinder of a necessary party' has come in 2016, 2019 and 2025 papers — define, give the two Kasturi tests, then O.I r.9 proviso and r.10.

UNIT I · TOPIC 7

07 Frame of suit and cause of action

★★☆ asked in 6 of 23 papers · 6-mark note ×6

O.II r.1–4 · S.20(c) · cause of action

? **Think first:** *Arjun's tenant owes 12 months' rent, but Arjun sues for only 6 to keep it small. Can he sue for the rest later?*

1 **IN ONE LINE**

Claim the **whole of your claim in one suit**. Whatever part of the claim or relief you leave out without the court's leave is lost forever (O.II r.2).

The O.II r.2 test — three ticks

1. Second suit on the **same cause of action** as the first?
2. Plaintiff was **entitled to that relief** when he filed the first suit?
3. He **left it out** without the court's **leave**?

All three ✓ → second suit barred by O.II r.2(3) (Gurbux Singh; Virgo)

GET IT — SIMPLY

- **Cause of action** = the **bundle of facts** the plaintiff must prove to win. It decides jurisdiction (S.20(c)) and limitation.
- **O.II r.1:** frame the suit so that the whole dispute is finally decided.
- **O.II r.2 — whole-claim rule:** (1) include the **whole claim**; (2) part of a **claim** left out is **lost**; (3) a **relief** left out **without the court's leave** is lost.
- Why: a defendant must not be dragged to court twice on the same cause of action.
- Bar works only if the **cause of action is the same** — not merely the same transaction (Gurbux Singh).
- **r.3:** several causes of action may be joined; **r.4:** with a suit for land, only certain claims (mesne profits, rent arrears, etc.) can be joined.

Don't mix them up

	O.II r.2	Res judicata (S.11)
Bars	A later suit for an **omitted** claim/relief	Re-trial of a **decided** matter
Looks at	Same cause of action	Same matter in issue
Was it decided?	Not needed	Must be heard and finally decided

SECTIONS TO QUOTE

O.II r.1 Frame the suit so as to give ground for a final decision and prevent further litigation.

O.II r.3 Joinder of several causes of action against the same defendant(s).

S.20(c) A suit may be filed where the cause of action wholly or partly arises.

O.II r.2(1)–(3) Include the whole claim; omitted part or relief (without leave) cannot be sued for later.

O.II r.4 Only certain claims can be joined with a suit for recovery of immovable property.

REAL-LIFE STORY

Arjun's tenant has not paid rent for 12 months (₹15,000 a month). Arjun sues for only 6 months' rent to keep the suit small. Under O.II r.2(2) he **loses the right to sue for the other 6 months**, because both arise from the same cause of action (non-payment under the same lease).

GOLDEN RULES — REMEMBER THESE

- ★ Cause of action = **bundle of facts** the plaintiff must prove.
- ★ O.II r.2: whole **claim** in one suit; omitted **relief** only with **leave**.
- ★ Bar applies only when the **cause of action is identical** (Gurbux Singh).
- ★ r.2 bars a *later suit*; it is different from res judicata, which bars re-trial of a *decided issue*.

⚖ Gurbux Singh v Bhooralal
AIR 1964 SC 1810

STORY The plaintiff first sued for mesne profits and later filed another suit for possession of the same land. The defendant pleaded the bar of O.II r.2 without producing the first plaint.

HELD The Supreme Court held that to succeed on O.II r.2, the defendant must prove (1) the second suit is on the **same cause of action** as the first, (2) the plaintiff was entitled to more than one relief on it, and (3) he omitted the relief without leave. Since the earlier pleadings were not on record, the identity of causes of action was not proved and the plea failed.

WHY IT MATTERS The leading case on the conditions of O.II r.2 — and a lesson that the plea must be proved from the earlier plaint.

⚖ Virgo Industries (Eng.) Pvt Ltd v Venturetech Solutions Pvt Ltd
(2013) 1 SCC 625

STORY The plaintiff first sued for an injunction to stop the defendant selling property agreed to be sold to it, and later filed a second suit for specific performance of the same agreement.

HELD The Court held the second suit barred by O.II r.2(3): the relief of specific performance was available on the **same cause of action** when the first suit was filed and was omitted without leave.

WHY IT MATTERS A modern application of r.2(3) — popular in Part C problems with two successive suits.

IN THE EXAM

- A · 6-mark June/July 2011 (backlog) — Cause of action

Write it like this: Two suits on one agreement in a Part C problem? Ask: same cause of action? relief available then? leave taken? → O.II r.2(3) (Virgo Industries).

UNIT I · TOPIC 8

08 Institution of suits

★☆☆ asked in 1 of 23 papers · 15-mark essay ×1

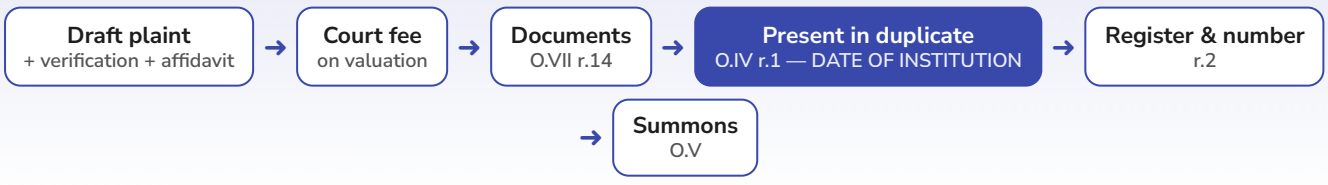
S.26 · O.IV r.1–2 · O.VII · Court Fees Act

Think first: *Meena's limitation period ends on 10 March. She files on 9 March, but the office registers the suit on 20 March. Is she late?*

1 IN ONE LINE

A suit is **instituted by presenting a plaint** (in duplicate) to the court or the officer appointed for it — the date of presentation is the date of institution.

Filing a suit — step by step



GET IT — SIMPLY

- A suit starts by **presenting a plaint** (S.26) — in **duplicate**, with an **affidavit** of facts (S.26(2), 2002).
- **O.IV r.1:** a plaint that doesn't follow O.VI and O.VII is not duly instituted. **r.2:** the suit is entered in the register and numbered.
- Filing steps: plaint + affidavit → valuation & **court fee** → documents (O.VII r.14) → process fee & copies → scrutiny → number → **summons**.
- The **date of presentation** is the date of institution — this is the date that counts for **limitation** (Lim. Act S.3(2)).
- Special starts: indigent person — when the application is presented; set-off/counter-claim — on the date it is pleaded; Government — after S.80 notice.

The whole journey of a suit (Unit II–IV follow this road)

Plaint → Summons → Written statement → S.89 + issues → Evidence → Arguments → Judgment & decree → Appeal / review / revision → Execution

SECTIONS TO QUOTE

S.26(1) Every suit instituted by presentation of a plaint.

S.26(2) Facts in the plaint to be proved by affidavit.

O.IV r.1 Plaint presented in duplicate; not duly instituted unless it complies with O.VI and O.VII.

O.IV r.2 Register of civil suits.

Lim. Act S.3(2) A suit is instituted, in an ordinary case, when the plaint is presented to the proper officer.

REAL-LIFE STORY

Lakshmi's limitation period to sue for recovery of a hand loan ends on 10 March. She presents her plaint to the court's filing section on 9 March, but because of an objection on court fee it is registered only on 20 March. Her suit is **within time** — it was *instituted* on 9 March, the date of presentation, and the defect was cured when the office returned it.

GOLDEN RULES — REMEMBER THESE

- ★ Suit begins with **presentation** of a plaint — S.26, O.IV r.1.
- ★ Plaint in **duplicate** + **affidavit** of facts (2002 amendment).
- ★ Date of presentation = date of institution — vital for **limitation**.
- ★ No leading case is needed here; examiners test the steps and the date of institution.

IN THE EXAM

- **B · 15-mark** April/May 2023 — Stages of a suit

Write it like this: Short note 'Institution of suit': S.26 + O.IV r.1–2 + the filing steps flow + the limitation link (Lim. Act S.3(2)).

UNIT I · TOPIC 9

09 Summons and service of summons (including foreign summons)

★★☆ asked in 7 of 23 papers · 6-mark note ×3 · 15-mark essay ×3 · 10-mark problem ×1

S.27 S.28 S.29 O.V r.1–30

Think first: *The defendant locks his house and hides whenever the process server comes. Can he stop the case by hiding?*

1 IN ONE LINE

No one can be decided against without being called. Summons is the **court's call to the defendant** to appear and answer the claim.

The ladder of service

Court / post / courier / e-mail r.9 → Personal service r.12 → Adult family member r.15 → Affix on door r.17 →

Substituted service r.20 — newspaper

Hiding doesn't help — r.20 reaches him through the newspaper

GET IT — SIMPLY

- **S.27:** summons is the court's call to the defendant — to be served **within 30 days of institution**; written statement within 30 days of service.
- Summons carries a copy of the plaint and asks the defendant to bring his documents.
- Modes in order: **court officer / registered post / speed post / courier / e-mail** (r.9) → **personal** (r.12) → **adult family member** (not a servant) (r.15) → **affixing** on the door if he refuses or can't be found (r.17).
- **Substituted service (r.20):** affix in court + house or **newspaper** — **as good as personal service**.
- Not served properly = no power to proceed; a faulty service is a ground to set aside an ex parte decree.
- **S.28:** defendant in another State — sent to that State's court. **S.29: foreign summons** from notified countries served **as if issued by an Indian court**.

§ SECTIONS TO QUOTE

S.27 Summons to defendants; served within 30 days of institution.

S.28 Service of summons where defendant resides in another State.

S.29 Service of foreign summonses — served as if issued by Indian courts.

O.V r.9 Delivery by court officer, registered post, courier, fax, e-mail.

O.V r.12, 15, 17 Personal service; adult family member; affixing when refused or not found.

O.V r.20 Substituted service — affixing or newspaper; as effective as personal service.

REAL-LIFE STORY

The process server goes three times to the defendant Ramesh's house in Dilsukhnagar; neighbours say he is avoiding the summons. The server affixes a copy on the door (r.17) and reports. The court, satisfied that Ramesh is keeping out of the way, orders **publication in a Telugu daily** (r.20). If Ramesh still does not appear, the court may proceed **ex parte** (O.IX r.6).

GOLDEN RULES — REMEMBER THESE

- ★ Summons within **30 days** of institution (S.27); WS within **30 days** of service.
- ★ Order of preference: **personal → family member → affixing → substituted service**.
- ★ Substituted service = **as good as personal service** (r.20(2)).
- ★ S.29: foreign summons served **as if Indian**.

⚖ Sushil Kumar Sabharwal v Gurpreet Singh
(2002) 5 SCC 377

STORY An ex parte decree was passed on the basis of a postal endorsement of 'refusal'; the defendant said he never received the summons.

HELD The Supreme Court held that courts must be **careful before accepting reports of refusal or service**, and where there is a genuine doubt whether summons was served, the ex parte decree should be set aside. Proper service is the foundation of the court's power to proceed against the defendant.

WHY IT MATTERS Connects this topic with ex parte decrees (O.IX r.13) — service is the first thing to check in a problem.

? DOUBT CLEAR — NO SILLY QUESTIONS

Q. Can the summons be given to the defendant's servant?
No. O.V r.15 allows an **adult member of the family** residing with him — a servant is not a family member.

IN THE EXAM

- **C · 10-mark** 2015 — A Civil court issued summons to a party to a civil suit. The party residing in his house started evading the receipts of summons by locking his...
- **B · 15-mark** May/June 2010 (backlog) — Modes of service of summons under the CPC

Write it like this: 'Service of foreign summons' (S.29) is a common short note — define it and contrast with S.28 (another State).

UNIT I · TOPIC 10

10 Bars to a suit — when the court must not try it

★ ★ ★ not asked so far — read for understanding

S.9 | S.10 | S.11 | S.12 | O.II r.2 | O.IX r.9 | O.XXIII r.1 | S.47 | S.80 | Lim. Act S.3

Think first: *Kiran's suit was dismissed because she didn't turn up. Can she just file the same suit again?*

1 IN ONE LINE

Some suits are blocked at the door — by a statute, by an earlier case, by the plaintiff's own earlier conduct or by limitation. Knowing the **list of bars** is half of Unit I.

Twelve bars in three boxes

Bars to a suit

Law says no	Another case says no	Own conduct says no
• S.9 statutory bar	• S.10 pending → stay	• O.II r.2 omitted claim
• S.80 no notice	• S.11 decided → bar	• O.IX r.9 default
• Limitation S.3	• S.47 execution	• O.XXIII r.1(4) withdrawal
• O.VII r.11(d)	• O.XXIII r.3A	• S.12

GET IT — SIMPLY

→ Some suits are stopped at the door. Learn the bars in **three groups**:

→ **Blocked by law:** S.9 statutory bar · S.80 no notice to Government · Limitation Act S.3 (out of time) · O.VII r.11(d) plaint shows it's barred.

→ **Blocked by another case:** S.10 — same matter **pending** → **stay**; S.11 — same matter **decided** → **bar**; S.47 — execution questions only in the executing court; O.XXIII r.3A — no suit to challenge a compromise decree.

→ **Blocked by the plaintiff's own conduct:** O.II r.2 (omitted claim); O.IX r.9 (dismissed for default — apply to restore instead); O.XXIII r.1(4) (withdrawn without leave); S.12.

→ Remember the difference: pending → **stay** (not dismissal); decided → **bar**.

§ SECTIONS TO QUOTE

S.12 Bar to further suit where the plaintiff is precluded by rules from bringing a further suit.

O.XXIII r.1(4) Withdrawal or abandonment without permission — plaintiff precluded from a fresh suit.

O.IX r.9 Decree against plaintiff by default bars a fresh suit on the same cause of action.

O.VII r.11(d) Plaint rejected where the suit appears from the plaint to be barred by any law.

✎ REAL-LIFE STORY

Kiran's first suit for recovery of ₹2 lakh is dismissed because she did not appear (O.IX r.8). She files a fresh suit on the same promissory note. The court will reject it — **O.IX r.9 bars a fresh suit**; her proper remedy was an application to set aside the dismissal for sufficient cause.

★ GOLDEN RULES — REMEMBER THESE

- ★ Pending → **stay** (S.10). Decided → **bar** (S.11).
- ★ Plaintiff's own conduct can bar a suit: O.II r.2, O.IX r.9, O.XXIII r.1(4).
- ★ S.47 and S.80 are also bars to separate suits.

✍ IN THE EXAM

Write it like this: If asked 'bars of suit', list at least six with one line each — this overview plus the detailed S.10 and S.11 topics that follow.

UNIT I · TOPIC 11

11 Res sub judice — stay of suit (S.10)

★★★ asked in 10 of 23 papers | 6-mark note ×7 | 15-mark essay ×1 | 10-mark problem ×2

S.10 | Explanation | S.151

? **Think first:** *Sunil sues Rahul for a plot; a month later Rahul sues Sunil for the same plot in the same city. Should two judges hear it at once?*

1 IN ONE LINE

When the **same matter is already pending** between the same parties in a competent court, the later suit is not dismissed — its **trial is stayed**.

S.10 — five ticks

1. Two suits — earlier one **pending**
2. Same matter **directly and substantially** in issue
3. **Same parties** (or those claiming under them)
4. **Same title**
5. Earlier court **competent** to grant the relief

All five ✓ → trial of the later suit is STAYED

GET IT — SIMPLY

- **Object:** stop two courts trying the same matter at the same time → no **conflicting decisions**.
- **S.10** applies when the matter in the later suit is **directly and substantially in issue** in an **earlier pending** suit — same parties, same title, competent court.
- Effect: the later suit's **trial is stayed** — it is **not dismissed**; it can still be filed and interim orders can be passed (Indian Bank).
- Test: will the decision in suit 1 decide suit 2? If yes → stay (NIMHANS).
- **Explanation:** a suit pending in a **foreign court** does not stop Indian courts.
- A decree passed in breach of S.10 is **not void**. Where S.10 doesn't fit, the court can still stay or consolidate under **S.151**.

Sub judice v judicata

	Res sub judice — S.10	Res judicata — S.11
Earlier matter	**Pending**	**Decided**
Later suit	Trial **stayed**	Trial **barred**
Aim	Avoid conflicting decisions	Finality — end litigation

Sub judice = still Under the judge · Judicata = Judged already

BARE ACT — READ IT LIKE THIS · S.10

> *'No Court shall proceed with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties … where such suit is pending in the same or any other Court in India having jurisdiction to grant the relief claimed.'*

No Court shall proceed with the trial	Stops the **trial**, not the filing — and not interim orders.
directly and substantially in issue	The core matter must be the same — one common side-issue is not enough.
previously instituted suit	Earlier *filed* suit is the one that continues.
same parties … same title	Same people (or those claiming under them), in the same capacity.
having jurisdiction to grant the relief	The earlier court must be able to give the relief claimed in the later suit.

SECTIONS TO QUOTE

S.10 Expl. Pendency of a suit in a foreign court does not preclude Indian courts from trying a suit on the same cause of action.

S.151 Inherent power — courts may stay or consolidate suits where justice requires.

REAL-LIFE STORY

Sunil sues Rahul in Hyderabad for a declaration that he owns a plot in Shamshabad. A month later Rahul sues Sunil in the same city court for a declaration that *he* owns the same plot. The whole matter in issue is the same, between the same parties, under the same title — the trial of Rahul's later suit is **stayed** under S.10 until Sunil's suit is decided.

GOLDEN RULES — REMEMBER THESE

- ★ S.10 = **pending** + same matter + same parties + same title + competent court.
- ★ It **stays the trial**; it does not stop the filing or interim orders.
- ★ Foreign suit pending → no stay in India (Explanation).
- ★ Decree in breach of S.10 is **not void**.

⚖ Indian Bank v Maharashtra State Co-operative Marketing Federation Ltd
(1998) 5 SCC 69

STORY A bank filed a summary suit (O.XXXVII) against the Federation, which argued that its own earlier suit on the same transaction required the bank's suit to be stayed under S.10.

HELD The Supreme Court held that S.10 bars the **trial** and not the institution of the later suit; 'trial' is to be read in the light of the object of S.10, so in a summary suit the court can still decide whether the defendant should get leave to defend.

WHY IT MATTERS Explains the key feature of S.10 — **stay of trial, not a bar to filing** — and its object of avoiding conflicting decisions.

⚖ National Institute of Mental Health & Neuro Sciences v C. Parameshwara
(2005) 2 SCC 256

STORY An employee filed two proceedings that overlapped on some questions. The institute sought stay of the later suit.

HELD The Court held that for S.10 the **matter in issue in the two suits must be substantially the same** — the whole subject matter, not merely some common issues. If the decision in the earlier suit would operate as res judicata in the later one, S.10 applies.

WHY IT MATTERS The test to apply in a Part C problem: *will the decision in suit 1 decide suit 2?* If yes → stay.

IN THE EXAM

- C · 10-mark 2015 — 'A' filed a suit against 'B' for eviction from his house. When the suit is still pending before a civil court, 'A' once again filed another suit...
- C · 10-mark April/May 2023 — Two suits over infringement of the same trade name in different courts — procedure

Write it like this: Always add the S.10 vs S.11 comparison table — it is asked as a short note and as an essay.

UNIT I · TOPIC 12

12 Res judicata (S.11)

★ ★ ★ asked in 13 of 23 papers | 6-mark note ×1 | 15-mark essay ×8 | 10-mark problem ×4

S.11 | Explanations I–VIII | constructive res judicata

Think first: *Prasad lost his case for a house on a gift deed. Can he now sue again for the same house — this time relying on a will he never mentioned?*

1 IN ONE LINE

A matter **directly and substantially in issue**, heard and finally decided by a competent court, cannot be tried again between the same parties.

Res judicata — five ticks

1. Matter **directly and substantially in issue** in both suits
2. **Same parties** or their successors
3. **Same title** (same capacity)
4. Former court **competent**
5. **Heard and finally decided** on merits

All five ✓ → No court shall try the later suit or issue

GET IT — SIMPLY

- *Res judicata* = 'a thing already decided'. Policy: no one should be troubled twice (*nemo debet bis vexari*); litigation must end (*interest reipublicae ut sit finis litium*).
- Five conditions — **same matter · same parties · same title · competent court · heard and finally decided** on merits.
- **Expl. IV — constructive res judicata:** a ground that **might and ought** to have been raised earlier is treated as raised and decided. (That's why Prasad's 'will' suit is barred.)
- **Expl. V:** relief claimed but not granted = **refused**. **Expl. VI:** representative suits bind all. **Expl. VIII:** a limited-jurisdiction court's decision on an issue it could decide also binds.
- Applies to stages of the same suit (Satyadhyan Ghosal), execution, **writ petitions** (Daryao), and between co-defendants (if there was a conflict decided between them).
- Does **not** apply to: decisions without jurisdiction (nullities), wrong decisions on a **pure question of law about jurisdiction** (Mathura Prasad), dismissal for default or on technical grounds.

Res judicata v estoppel

	Res judicata	Estoppel
Comes from	A **court's decision**	A **party's conduct**
Stops	The **court** from trying again	The **party** from saying the opposite
Nature	Bars jurisdiction	Rule of evidence

RJ shuts the court's door · Estoppel shuts the party's mouth

BARE ACT — READ IT LIKE THIS · S.11

> *'No Court shall try any suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit … and has been heard and finally decided by such Court.'*

No Court shall try	A total bar — the court has no power to try it.
any suit or issue	Even a single issue can be barred, not just the whole suit.
directly and substantially in issue	The heart of the earlier case — not an incidental point.
parties under whom they claim	Buyers, heirs, successors are bound too.
same title	Same capacity — a man suing as trustee is not the same as suing for himself.
competent … heard and finally decided	A real decision on merits by a court that had power.

SECTIONS TO QUOTE

Expl. IV Matter which might and ought to have been made a ground of defence or attack in the former suit — deemed to have been in issue.

Expl. V Relief claimed but not expressly granted — deemed refused.

Expl. VIII Issue decided by a court of limited jurisdiction competent to decide that issue operates as res judicata.

REAL-LIFE STORY

Prasad sued Ali for possession of a house claiming it under a gift deed; the court decided on merits that the gift deed was invalid and dismissed the suit. Prasad now files a second suit for the same house on the **same gift deed** — barred by **res judicata**.

GOLDEN RULES — REMEMBER THESE

- ★ Five conditions: **same matter · same parties · same title · competent court · heard and finally decided**.
- ★ **Expl. IV** = constructive res judicata — *might and ought*.
- ★ Applies to stages of the same suit, execution, writs (Daryao).
- ★ Not to: wrong decisions on jurisdiction, nullities, dismissal for default.

⚖ Satyadhyan Ghosal v Deorajin Debi
AIR 1960 SC 941

STORY In an ejectment proceeding, an interlocutory order was passed at one stage; later in the same proceedings the question was raised again.

HELD The Court held that **res judicata applies between different stages of the same proceeding** — a decision at an earlier stage binds the parties at a later stage of the same suit. But an interlocutory order not appealed can still be challenged in an appeal against the final decree.

WHY IT MATTERS The leading case on res judicata within the same proceeding.

⚖ Daryao v State of Uttar Pradesh
AIR 1961 SC 1457

STORY Petitioners' writ petition under Art. 226 was dismissed by the High Court on merits; they then filed a fresh petition under Art. 32 in the Supreme Court on the same facts.

HELD The Court held that **res judicata applies to writ petitions** — the rule is based on public policy and is not confined to S.11. A writ dismissed on merits bars a fresh petition on the same facts; a dismissal *in limine* without a speaking order does not.

WHY IT MATTERS Shows res judicata is a general principle of public policy, wider than the words of S.11.

DOUBT CLEAR — NO SILLY QUESTIONS

Q. What is the difference between O.II r.2 and constructive res judicata?
O.II r.2 bars a **claim or relief** you left out; Expl. IV bars a **ground of attack or defence** you could have raised. Both punish 'holding back' — one on what you *ask*, the other on what you *argue*.

Q. Does res judicata apply if the earlier suit was dismissed because the plaintiff didn't appear?
No — that is not 'heard and finally decided'. But O.IX r.9 separately bars a fresh suit (see Topic 10, Bars to a suit).

IN THE EXAM

- C · 10-mark May/June 2010 (backlog) — Decree in a representative suit — does it bind a non-party who later sues (res judicata)?
- C · 10-mark Undated (Code 1025, Part C only) — Plaintiff's earlier suit dismissed on merits; his legal heir sues the defendant's heirs — maintainable?

Write it like this: Res judicata is the single most important concept of Unit I. For an essay: meaning + maxims + conditions + Explanations IV, V, VIII + 2 cases + RJ vs estoppel + RJ vs sub judice.

UNIT I · TOPIC 13

13 Foreign courts and foreign judgments

★★★ asked in 2 of 23 papers · 6-mark note ×2

S.2(5)–(6) · S.13 · S.14 · S.44A

Think first: *Imran won a money decree in Dubai against his partner. Can he enforce it in Hyderabad straight away?*

1 IN ONE LINE

A foreign judgment binds the parties in India **unless it falls within one of the six exceptions in S.13**.

S.13 — six ways a foreign judgment fails

1 Competence court had no jurisdiction	**2 Merits** not decided on merits (e.g. default)	**3 International law** wrong view of it / ignores Indian law
4 Natural justice no notice, no hearing	**5 Fraud** obtained by fraud	**6 Breach of Indian law** sustains a claim illegal in India

C - M - I - N - F - B

➜ GET IT — SIMPLY

- **Foreign court** = outside India, not set up by the Central Government (S.2(5)); its judgment is a **foreign judgment** (S.2(6)).
- **S.13:** a foreign judgment is conclusive **except** in six cases (see the picture).
- **S.14:** a certified copy raises a presumption that the foreign court was competent.
- **Enforcement:** a decree of a superior court of a **reciprocating territory** (UK, Singapore, UAE...) is **executed directly** as if passed by the District Court (S.44A); others need a **fresh suit** on the judgment.

How to enforce it

Is the foreign country a 'reciprocating territory'?

Yes	No
S.44A — file a certified copy in the District Court and execute directly (S.13 defences still open).	File a **fresh suit** in India on the foreign judgment; S.13 defences available.

§ SECTIONS TO QUOTE

S.13 Foreign judgment conclusive except in six cases: incompetent court · not on merits · against international law · natural justice · fraud · breach of Indian law.

S.14 Presumption of competence on production of a certified copy.

S.44A Execution of decrees of superior courts of reciprocating territories as if passed by the District Court.

✎ REAL-LIFE STORY

Imran obtains a money decree against his former business partner from a court in Dubai (UAE is a reciprocating territory). He can file a certified copy in the District Court at Hyderabad and **execute it directly under S.44A**. But if his partner shows that he was never served with notice in Dubai, the decree fails under S.13(d) — **natural justice**.

★ GOLDEN RULES — REMEMBER THESE

- ★ Six S.13 exceptions — memory hook **C-M-I-N-F-B**: Competence, Merits, International law, Natural justice, Fraud, Breach of Indian law.
- ★ S.14 presumes competence from a certified copy.
- ★ Reciprocating territory → execute directly (S.44A); others → fresh suit on the judgment.

⚖ Y. Narasimha Rao v Y. Venkata Lakshmi
(1991) 3 SCC 451

STORY The husband obtained a divorce decree in Missouri (USA) on a ground not recognised by Hindu law, after creating a false residence there. The wife had not submitted to that court. He later remarried and was prosecuted for bigamy.

HELD The Supreme Court held the foreign decree was **not conclusive under S.13**: the court lacked jurisdiction as recognised by Indian matrimonial law, the decree was not on a ground available under the Hindu Marriage Act, and it was obtained by misrepresentation. The jurisdiction and ground must be those recognised by the law under which the parties married.

WHY IT MATTERS The leading case on S.13 — it explains clauses (a), (b), (c) and (e) in one judgment.

IN THE EXAM

- **A · 6-mark** Nov/Dec 2009 — Foreign judgments

Write it like this: A question on foreign judgments is usually a short note — list the six exceptions with the memory hook and add Narasimha Rao.

✓ Check yourself — Unit I

1. A suit is pending; the same matter is filed again in another court. Which section, and what happens to the second suit?
2. Name the explanation of S.11 that creates constructive res judicata.
3. Defamation in Hyderabad by a person living in Warangal — where can the victim sue?
4. Two tests of a necessary party?
5. Is a temple office carrying no fees a 'civil' matter?
6. Within how many days must summons be served after institution?

Answers: 1. S.10 — its trial is stayed · **2.** Explanation IV — 'might and ought' · **3.** Either place — S.19, plaintiff's choice · **4.** Relief claimed against him + no effective decree without him (Kasturi) · **5.** Yes — S.9 Explanation II · **6.** 30 days (S.27)

UNIT II

Pleadings — what each side must say, and how

The plaintiff writes his claim, the defendant writes his answer, and the court turns their quarrel into a list of questions.

The story of this unit. Meena's advocate now has to put her case on paper. Follow the papers in the order they move: the **rules** every pleading must obey and the **model forms** (Topics 14–15) → the **plaint** and the documents filed with it (16–17) → the court's first check — **return or rejection** (18) → the builder's **written statement**, with any **set-off or counter-claim** (19–20) → **changing** a pleading later (21) → the court's push to **settle** (22) → and finally the **issues** — the exam paper the trial must answer (23).

14 Pleadings — meaning and the basic rules ★★☆ p. 33

15 Forms of pleading ★☆☆ p. 35

16 The plaint — its essential particulars ★★★ p. 36

17 Production and marking of documents with the plaint ☆☆☆ p. 37

18 Return of plaint and rejection of plaint ★★☆ p. 39

19 Written statement — the defendant's answer ★★☆ p. 40

20 Set-off and counter-claim ★★★ p. 42

21 Striking out and amendment of pleadings ★★☆ p. 43

22 Section 89 — settlement of disputes outside the court (ADR) ☆☆☆ p. 45

23 Framing of issues ★★☆ p. 47

UNIT II · TOPIC 14

14 Pleadings — meaning and the basic rules

★★☆ asked in 4 of 23 papers · 6-mark note ×1 · 15-mark essay ×3

O.VI r.1–2 · r.4 · r.14 · r.15 · r.15A

Think first: *If the court decides only on what the parties wrote, what should — and shouldn't — go into that writing?*

1 IN ONE LINE

Pleadings are the **plaint and the written statement**. They must state **material facts only** — not law, not evidence — concisely and in numbered paragraphs.

O.VI r.2 — the four golden rules of pleading

1 Facts, not law
Say what happened; the court knows the law.

2 Material facts only
Only facts your claim or defence depends on.

3 Not the evidence
'He borrowed ₹2 lakh' — not 'my neighbour saw him take it'.

4 Concise & numbered
Short paragraphs; dates and sums in figures and words.

Facts · Material · No evidence · Concise

GET IT — SIMPLY

- **Pleadings = plaint + written statement** (O.VI r.1). Anything later (replication) only with leave.
- Why they exist: each side knows the case it must meet; the real dispute is narrowed; no surprise at trial. **No evidence on a case not pleaded**.
- **O.VI r.2 — the four golden rules:** (1) plead **facts**, not law; (2) only **material** facts; (3) not the **evidence**; (4) **concisely**, numbered paragraphs, dates and sums in figures and words.
- **r.4:** fraud, misrepresentation, breach of trust, wilful default, undue influence → give **full particulars** (dates, items). 'It was fraud' alone is not enough.
- Small rules: condition precedent implied (r.6); no inconsistent new ground without amendment (r.7); presumptions of law need not be pleaded (r.13).
- **Sign** (r.14) + **verify** + **affidavit** (r.15); commercial suits — **statement of truth** (r.15A).
- Balance: read pleadings **liberally**, by substance (Ram Sarup Gupta) — but the court cannot give relief on a case **never pleaded** (Bachhaj Nahar).

§ SECTIONS TO QUOTE

O.VI r.1 Pleading means plaint or written statement.

O.VI r.2 Material facts only, not evidence; concise; numbered paragraphs; dates and sums in figures and words.

O.VI r.4 Particulars of fraud, misrepresentation, breach of trust, wilful default, undue influence.

O.VI r.14–15 Signing by party and pleader; verification and affidavit.

O.VI r.15A Statement of truth in commercial disputes.

✎ REAL-LIFE STORY

In a suit for cancellation of a sale deed, Rajesh writes only: 'The deed was obtained by fraud.' That is not enough under **O.VI r.4**. He must state the particulars — *on 2 June 2023 the defendant told me the document was a rental agreement, made me sign it at the registrar's office without reading it, and paid nothing* — so the defendant knows exactly what to answer.

★ GOLDEN RULES — REMEMBER THESE

- ★ Pleading = **plaint + written statement** (O.VI r.1).
- ★ Four rules: **facts · material · not evidence · concise** (r.2).
- ★ Fraud etc. → **full particulars** (r.4).
- ★ Read liberally (Ram Sarup Gupta), but no relief beyond pleadings (Bachhaj Nahar).

⚖ Ram Sarup Gupta v Bishun Narain Inter College

(1987) 2 SCC 555

STORY The plaintiff's pleadings about a licence over land were not very precise. The High Court refused relief, saying the specific plea was not taken.

HELD The Supreme Court held that pleadings must be **construed liberally and as a whole**, looking at the substance and not the form. Where parties knew the real case and led evidence on it, the absence of a precise plea does not defeat the claim — no prejudice was caused.

WHY IT MATTERS Balances the strict rules: pleadings exist to give notice, not to trap parties on technicalities.

⚖ Bachhaj Nahar v Nilima Mandal

(2008) 17 SCC 491

STORY The plaintiffs sued on title; the High Court granted them a different relief on the basis of an easement that was never pleaded.

HELD Held: a court **cannot make out a case not pleaded** or grant a relief not claimed; the decision must be confined to the pleadings and the issues. The judgment was set aside.

WHY IT MATTERS The other side of the coin — the court is bound by the pleadings.

IN THE EXAM

- B · 15-mark June/July 2011 (backlog) — Pleadings and the general rules of pleading
- B · 15-mark Aug/Sept 2013 — Explain plaint and rules that are governing pleadings

Write it like this: Write 'O.VI r.2 — four fundamental rules of pleading' as a numbered list; it is the most-asked part of this topic.

UNIT II · TOPIC 15

15 Forms of pleading

★ ★ ★ asked in 1 of 23 papers · 10-mark problem ×1

O.VI r.3 · Appendix A · Appendices B–H

Think first: *A junior advocate has never drafted a plaint. Is there a ready template in the Code itself?*

1 IN ONE LINE

The CPC gives **ready-made model forms** for plaints and written statements in Appendix A — follow them as nearly as the case allows.

The skeleton of every plaint (Appendix A)

Name of court → Parties → Facts in numbered paras → Cause of action → Jurisdiction → Valuation & court fee → **Prayer (relief)** → Signature & verification

GET IT — SIMPLY

- **O.VI r.3:** use the **model forms in Appendix A** where they fit; otherwise forms 'as nearly as may be' similar.
- Appendix A has forms of **plaints** (money lent, goods sold, recovery of land, injunction, specific performance, mortgage…) and of **written statements** (denial, limitation, payment, set-off, infancy, fraud).
- Other appendices: **B** processes · **C** discovery · **D** decrees · **E** execution · **F** supplemental proceedings · **G** appeals, review · **H** miscellaneous.
- Forms bring uniformity and remind the drafter of every essential — but they are **models, not straitjackets**; substance prevails over form.

§ SECTIONS TO QUOTE

O.VI r.3 Forms in Appendix A to be used where applicable; otherwise forms of like character.

REAL-LIFE STORY

A new advocate drafting her first money-recovery plaint opens **Appendix A, Form No. 1 (money lent)** and follows its layout — court, parties, the loan date and amount, the demand, the cause of action, jurisdiction, valuation, prayer and verification — adapting it to her client's facts.

GOLDEN RULES — REMEMBER THESE

- ★ O.VI r.3 → **Appendix A** forms for pleadings.
- ★ Layout: **court → parties → facts → cause of action → jurisdiction → valuation → prayer → verification**.

IN THE EXAM

- C · 10-mark 2020 — 'A' want to file a suit, against 'B' for recovery of Rs. 10,000/- based on a negotiable instrument. Draft a plaint accordingly.

Write it like this: Rarely a full question — usually combined with 'pleadings'. Two lines on O.VI r.3 and the layout are enough.

UNIT II · TOPIC 16

16 The plaint — its essential particulars

★★★ asked in 13 of 23 papers | 6-mark note ×6 | 15-mark essay ×6 | 10-mark problem ×1

O.VII r.1–9 | S.26

Think first: *What are the nine things every plaint must say — so the judge never has to ask 'who, what, where, when and how much'?*

1 IN ONE LINE

The plaint is the **plaintiff's written statement of claim**. O.VII r.1 lists what every plaint must contain.

O.VII r.1 — the nine particulars of a plaint

1 Court which court	**2 Plaintiff** name, description, residence	**3 Defendant** name, description, residence
4 Disability minor / unsound mind?	**5 Cause of action** facts + date it arose	**6 Jurisdiction** why this court
7 Relief what you ask for	**8 Set-off / relinquishment** amount allowed or given up	**9 Valuation** for jurisdiction & court fee

Court · Plaintiff · Defendant · Disability · Cause · Jurisdiction · Relief · Set-off · Value

GET IT — SIMPLY

- The **plaint** is the plaintiff's written statement of claim — the suit starts with it (S.26).
- **O.VII r.1 — nine particulars:** court · plaintiff · defendant · minor/unsound mind · **cause of action and when it arose** · **jurisdiction** · **relief** · set-off/relinquishment · **valuation** for jurisdiction and court fee.
- **r.2** money suit — exact amount. **r.3** land — boundaries / survey numbers so it can be **identified**.
- **r.6** suit filed after the limitation period → show the **ground of exemption**.
- **r.7–8** relief stated specifically (alternative reliefs allowed); separate reliefs on separate grounds stated separately.
- **r.9** once admitted, copies + process fee for the defendants within **7 days**.

§ BARE ACT — READ IT LIKE THIS · O.VII R.1

> *'The plaint shall contain the following particulars: (a) the name of the Court … (e) the facts constituting the cause of action and when it arose; (f) the facts showing that the Court has jurisdiction; (g) the relief which the plaintiff claims; … (i) a statement of the value of the subject-matter of the suit for the purposes of jurisdiction and of court-fees…'*

shall contain	Mandatory — a missing particular is a defect the court can ask you to cure.
(e) facts … and when it arose	Both the facts *and* the date — the date controls limitation.
(f) facts showing jurisdiction	Facts, not just 'this court has jurisdiction' — e.g. 'defendant resides at Kukatpally'.
(g) the relief	The prayer — the court won't grant what you didn't ask.
(i) value … jurisdiction and court-fees	Value decides which court (S.15) and how much fee.

§ SECTIONS TO QUOTE

O.VII r.2–3 Money suits — precise amount; immovable property — identifying description.

O.VII r.6 Grounds of exemption from limitation must be shown.

O.VII r.7 Relief to be specifically stated.

O.VII r.9 Copies and process fee for service on defendants.

✎ REAL-LIFE STORY

Plaint, O.S. No. ___ of 2026, before the Junior Civil Judge, Kukatpally: **Plaintiff** — Smt. A. Renuka, aged 42, Moosapet. **Defendant** — Sri K. Mahesh, aged 50, KPHB Colony. **Facts** — loan of ₹3,00,000 on 1-2-2024 on a promissory note; demand on 1-2-2025 refused. **Cause of action** arose on 1-2-2024 and 1-2-2025 at Kukatpally. **Jurisdiction** — defendant resides and loan given within limits. **Valuation** — ₹3,36,000 (principal + interest). **Limitation** — filed within 3 years of the loan. **Prayer** — decree for ₹3,36,000 with future interest and costs. **Verification** and signature.

★ GOLDEN RULES — REMEMBER THESE

★ Nine particulars of O.VII r.1 — memory chain: **Court · Plaintiff · Defendant · Disability · Cause of action · Jurisdiction · Relief · Set-off · Value**.

★ Land → **identify it** (r.3). Late suit → show the **ground of exemption** (r.6).

✍ IN THE EXAM

- **C · 10-mark** 2020 — 'A' want to file a suit, against 'B' for recovery of Rs. 10,000/- based on a negotiable instrument. Draft a plaint accordingly.
- **B · 15-mark** December 2010 — Plaint and its required particulars

Write it like this: 'What are the contents of a plaint?' — a numbered list of the nine particulars plus a mini sample plaint (like the example) gets full marks.

UNIT II · TOPIC 17

17 Production and marking of documents with the plaint

★★★ not asked so far — read for understanding

O.VII r.14–17 **O.VIII r.1A** **O.XIII r.1**

Think first: *Venkat sues on a promissory note but leaves the note at home in his locker. Can he produce it whenever he likes?*

1 IN ONE LINE

Documents you **sue upon or rely on must be filed with the plaint** along with a list. If you hold them back, you need the court's leave later.

Documents — the timing rule

A document you rely on — when do you file it?

With the plaint	Later, at trial	Only to cross-examine
List + produce (O.VII r.14(1)) — no problem.	Only with the court's **leave** (r.14(3)) — explain the delay; costs may follow.	Allowed without leave (r.14(4)).

➜ GET IT — SIMPLY

- **O.VII r.14(1):** a document you **sue upon** or **rely on** must be **listed** and **produced with the plaint**, with a copy.
- **r.14(2):** not in your hands? Say **who has it**.
- **r.14(3):** a document that should have come with the plaint is **not received in evidence without the court's leave**. **r.14(4):** exception — documents only for **cross-examination** or to refresh a witness's memory.
- **r.16** suit on a **lost negotiable instrument** — allowed with an indemnity. **r.17** shop books — copy filed, original shown and returned.
- Defendant has the same duty with the written statement — **O.VIII r.1A**.
- **O.XIII r.1:** all originals **on or before settlement of issues**. Commercial suits — stricter disclosure.
- Leave for late documents is given where they are relevant and the delay is explained — procedure serves justice (Sugandhi).

§ SECTIONS TO QUOTE

O.VII r.14 Documents sued upon or relied on — list and produce with the plaint; otherwise only with leave.

O.VII r.16 Suit on a lost negotiable instrument — indemnity.

O.VII r.17 Production of shop books.

O.VIII r.1A Defendant's duty to produce documents relied on.

O.XIII r.1 Originals to be produced on or before settlement of issues.

✎ REAL-LIFE STORY

In a suit on a promissory note for ₹5 lakh, Venkat files the plaint without the pro-note because it is in his locker. He must at least list it. If he files it only at the evidence stage, the court will ask for reasons and may grant **leave under r.14(3)** if the delay is genuine — but he risks costs and objections.

★ GOLDEN RULES — REMEMBER THESE

- ★ Sue on / rely on a document → **list + produce with the plaint** (O.VII r.14).
- ★ Late production → only with **leave** (r.14(3)).
- ★ Originals → **before settlement of issues** (O.XIII r.1).

⚖ Sugandhi v P. Rajkumar
(2020) 10 SCC 706

STORY The defendant applied at a late stage to produce certain documents (O.VIII r.1A(3)); the courts below refused leave.

HELD The Supreme Court allowed the application, holding that **procedure is the handmaid of justice** — leave to produce documents later should be granted where the documents are relevant and the delay is explained, so long as the other side can be compensated by costs.

WHY IT MATTERS Shows how 'leave of the court' under r.14(3) / O.VIII r.1A(3) is used.

IN THE EXAM

Write it like this: Usually a short note. Mention r.14(1)–(4) and the parallel defendant's rule O.VIII r.1A.

UNIT II · TOPIC 18

18 Return of plaint and rejection of plaint

★★☆ asked in 4 of 23 papers · 6-mark note ×1 · 15-mark essay ×3

O.VII r.10, 10A, 10B · O.VII r.11 · r.12 · r.13

Think first: *The court finds Meena's plaint in the wrong court in one case, and showing no cause of action in another. Same result?*

1 IN ONE LINE

Wrong court → plaint is **returned** to be filed in the right court. A plaint that is dead on arrival (no cause of action, under-valued, barred by law...) is **rejected**.

Return v rejection — a top short note

	Return — O.VII r.10	Rejection — O.VII r.11
Why	Wrong court — no jurisdiction	Plaint itself is defective (6 grounds)
What happens	Given back to file in proper court	Thrown out
Nature	Appealable order (O.XLIII)	Deemed decree — S.96 appeal
Afterwards	Suit starts afresh there	Fresh plaint allowed (r.13)

Wrong address → RETURN · Dead letter → REJECT

GET IT — SIMPLY

- **Return (r.10):** the court lacks **jurisdiction** (territorial, pecuniary, subject-matter) → plaint **given back** to be filed in the proper court, with endorsements and reasons.
- **r.10A:** court may fix a date for appearance in the proper court (no fresh summons). After return, the suit starts **afresh** in the new court (EXL Careers); S.14 Limitation Act can save the time spent.
- **Rejection (r.11):** a dead-on-arrival plaint is **thrown out** on six grounds — no cause of action · undervalued (not corrected) · understamped (not paid) · **barred by law** on its face · not in duplicate · r.9 not complied.
- Decide rejection on the **plaint alone** — not the written statement (Saleem Bhai); read it meaningfully, not formally — clever drafting can't create a cause of action (Arivandandam).
- Rejection is a **deemed decree** → appeal under S.96; but a **fresh plaint** is allowed (r.13). Return is an **appealable order** (O.XLIII r.1(a)).

O.VII r.11 — six grounds of rejection

1. **No cause of action** — r.11(a)
2. **Undervalued** — and not corrected — (b)
3. **Understamped** — and fee not paid — (c)
4. **Barred by law** — on the plaint's own face — (d)
5. **Not in duplicate** — (e)
6. **r.9 not complied** — copies / process fee — (f)

§ SECTIONS TO QUOTE

O.VII r.10 Return of plaint to be presented in the proper court.

O.VII r.10A Fixing date of appearance in the proper court.

O.VII r.11 Rejection — no cause of action, undervaluation, insufficient stamp, barred by law, not in duplicate, r.9 non-compliance.

O.VII r.13 Rejection does not preclude a fresh plaint.

✎ REAL-LIFE STORY

Vijay sues in Hyderabad for possession of agricultural land in Nalgonda. The court has no jurisdiction under S.16, so it **returns** the plaint to be presented in the Nalgonda court (r.10).

★ GOLDEN RULES — REMEMBER THESE

- ★ No jurisdiction → **return** (r.10). Defect in plaint → **reject** (r.11).
- ★ r.11 grounds memory: **C-V-S-B-D-9** — no Cause, under-Valued, under-Stamped, Barred, not Duplicate, r.9.
- ★ Decide r.11 on the **plaint alone** (Saleem Bhai).
- ★ Rejection = **deemed decree**; fresh plaint allowed (r.13).

⚖ T. Arivandandam v T.V. Satyapal

(1977) 4 SCC 467

STORY A tenant who had lost eviction proceedings filed a fresh suit, cleverly drafted to create an illusion of a cause of action and delay the eviction.

HELD Krishna Iyer J. said that if, on a meaningful (not formal) reading, the plaint is **manifestly vexatious and without merit, the court should nip it in the bud** under O.VII r.11, and not let clever drafting create an illusion of a cause of action.

WHY IT MATTERS The most-quoted case on r.11(a) — shows the purpose of rejection.

⚖ Saleem Bhai v State of Maharashtra

(2003) 1 SCC 557

STORY The trial court refused to decide an O.VII r.11 application until the defendant filed a written statement.

HELD Held: for deciding rejection, **only the averments in the plaint are relevant**; the pleas in the written statement are wholly irrelevant, so the application can be decided at any stage, even before the written statement.

WHY IT MATTERS Gives the test the court uses under r.11.

✍ IN THE EXAM

- **B · 15-mark** May/June 2016 — What is the difference between return of the plaint and rejection of the plaint?
- **B · 15-mark** January 2018 — What is the difference between Return of Plaint and Rejection of Plaint?

Write it like this: 'Distinguish return and rejection of plaint' is a top-5 short note — use the table above with two cases (Arivandandam, Saleem Bhai).

UNIT II · TOPIC 19

19 Written statement — the defendant's answer

★★☆ asked in 4 of 23 papers · 6-mark note ×3 · 10-mark problem ×1

O.VIII r.1–5 **r.9** **r.10** **Commercial Courts (120 days)**

? **Think first:** *The plaint says 'he borrowed ₹2 lakh'. The defendant writes only 'false'. Has he denied anything at all?*

1 IN ONE LINE

The written statement must be filed **within 30 days** of service (up to **90 days** with reasons). Every allegation not **specifically denied** is taken as admitted.

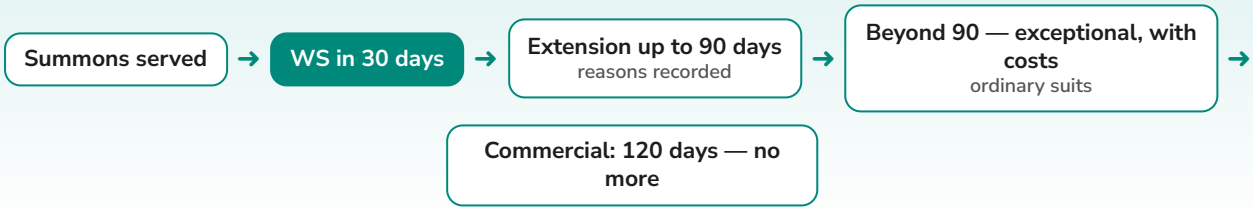
How to answer a plaint

	General denial ×	Specific denial ✓
Says	'Para 4 is false.'	'Denies borrowing any sum on 1-3-2025; signature on the pro-note is not his; he was in Chennai that day (ticket attached).'
Effect	May be treated as **admission** (r.5)	Puts the plaintiff to proof

GET IT — SIMPLY

- The **written statement (WS)** is the defendant's answer — admit, deny, explain, and add new facts, set-off or counter-claim.
- **Time (r.1):** **30 days** from service; extendable to **90 days** with recorded reasons. Ordinary suits — 90 days is **directory** (Kailash v Nanhku). Commercial suits — **120 days, mandatory** (SCG Contracts).
- **r.2:** plead **new facts** specially — limitation, fraud, payment, release, void transaction.
- **r.3–4:** deny **specifically**, not generally or **evasively** — answer the substance.
- **r.5:** what is not specifically denied is **taken as admitted** (except against a person under disability).
- **r.9:** further pleadings only with leave. **r.10:** no WS → court may pronounce judgment — but a **reasoned** one (Balraj Taneja).

Written statement — the clock



SECTIONS TO QUOTE

O.VIII r.1 WS within 30 days; extendable up to 90 days for recorded reasons (120 days, strict, in commercial suits).

O.VIII r.2 New facts must be specially pleaded.

O.VIII r.3–5 Denial must be specific, not evasive; facts not denied are admitted.

O.VIII r.9 Subsequent pleadings only with leave.

O.VIII r.10 Procedure when the defendant fails to file the WS.

REAL-LIFE STORY

Plaint para 4 says: 'On 1-3-2025 the defendant borrowed ₹2,00,000 in cash and executed a pro-note.' A WS saying only 'Para 4 is false' is a **general denial**. A good WS says: 'The defendant denies borrowing any amount on 1-3-2025. The signature on the pro-note is not his. He was in Chennai on that date, as his railway ticket shows.' That is a **specific denial with new facts** (r.2–3).

GOLDEN RULES — REMEMBER THESE

- ★ WS: **30 → 90 days** (directory — Kailash); commercial **120 days** (mandatory — SCG).
- ★ Deny **specifically**, not **evasively**; else **admitted** (r.3–5).
- ★ Plead **new facts** (limitation, fraud, payment) specially (r.2).
- ★ No WS → r.10 judgment, but **reasoned** (Balraj Taneja).

⚖ Kailash v Nanhku
(2005) 4 SCC 480

STORY In an election petition, the WS was filed beyond 90 days. The question was whether the court had any power to accept it.

HELD Held: the 90-day limit in O.VIII r.1 is **directory, not mandatory**, being a procedural rule with no penal consequence attached. Extension beyond 90 days can be granted only in exceptional cases, for reasons recorded, and the court should impose costs.

WHY IT MATTERS The key case on the time limit for WS in ordinary suits.

⚖ SCG Contracts (India) Pvt Ltd v K.S. Chamankar Infrastructure Pvt Ltd
(2019) 12 SCC 210

STORY In a commercial suit, the defendant filed the WS after 120 days from service.

HELD Held: after the Commercial Courts Act, 2015, the 120-day limit is **mandatory** — the defendant forfeits the right to file a WS and the court has no power to extend it.

WHY IT MATTERS Shows the contrast: ordinary suits — flexible; commercial suits — strict.

IN THE EXAM

- C · 10-mark Aug/Sept 2013 — Discuss the law regarding the consequences of non-appearance of a defendant in a suit without filing written statement and after filing of the...
- A · 6-mark Jan/Feb 2017 — Written statement

Write it like this: 'Rules relating to written statement' — write r.1, 2, 3, 4, 5, 10 with one line each and the two time-limit cases.

UNIT II · TOPIC 20

20 Set-off and counter-claim

★★★ asked in 12 of 23 papers | 6-mark note ×10 | 15-mark essay ×4 | 10-mark problem ×3

O.VIII r.6 | r.6A–6G | equitable set-off

Think first: *The plaintiff claims ₹1 lakh; the defendant says 'you owe me ₹40,000 — and also give back my godown'. Which is the shield and which the sword?*

1 IN ONE LINE

Set-off is a **shield** — it reduces or wipes out the plaintiff's money claim. A **counter-claim** is a **sword** — a cross-suit the defendant can win independently.

Set-off v counter-claim

	Set-off	Counter-claim
Picture it	A shield	A sword
Suit type	Only money suits	Any suit
Claim	Ascertained money (equitable: same transaction)	Any right — money, property, injunction
Connected?	Legal: no need; equitable: same transaction	Need not be connected
Suit dismissed?	Falls with the suit	**Survives** (r.6D)

Set-off defends · Counter-claim attacks

GET IT — SIMPLY

- **Set-off (O.VIII r.6):** in a **money suit**, the defendant claims an **ascertained sum legally recoverable** from the plaintiff — it reduces or wipes out the claim; works like a **cross-suit** (balance can be decreed).
- Set-off conditions: money suit · ascertained sum · legally recoverable (not time-barred) · same character (all defendants v all plaintiffs) · within pecuniary limits.
- **Equitable set-off:** even an **unascertained** sum can be set off if both claims come from the **same transaction** (court's discretion).
- **Counter-claim (r.6A–6G, 1976): any** claim (money, property, injunction) — even **unconnected** — arising before the defence is filed; treated as a **plaint**; a cross-suit.
- Counter-claim **survives** if the plaintiff's suit is stayed, withdrawn or dismissed (r.6D); plaintiff may reply (r.6A(3)); default → judgment on it (r.6E).
- Must be against the **plaintiff** (Rohit Singh); file it with the WS — never after issues are framed and evidence begins (Ashok Kumar Kalra).

SECTIONS TO QUOTE

O.VIII r.6 Particulars of set-off — ascertained sum legally recoverable; effect of a cross-suit.

O.VIII r.6A Counter-claim by defendant; effect of a cross-suit; treated as a plaint.

O.VIII r.6C–6E Exclusion; survival when suit dismissed; default of reply.

O.VIII r.6G Rules of WS apply to reply to counter-claim.

REAL-LIFE STORY

Shop owner Aslam sues his supplier for ₹1,00,000 paid in advance for goods never delivered. The supplier says Aslam owes him ₹40,000 for an earlier delivered consignment. That ₹40,000 is ascertained and recoverable → **set-off**; decree for only ₹60,000.

GOLDEN RULES — REMEMBER THESE

- ★ Set-off = **shield**; counter-claim = **sword**.
- ★ Set-off: **money suit · ascertained · legally recoverable · same character · pecuniary limits**.
- ★ Equitable set-off: unascertained but **same transaction**.
- ★ Counter-claim survives dismissal of the suit (**r.6D**); against **plaintiff** (Rohit Singh).

⚖ Ashok Kumar Kalra v Wing Cdr. Surendra Agnihotri
(2020) 2 SCC 394

STORY The defendant filed a counter-claim long after his written statement, when the trial was under way.

HELD A three-judge bench held that a counter-claim should ordinarily be filed **along with the written statement**; the court may allow it later in its discretion, but **not after the issues are framed and evidence begins**, since that would derail the trial.

WHY IT MATTERS Settles the outer time limit for counter-claims.

⚖ Rohit Singh v State of Bihar
(2006) 12 SCC 734

STORY A defendant filed a 'counter-claim' that was really a claim against a co-defendant, not the plaintiff.

HELD Held: a counter-claim must be directed **primarily against the plaintiff**; a claim only against a co-defendant is not a counter-claim under r.6A.

WHY IT MATTERS Clarifies who a counter-claim can be against.

IN THE EXAM

- **C · 10-mark** December 2015 (Code 3105) — Set-off of a promissory-note debt against a breach-of-contract damages claim
- **C · 10-mark** April/May 2023 — Can a seller set off unpaid wheat price against a claim for cloth price?

Write it like this: 'Distinguish set-off and counter-claim' — the table above, plus legal v equitable set-off, earns full marks. Part C with two money claims → apply r.6 conditions one by one.

UNIT II · TOPIC 21

21 Striking out and amendment of pleadings

★★☆ asked in 6 of 23 papers · 6-mark note ×4 · 10-mark problem ×2

O.VI r.16 · O.VI r.17 (with proviso)

Think first: *Sravani typed survey number 112 instead of 121. Is she stuck with the mistake forever?*

1 IN ONE LINE

The court can **cut out the junk** from a pleading (r.16) and **allow changes at any stage** that are needed to decide the real question (r.17) — but after the trial starts, only if the party could not have raised it earlier despite due diligence.

Amendment — the timing test

When is the amendment asked for?

Before trial	After trial commences	Changes the whole case / time-barred claim
Allowed **liberally** — if needed for the real question and no incurable prejudice.	Only with **due diligence** shown (proviso to r.17; Vidyabai).	Usually **refused**.

GET IT — SIMPLY

- **Striking out (r.16):** at any stage the court may strike out matter that is **unnecessary, scandalous, frivolous, vexatious**, that **delays** a fair trial, or **abuses** the process.
- **Amendment (r.17):** **at any stage**, as is just — all amendments **necessary to decide the real question** shall be allowed.
- **Proviso (2002):** **after trial commences**, only if, **despite due diligence**, the party could not raise it earlier. Trial commences when issues are framed and the case is posted for evidence (Vidyabai).
- Allowed liberally before trial; refused if it **changes the nature** of the suit, defeats a right gained by **limitation**, or causes prejudice that **costs cannot cure**.
- Written statements are amended more liberally, but a clear **admission** cannot be withdrawn.
- **r.18:** amend within the time given (or 14 days). Amendment generally **relates back** to the original date.
- Six-factor checklist — Revajeetu Builders (see picture).

Revajeetu's six factors

1 Imperative? needed for effective decision	**2 Bona fide?** or a delaying trick	**3 Prejudice?** can money/costs cure it?
4 Refusal → injustice? or many suits?	**5 Changes nature?** of the case fundamentally	**6 Time-barred?** would a fresh suit be barred?

§ SECTIONS TO QUOTE

O.VI r.16 Striking out unnecessary, scandalous, frivolous, vexatious matter, or matter that delays trial or abuses the process.

O.VI r.17 Amendment at any stage to determine the real questions; proviso — after trial commences only on due diligence.

O.VI r.18 If the party does not amend within the time allowed (or 14 days), he cannot amend later without leave.

✎ REAL-LIFE STORY

In a suit for a declaration of title over a plot in Medchal, Sravani wrote the survey number as 112 instead of 121 by a typing mistake. Before trial she applies to correct it — the court will **readily allow** the amendment (no change in the nature of the suit; no prejudice).

★ GOLDEN RULES — REMEMBER THESE

- ★ r.16 — strike out: **unnecessary · scandalous · frivolous · vexatious · delay · abuse**.
- ★ r.17 — amend at **any stage**; after trial starts only with **due diligence**.
- ★ Trial starts when issues framed + case posted for evidence (**Vidyabai**).
- ★ No amendment that **changes the nature** of the suit or defeats a **time-barred** right.

⚖ Revajeetu Builders & Developers v Narayanaswamy & Sons

(2009) 10 SCC 84

STORY The plaintiffs sought to amend the plaint to add new reliefs that would change the case substantially.

HELD The Supreme Court listed **six factors** for amendment: (1) whether it is imperative for proper and effective adjudication; (2) whether the application is bona fide or mala fide; (3) whether it causes prejudice that cannot be compensated in money; (4) whether refusing it leads to injustice or multiple litigation; (5) whether it constitutionally or fundamentally changes the nature and character of the case; (6) whether a fresh suit on the amended claim would be time-barred.

WHY IT MATTERS The checklist case — write the six factors in any essay on amendment.

⚖ Vidyabai v Padmalatha

(2009) 2 SCC 409

STORY The defendant applied to amend her written statement after the affidavit of examination-in-chief was filed.

HELD Held: the proviso to r.17 is mandatory; the **trial commences when the issues are framed and the case is set down for evidence** (filing of the affidavit in chief). After that, amendment is allowed only if due diligence is shown.

WHY IT MATTERS Explains the 2002 proviso — when exactly the door narrows.

✍ IN THE EXAM

- **C · 10-mark** 2014 — "A" filed a suit for declaration. In his pleadings he has omitted certain facts and committed certain mistakes inadvertently. Now "A" wants to...
- **C · 10-mark** May/June 2019 — Amending pleadings to correct omissions in a declaration suit

Write it like this: Part C problems on amendment (e.g. correcting omissions in a declaration suit, 2014 and 2019) — apply the Revajeetu factors and check the proviso.

UNIT II · TOPIC 22

22 Section 89 — settlement of disputes outside the court (ADR)

★★★ not asked so far — read for understanding

S.89 **O.X r.1A–1C** **Commercial Courts Act S.12A** **Legal Services Authorities Act**

? **Think first:** *Two brothers fight over who gets the front portion of their father's house. Must a judge decide it — or can they settle?*

1 IN ONE LINE

Where elements of settlement exist, the court shall refer the dispute to **Arbitration, Conciliation, Judicial settlement (incl. Lok Adalat) or Mediation**.

S.89 — four doors out of the courtroom

Mode	Law	Result	Consent?
Arbitration	A&C Act 1996	Award — binding	Both parties
Conciliation	A&C Act 1996	Settlement = award	Both parties
Lok Adalat	LSA Act 1987	Deemed decree, final, fee refunded	Court can refer
Mediation	Court rules	Settlement → decree	Court can refer

A · C · J · M

GET IT — SIMPLY

- **S.89:** where elements of settlement exist, the court refers the dispute to one of four modes — **A-C-J-M**.
- **Arbitration** and **Conciliation** (A&C Act 1996) — need **consent** of both parties.
- **Judicial settlement incl. Lok Adalat** (Legal Services Authorities Act 1987) — award is a **decree**, final, **court fee refunded**.
- **Mediation** — neutral mediator; settlement → decree. (Afcons: the definitions of judicial settlement and mediation in S.89(2) are to be read interchanged.)
- **Procedure — O.X r.1A–1C:** after admissions/denials, the court directs parties to choose a mode; if it fails, they return to court.
- Not suitable for ADR (Afcons): representative suits, election matters, fraud/forgery, criminal offences, cases of minors and persons of unsound mind.
- Commercial disputes: **pre-institution mediation** is mandatory (S.12A CC Act; Patil Automation).

§ SECTIONS TO QUOTE

S.89 Settlement of disputes outside the court — arbitration, conciliation, judicial settlement including Lok Adalat, mediation.

O.X r.1A Court to direct parties to opt for a mode of settlement.

O.X r.1B–1C Appearance before the conciliatory forum; return to court if settlement fails.

CC Act S.12A Pre-institution mediation in commercial disputes.

REAL-LIFE STORY

Two brothers are fighting a partition suit over a family house in Old City. After the issues are framed, the judge sees that they agree on shares but quarrel only on who gets the front portion. She refers them to the **court-annexed mediation centre**. With the mediator's help they agree on a swap with a small cash adjustment; the court passes a decree on the settlement and the court fee is refunded.

GOLDEN RULES — REMEMBER THESE

- ★ S.89 four modes — **A-C-J-M**: Arbitration · Conciliation · Judicial settlement/Lok Adalat · Mediation.
- ★ Arbitration & conciliation need **consent**; Lok Adalat & mediation don't (Afcons).
- ★ Lok Adalat award = **decree, final, fee refunded**.
- ★ Procedure: **O.X r.1A–1C**.

⚖ Afcons Infrastructure Ltd v Cherian Varkey Construction Co (P) Ltd
(2010) 8 SCC 24

STORY A dispute about payments under a construction subcontract; the trial court referred it to arbitration under S.89 even though one party did not consent.

HELD The Supreme Court explained S.89 in detail: (1) the court need not formulate detailed terms — a summary of the dispute is enough; (2) **arbitration and conciliation need consent of both parties**; Lok Adalat and mediation do not; (3) the definitions of 'judicial settlement' and 'mediation' in S.89(2) were mixed up by a drafting error and should be read interchanged; (4) it listed cases **unsuitable for ADR** — representative suits, election matters, cases involving fraud, forgery, criminal offences, and cases needing protection of courts (minors, persons of unsound mind).

WHY IT MATTERS The leading case on S.89 — always cite it, especially the list of unsuitable cases.

⚖ Salem Advocate Bar Association v Union of India
(2005) 6 SCC 344

STORY Challenge to the 1999/2002 amendments including S.89.

HELD The Court upheld S.89 and approved **model mediation rules** prepared by a committee for adoption by High Courts.

WHY IT MATTERS Shows how mediation became part of every civil court.

IN THE EXAM

Write it like this: Essay on S.89: the four modes table + procedure (O.X r.1A–1C) + Afcons (unsuitable cases) + benefits.

UNIT II · TOPIC 23

23 Framing of issues

★★☆ asked in 4 of 23 papers · 6-mark note ×1 · 15-mark essay ×2 · 10-mark problem ×1

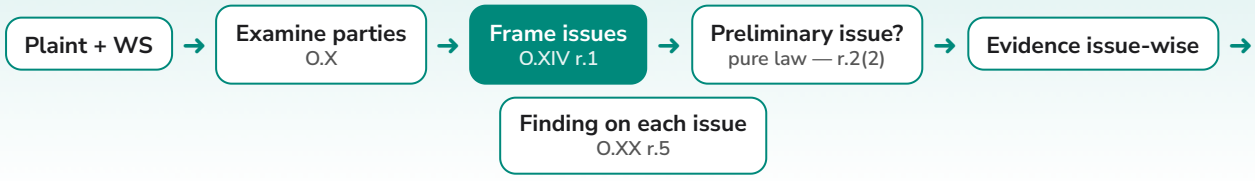
O.XIV r.1–7 · O.XV

Think first: *After reading both sides, what exactly is the judge going to decide? Who writes those questions?*

1 IN ONE LINE

An issue arises when a **material proposition of fact or law is affirmed by one party and denied by the other**. Issues are the exam paper the trial must answer.

From pleadings to issues to findings



GET IT — SIMPLY

- **Issue (O.XIV r.1)** = a **material proposition** of fact or law **affirmed by one party and denied by the other**.
- Kinds: issues of **fact** and of **law**. Each issue names the **burden** ('onus on plaintiff').
- Framed at the **first hearing**, after reading the pleadings and examining the parties (O.X), from: statements on oath, pleadings, interrogatories, documents (r.3).
- **r.2(2):** judgment on **all** issues — but a **pure issue of law** on **jurisdiction** or a **bar by law** can be tried **first** (preliminary issue). A mixed question (limitation needing evidence) cannot (Ramesh B. Desai).
- **r.5:** issues can be amended, added or struck out any time **before the decree**.
- **O.XV:** parties not at issue at all → **judgment at once**.
- Proper issues are the court's duty — they tell parties what to prove (Makhan Lal Bangal).

§ SECTIONS TO QUOTE

O.XIV r.1 Framing of issues — material propositions; issues of fact and law.

O.XIV r.2 Judgment on all issues; issue of law (jurisdiction / bar by law) may be tried first.

O.XIV r.3 Materials from which issues are framed.

O.XIV r.5 Amend, add or strike out issues before decree.

O.XV r.1 Parties not at issue — judgment at once.

✎ REAL-LIFE STORY

In Swathi v Raghu (recovery of ₹4 lakh): Issues framed — (1) Whether the plaintiff proves that the defendant borrowed ₹4 lakh on 10-1-2024? *(onus: plaintiff)* (2) Whether the defendant proves repayment of ₹1 lakh? *(onus: defendant)* (3) Whether the suit is within limitation? (4) To what relief? Issue (3) is a pure question of law on the admitted dates, so the court may try it **first** (r.2(2)).

★ GOLDEN RULES — REMEMBER THESE

- ★ Issue = material proposition **affirmed by one, denied by the other**.
- ★ Framed at the **first hearing**; amended any time **before decree** (r.5).
- ★ Preliminary issue only for **pure law — jurisdiction or bar** (r.2(2)).
- ★ Not at issue at all → **judgment at once** (O.XV).

⚖ Ramesh B. Desai v Bipin Vadilal Mehta

(2006) 5 SCC 638

STORY In a company-law matter, limitation was raised as a preliminary issue though it depended on disputed facts.

HELD Held: a plea of limitation can be tried as a preliminary issue **only if it is a pure question of law** on admitted facts; where it depends on evidence (a mixed question), it must be decided with the other issues.

WHY IT MATTERS The guiding case on preliminary issues under r.2(2).

⚖ Makhan Lal Bangal v Manas Bhunia

(2001) 2 SCC 652

STORY In an election petition, issues were framed loosely without pinpointing the real dispute.

HELD The Court stressed that **framing proper issues is the duty of the court**, so that the parties know what they have to prove; issues must arise from the pleadings and pinpoint the real controversy.

WHY IT MATTERS Use it to show why issues matter.

✍ IN THE EXAM

- **C · 10-mark** Aug/Sept 2013 — In a suit for specific performance of sale agreement of agricultural land by 'A' to 'B', Court decides to frame incidental issue 'whether 'B' is a...
- **B · 15-mark** December 2010 — Critical note on framing of issues

Write it like this: 'What is an issue? How are issues framed?' — definition, kinds, materials (r.3), preliminary issue (r.2(2)), amendment (r.5) + Ramesh Desai.

✓ Check yourself — Unit II

1. Name the four fundamental rules of pleading in O.VI r.2.
2. Plaint shows on its face the suit is time-barred. Return or reject?
3. Time to file a written statement in an ordinary suit? In a commercial suit?
4. Which survives if the plaintiff withdraws his suit — set-off or counter-claim?
5. After trial begins, when can a pleading be amended?
6. Which two S.89 modes need the consent of both parties?

Answers: 1. Facts not law · material facts · not evidence · concisely · **2.** Reject — O.VII r.11(d) · **3.** 30 days, up to 90 (directory) · 120 days (mandatory) · **4.** Counter-claim (O.VIII r.6D) · **5.** Only if, despite due diligence, the point could not be raised earlier (proviso to O.VI r.17) · **6.** Arbitration and conciliation (Afcons)

UNIT III

The trial, interim protection and execution

The hearing days, the evidence, the protection the court gives while the case is pending, the judgment — and then the hardest part: getting what the decree promises.

The story of this unit. Meena's suit reaches the courtroom. Walk through it in the order a trial actually runs: the **first hearing** and what happens when someone **doesn't turn up** (Topics 24–25) → **witnesses, documents and evidence** (26–29) → **commissions and costs** (30) → **protection while the case is pending** — injunction and receiver (31) → **judgment and decree** (32) → **execution**: who executes, S.47, the modes, arrest, attachment and sale (33–36) → and the court's **safety valves** — restitution and inherent powers (37). *Unit III carries the heaviest weight in the papers — ex parte, injunctions and execution are asked almost every year.*

24	Appearance of parties, examination of parties and adjournments	★☆☆	p. 50
25	Non-appearance of parties and ex parte proceedings	★★★	p. 52
26	Summoning and attendance of witnesses	★☆☆	p. 54
27	Discovery, production, impounding and return of documents	☆☆☆	p. 55
28	Examination of witnesses and admissions	★☆☆	p. 56
29	Hearing of the suit and affidavits	★★☆	p. 58
30	Commissions and costs	★★☆	p. 59
31	Stay, temporary injunctions and receivers	★★★	p. 61
32	Judgment, decree, interest and interim orders	★★☆	p. 64
33	Execution — concept, courts and general principles	★☆☆	p. 65
34	Powers of the executing court, S.47 and the execution procedure	★☆☆	p. 67
35	Modes of execution — including arrest and detention	★★★	p. 68
36	Attachment and sale in execution	★★☆	p. 70
37	Restitution, inherent powers and other general provisions	★★☆	p. 72

UNIT III · TOPIC 24

24 Appearance of parties, examination of parties and adjournments

★☆☆ asked in 1 of 23 papers · 6-mark note ×1

O.IX r.1 · O.X r.1–4 · O.XVII r.1–3

Think first: *On the first day of hearing, the judge asks the defendant: 'Do you admit you signed this?' Why ask — isn't that the trial?*

1 IN ONE LINE

On the fixed day both sides appear; the judge **asks each party what it admits and denies** (O.X); and adjournments are allowed only for sufficient cause — **not more than three times to a party**.

The first hearing in five steps

Appear (O.IX r.1) → Admit or deny? (O.X r.1) → Oral questions (O.X r.2) → S.89 referral (O.X r.1A) →

Adjournment only for sufficient cause — max 3 (O.XVII)

Three adjournments — then the court moves on

GET IT — SIMPLY

- **O.IX r.1:** parties attend on the day fixed in the summons — in person or by pleader.
- **O.X r.1:** at the first hearing the court asks each side what it **admits and denies**, and records it. **r.2** — it may orally question parties or persons with them. **r.4** — if the pleader can't answer, the party must come; refusing without excuse → judgment against him.
- O.X is **not evidence-taking** — it narrows the dispute; what is recorded binds the party. Then the court sends parties to S.89 settlement (r.1A–1C).
- **Adjournments (O.XVII r.1):** only for **sufficient cause**, with **reasons** and **costs** — **no more than three times to a party**.
- Not sufficient cause: pleader busy in another court; pleader's illness (unless the party couldn't engage another in time).
- **r.2:** default on the adjourned day → O.IX modes. **r.3:** party given time does nothing → court may **decide forthwith**.
- Courts must end the 'adjournment culture' (Shiv Cotex).

§ SECTIONS TO QUOTE

O.IX r.1 Parties to appear on the day fixed in the summons.

O.X r.1–2 Court to ascertain admissions and denials and may orally examine parties.

O.X r.4 Consequence of refusal or inability of pleader to answer.

O.XVII r.1 Adjournment for sufficient cause; max three times to a party; costs.

O.XVII r.2–3 Procedure on default on the adjourned date; deciding the suit forthwith.

REAL-LIFE STORY

In a rent suit, the tenant's lawyer seeks a fourth adjournment saying his senior is 'busy in the High Court'. Under the O.XVII proviso, a pleader being engaged in another court is **not** a ground, and three adjournments have already been granted. The judge refuses, and proceeds under **r.3** to decide the suit on the evidence available.

GOLDEN RULES — REMEMBER THESE

- ★ O.X = **admit or deny?** — narrows the dispute; not evidence.
- ★ Adjournment: **sufficient cause + reasons + costs**; **max 3 per party**.
- ★ Pleader busy elsewhere ≠ sufficient cause.
- ★ Party fails to act after time → court may **decide forthwith** (O.XVII r.3).

⚖ Shiv Cotex v Tirgun Auto Plast Pvt Ltd

(2011) 9 SCC 678

STORY The plaintiff repeatedly sought adjournments and failed to lead evidence; the trial court closed its evidence, but the High Court gave it another chance.

HELD The Supreme Court criticised the 'adjournment culture' and held that O.XVII and its proviso must be followed: **a party that does not lead evidence despite opportunities cannot complain** when the court proceeds; adjournments cannot be given mechanically.

WHY IT MATTERS The leading modern case on adjournments — use it with the 'three adjournments' rule.

IN THE EXAM

- A · 6-mark August 2021 (2-hour paper) — Adjournments

Write it like this: Short note on 'Adjournments' — O.XVII r.1 proviso (three times) + r.2 + r.3 + Shiv Cotex.

25

UNIT III · TOPIC 25

Non-appearance of parties and ex parte proceedings

★ ★ ★ asked in 9 of 23 papers | 6-mark note ×3 | 15-mark essay ×2 | 10-mark problem ×6

O.IX r.2–14 | S.96(2) | Art. 122–123 Limitation Act

Think first: *Hema was in hospital on the hearing date and lost the case ex parte. Is that the end for her?*

1 IN ONE LINE

Who turns up decides what happens: **neither party → dismissed; only defendant → dismissed; only plaintiff → ex parte**. And there are four ways to undo an ex parte decree.

O.IX — who turned up decides the result

Who appears?	Rule	Result	Remedy
Neither party	r.3	Suit dismissed	Fresh suit or restore (r.4)
Only plaintiff (summons served)	r.6	**Ex parte** hearing / decree	r.7 before decree · r.13 after
Only defendant	r.8	Suit **dismissed** (decree on any admission)	No fresh suit (r.9) — restore

Nobody → dismissed · Only defendant → dismissed · Only plaintiff → ex parte

GET IT — SIMPLY

- The court's response depends on **who turns up** (see the picture).
- **r.2, 5:** plaintiff didn't pay process fee / didn't seek fresh summons in **7 days** → dismissal.
- **r.4:** after r.2/r.3 dismissal — **fresh suit** (within limitation) or **restoration** on sufficient cause.
- **r.7:** defendant against whom the case is going ex parte may come in **before the decree**, show **good cause**, and be heard.
- **r.9:** suit dismissed under r.8 → **no fresh suit**; only an application to **restore** (30 days, Art. 122).
- **r.13:** ex parte decree set aside if (a) **summons not duly served** or (b) **sufficient cause** for absence — within **30 days** (Art. 123). Proviso: mere **irregular** service is no ground if he knew the date in time. Explanation: no r.13 once an appeal is decided.
- 'Sufficient cause' is read **liberally** (G.P. Srivastava). **r.14:** notice to the other side before setting aside.
- Four remedies run side by side, but once r.13 fails, the same absence-grounds can't be re-argued in appeal (Bhanu Kumar Jain).

Four ways to undo an ex parte decree

1 O.IX r.13	2 Appeal — S.96(2)	3 Review — O.XLVII	4 Suit for fraud
same court · 30 days · not served / sufficient cause	on merits of the record	if review grounds exist	if the decree was obtained by fraud

§ BARE ACT — READ IT LIKE THIS · O.IX R.13

> *'In any case in which a decree is passed ex parte against a defendant, he may apply to the Court by which the decree was passed for an order to set it aside; and if he satisfies the Court that the summons was not duly served, or that he was prevented by any sufficient cause from appearing … the Court shall make an order setting aside the decree…'*

decree is passed ex parte	Only for decrees; before decree the route is r.7.
to the Court by which the decree was passed	Same court — not the appellate court.
summons was not duly served	Ground 1 — no proper service.
prevented by any sufficient cause	Ground 2 — illness, accident, genuine reason; read liberally.
the Court shall	Once a ground is proved, setting aside is a must, on terms as to costs.
Proviso / Explanation	Irregular service but knew in time → no; appeal already decided → no r.13.

§ SECTIONS TO QUOTE

O.IX r.3, 4 Neither party appears — dismissal; fresh suit or restoration.

O.IX r.8, 9 Only defendant appears — dismissal; bar of fresh suit; restoration for sufficient cause.

Lim. Art. 122, 123 Restoration — 30 days; set aside ex parte decree — 30 days.

O.IX r.6, 7 Only plaintiff appears — ex parte; defendant may be heard before decree on good cause.

S.96(2) Appeal lies from an original decree passed ex parte.

✎ REAL-LIFE STORY

Hema is sued for ₹6 lakh. She was in hospital for surgery on the hearing date, and the court passed an **ex parte decree**. Within 30 days she files an application under **O.IX r.13** with her discharge summary — 'sufficient cause' is shown, and the decree is set aside on payment of costs. She could also have filed an **appeal under S.96(2)**, but once the appeal is decided she cannot file r.13 (Explanation).

★ GOLDEN RULES — REMEMBER THESE

- ★ Neither → **dismiss** (r.3). Defendant only → **dismiss** (r.8). Plaintiff only → **ex parte** (r.6).
- ★ r.13: **not duly served** OR **sufficient cause** — within **30 days** (Art. 123).
- ★ Four remedies: **r.13 · appeal S.96(2) · review · suit for fraud**.
- ★ Irregular service but notice in time → **no** setting aside (r.13 proviso).

⚖ Bhanu Kumar Jain v Archana Kumar

(2005) 1 SCC 787

STORY After an ex parte decree, the defendant's O.IX r.13 application was dismissed; he then filed an appeal under S.96(2) and tried to argue again that he had sufficient cause for absence.

HELD The Supreme Court held that the two remedies — r.13 and the S.96(2) appeal — are **concurrent**, but once the r.13 application is rejected, the defendant **cannot re-agitate the same grounds of absence** in the appeal; in the appeal he can only show that the decree is wrong on the material on record.

WHY IT MATTERS The leading case on the relationship between the remedies against an ex parte decree.

⚖ G.P. Srivastava v R.K. Raizada

(2000) 3 SCC 54

STORY The defendant missed a hearing for reasons beyond his control; the courts below refused to set aside the ex parte decree.

HELD Held: 'sufficient cause' in O.IX r.13 must be **construed liberally** to advance justice, especially where the defendant was not guilty of negligence or inaction; once sufficient cause is shown, the court has no discretion to refuse.

WHY IT MATTERS Use it for the meaning of 'sufficient cause'.

IN THE EXAM

- C · 10-mark Nov/Dec 2009 — Ex parte decree passed against the defendant — what remedies does he have?
- C · 10-mark Undated (Code 1025, Part C only) — Remedies of a defendant after an ex parte decree

Write it like this: 'Remedies against an ex parte decree' has come at least five times — list the four remedies, then explain r.13 with Bhanu Kumar Jain.

UNIT III · TOPIC 26

26 Summoning and attendance of witnesses

★ ☆ ☆ asked in 1 of 23 papers · 10-mark problem ×1

O.XVI r.1–21 · O.XVI-A · S.30–32 · S.132–133

Think first: *X wants the President of India as a witness in a civil suit. Can a civil court summon her?*

1 IN ONE LINE

A party must **list its witnesses within 15 days** of the issues being framed, pay their expenses, and the court can **compel** them to attend.

Getting a witness into court



GET IT — SIMPLY

- **O.XVI r.1:** file the **list of witnesses within 15 days** after issues are settled; others only with the court's permission.
- **r.1A:** you may simply **bring** a witness without a summons.
- **r.2–4:** deposit the witness's **travel and daily expenses** first. **r.6:** summons only to **produce a document**.
- **r.10–13:** witness ignores summons → **proclamation → warrant → attachment & sale → fine** up to ₹5,000.
- **r.14:** court may itself call any person (court witness). **r.19:** personal attendance only within local limits or within 100 km (200 km with public transport).
- **S.132:** women who by custom don't appear in public — exempt. **S.133: President, Vice-President, Speaker, Ministers, Judges of SC/HC, Governors** — exempt from personal appearance; evidence **by commission**.
- **O.XVI-A:** witnesses in prison.

The 2020 problem, solved

Can the court summon the President?

No personal appearance	Yes, evidence still possible
S.133 exempts the President (and VP, Speaker, Ministers, Judges, Governors).	By **commission** (O.XXVI r.1) — the commissioner records it.

§ SECTIONS TO QUOTE

O.XVI r.1 List of witnesses not later than 15 days after settlement of issues.

O.XVI r.2 Expenses to be paid into court.

S.132–133 Exemptions of certain women and of high dignitaries from personal appearance.

O.XVI r.1A Witness may be produced without summons.

O.XVI r.10–13 Witness failing to attend — proclamation, warrant, attachment, fine.

✎ REAL-LIFE STORY

In a road-accident damages suit, Kavya lists the autorickshaw driver and the hospital doctor as witnesses within 15 days of the issues being framed and deposits their travel costs. The doctor ignores the summons twice. The court issues a **bailable warrant** (r.10) to secure his attendance.

★ GOLDEN RULES — REMEMBER THESE

- ★ List of witnesses: **15 days after issues** (r.1).
- ★ Pay **expenses** first (r.2). Defaulting witness: **proclamation → warrant → attachment → fine**.
- ★ Exempt: **S.132** (certain women), **S.133** (President, Ministers, Judges, Governors…).

✍ IN THE EXAM

- **C · 10-mark** 2020 — 'X' want the presence of the president of India, as witness in a Civil Suit. Can the court issue summons to the President of India? Give reasons.

Write it like this: Most questions here are short notes — O.XVI r.1 + r.10 + S.133 cover them.

UNIT III · TOPIC 27

27 Discovery, production, impounding and return of documents

★ ★ ★ not asked so far — read for understanding

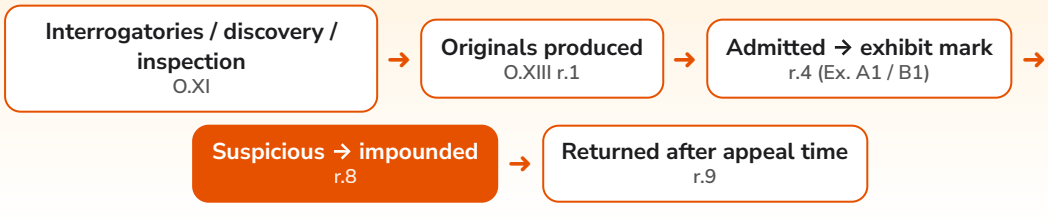
O.XI **O.XIII r.1–11**

? **Think first:** *A 1998 sale deed looks as if a page was replaced. What can the judge do with it — today and after the case?*

1 IN ONE LINE

Parties can **force each other to disclose** facts and documents (O.XI); originals are **produced, marked, impounded if suspicious, and returned** later (O.XIII).

Life of a document in court



GET IT — SIMPLY

- **Discovery (O.XI)** — pre-trial tools to learn the other side's case: **interrogatories** with leave, answered on affidavit (r.1, 8); **discovery** of documents on oath (r.12); **inspection** (r.15).
- **r.21:** refuse discovery → **plaintiff's suit dismissed / defendant's defence struck out**.
- **Production (O.XIII):** originals **on or before settlement of issues** (r.1); irrelevant ones **rejected** with reasons (r.3).
- **r.4:** admitted documents get the **exhibit mark** (Ex. A1 plaintiff, Ex. B1 defendant) — but marking is **not proof** of contents (Sait Tarajee).
- **r.8 — impounding:** suspicious, forged-looking or under-stamped documents can be kept in the court's custody.
- **r.9 — return:** only after the **appeal time** is over or the appeal decided — or earlier if a **certified copy** is substituted.

§ SECTIONS TO QUOTE

O.XI r.1, 12, 15 Interrogatories; discovery of documents; inspection.

O.XIII r.1, 3, 4 Originals before issues; rejection of irrelevant documents; endorsement on admitted documents.

O.XIII r.9 Return of admitted documents after the appeal period or on substituting a certified copy.

O.XI r.21 Non-compliance — suit dismissed or defence struck out.

O.XIII r.8 Court may impound a document.

✎ REAL-LIFE STORY

In a property suit, the defendant produces a 1998 sale deed that looks as if a page has been replaced. The plaintiff alleges forgery. The judge marks it as **Ex. B3**, and orders it **impounded** (O.XIII r.8) and kept in the court's safe so that a handwriting expert can examine it later. After the appeal period, the defendant can ask for its return under r.9.

★ GOLDEN RULES — REMEMBER THESE

- ★ O.XI = **interrogatories · discovery · inspection**; non-compliance → dismissal / defence struck out.
- ★ O.XIII: **originals before issues · reject · exhibit mark · impound · return**.
- ★ Exhibit mark ≠ proof (**Sait Tarajee**).
- ★ Return only **after appeal time** or on substituting a **certified copy**.

⚖ Sait Tarajee Khimchand v Yelamarti Satyam

(1972) 4 SCC 562

STORY Account books were marked as exhibits but no witness proved their entries.

HELD Held: the **mere marking of a document as an exhibit does not dispense with proof** of its contents; marking is only for identification. The party must still prove the document and its truth.

WHY IT MATTERS A classic point for O.XIII r.4 — exhibit marking is not proof.

IN THE EXAM

Write it like this: 'Impounding of documents' or 'Return of documents' — short notes with r.8 and r.9 and one example.

UNIT III · TOPIC 28

28 Examination of witnesses and admissions

★★★ asked in 2 of 23 papers · 6-mark note ×2

O.XVIII r.4–17 **O.XII r.1–9**

Think first: *The defendant's own letter says 'we admit ₹7 lakh is due'. Must the plaintiff still wait years for a full trial?*

1 IN ONE LINE

Examination-in-chief is now **by affidavit**; cross-examination follows in court or before a commissioner. And anything clearly **admitted need not be proved** — the court may pass judgment on admissions at any stage (O.XII r.6).

How a witness is examined (O.XVIII)

Chief — on affidavit → Cross — court / commissioner → Re-examination → Recall if needed (r.17)

GET IT — SIMPLY

- **O.XVIII r.4:** examination-in-chief **by affidavit**; cross and re-examination by the **court or a commissioner** (Ameer Trading).
- Order: **chief → cross → re-examination**. **r.17** court may **recall** a witness; **r.18** inspect property; **r.16** examine a witness about to leave immediately.
- **Admissions (O.XII):** notice admitting the other's case (r.1); **notice to admit documents** (r.2) and **facts** (r.4) — 15 days; a document not denied is deemed admitted (r.2A).
- **r.6 — judgment on admissions:** admissions in pleadings **or otherwise** (letters, replies, statements) → court may give judgment **at any stage** to that extent (Uttam Singh Duggal).
- The admission must be **clear and unequivocal**; it may be inferred from pleadings and conduct (Karam Kapahi).

Judgment on admissions — the shortcut

Has the other side clearly admitted part of the claim?

Yes	No / vague
O.XII r.6 — decree for the admitted part **now**; trial only for the rest.	Full trial on that part.

§ SECTIONS TO QUOTE

O.XVIII r.4 Examination-in-chief by affidavit; cross and re-examination by court or commissioner.

O.XVIII r.17 Court may recall and examine a witness.

O.XII r.1, 2, 4 Notice of admission; notice to admit documents and facts.

O.XII r.6 Judgment on admissions at any stage.

REAL-LIFE STORY

In a suit for ₹10 lakh of unpaid bills, the defendant company's reply letter says: 'We admit ₹7 lakh is due; the balance ₹3 lakh is disputed for quality defects.' The plaintiff applies under **O.XII r.6**. The court passes a **decree for ₹7 lakh at once** and continues the trial only for the disputed ₹3 lakh.

GOLDEN RULES — REMEMBER THESE

- Chief **by affidavit**; cross by **court or commissioner** (O.XVIII r.4).
- Court can **recall** a witness (r.17).
- Judgment on admissions: **pleading or otherwise**, **any stage** (O.XII r.6).
- Admission must be **clear and unequivocal**.

⚖ Ameer Trading Corporation Ltd v Shapoorji Data Processing Ltd
(2004) 1 SCC 702

STORY The question was whether evidence in a suit could be taken on affidavit and cross-examination before a commissioner under the amended O.XVIII r.4.

HELD The Court upheld the procedure: examination-in-chief on **affidavit** and cross-examination before a commissioner are valid ways of recording evidence, introduced to save court time; the court retains control and can direct evidence to be recorded in court.

WHY IT MATTERS The case on the modern method of recording evidence.

⚖ Uttam Singh Duggal & Co Ltd v United Bank of India
(2000) 7 SCC 120

STORY The defendant company's letters and records clearly admitted a debt to the bank. The bank sought judgment on admissions.

HELD Held: under O.XII r.6, admissions may be in pleadings **'or otherwise'** — letters, correspondence, statements — and the court can pass judgment on them at any stage; the object is to enable a party to get a speedy judgment to the extent of the admitted claim.

WHY IT MATTERS The leading case on judgment on admissions.

IN THE EXAM

- A · 6-mark Jan/Feb 2017 — Admission — definition
- A · 6-mark April/May 2022 — Admissions

Write it like this: 'Judgment on admissions' is a favourite short note — r.6 + Uttam Singh Duggal + one example like the one above.

UNIT III · TOPIC 29

29 Hearing of the suit and affidavits

★★☆ asked in 4 of 23 papers · 6-mark note ×4

O.XVIII r.1–3 · O.XIX r.1–3

Think first: *The tenant admits the lease and the arrears, but says the law bars the suit. Who should argue first?*

IN ONE LINE

The **plaintiff has the right to begin**, unless the defendant admits the facts and argues only on law or new facts. Affidavits must be confined to **facts within the deponent's own knowledge**.

Who has the right to begin?

Does the defendant admit the plaintiff's facts?

No	Yes — only law / new facts in issue
Plaintiff begins — he must prove his facts.	**Defendant begins** (O.XVIII r.1).

GET IT — SIMPLY

- **Right to begin (O.XVIII r.1):** **the plaintiff begins** — unless the defendant **admits the facts** and argues only **law** or **additional facts**; then the **defendant begins**.
- **r.2:** party beginning states his case and evidence → other side states case and evidence → first party replies. Written arguments allowed; time for oral arguments may be limited.
- **r.3A:** a party who will be a witness must appear **before his other witnesses**.
- **Affidavits (O.XIX):** court may order a fact to be proved by affidavit (r.1); deponent can be called for **cross-examination** (r.2).
- **r.3:** affidavits only on facts within the deponent's **own knowledge** — statements of **belief** allowed only in **interlocutory** applications, with grounds.
- An affidavit is **not 'evidence'** unless the court orders under O.XIX (or law provides, like O.XVIII r.4) (Sudha Devi).

§ SECTIONS TO QUOTE

O.XVIII r.1 Right to begin — plaintiff, unless defendant admits facts and relies on law or additional facts.

O.XVIII r.2 Statement and production of evidence; written arguments.

O.XVIII r.3A Party to appear before his other witnesses.

O.XIX r.1–3 Proof by affidavit; cross-examination of deponent; contents of affidavits.

REAL-LIFE STORY

In a suit for arrears of rent, the tenant admits the lease and the unpaid amount but says the suit is barred by the Rent Control Act (a point of law). Since he **admits the facts** and relies only on law, the **tenant begins** under r.1.

GOLDEN RULES — REMEMBER THESE

- ★ Right to begin = **plaintiff**, unless defendant **admits facts** and argues **law / new facts**.
- ★ Affidavit = **own knowledge**; **belief** only in interlocutory matters with grounds (O.XIX r.3).
- ★ Affidavit is evidence only by **court order** (Sudha Devi).

⚖ Sudha Devi v M.P. Narayanan

(1988) 3 SCC 366

STORY A party relied on affidavits to prove facts, without the court having ordered proof by affidavit.

HELD Held: **affidavits are not included in the definition of 'evidence'** under S.3 of the Evidence Act, and can be used as evidence only if the court, for sufficient reason, passes an order under O.XIX r.1 or 2.

WHY IT MATTERS The key case on the status of affidavits.

IN THE EXAM

- **A · 6-mark** Nov/Dec 2009 — Affidavit

Write it like this: 'Right to begin' and 'Contents of affidavits' are both short-note favourites — one paragraph each.

30 UNIT III · TOPIC 30 Commissions and costs

★★☆ asked in 6 of 23 papers · 6-mark note ×2 · 15-mark essay ×3 · 10-mark problem ×2

S.75–78 **O.XXVI r.1–22** **S.35** **S.35A** **S.35B** **O.XX-A**

Think first: *Two neighbours show two different survey sketches. Must the judge go to the site with a tape measure?*

1 IN ONE LINE

The court can **send someone out** to record evidence, inspect a site, check accounts or divide property (commissions); and the **loser pays the costs** (S.35).

S.75 — seven kinds of commission

1 Examine witnesses
sick, exempt, far away

2 Local investigation
measure, value, mesne profits — r.9

3 Accounts
r.11

4 Partition
after preliminary decree — r.13

5 Scientific
expert tests — r.10A

6 Sale
perishable goods

7 Ministerial act
r.10B

➜ GET IT — SIMPLY

- **Commissions (S.75)** — the court sends a commissioner to: examine **witnesses** · make a **local investigation** · examine **accounts** · make a **partition** · hold a **scientific** investigation · **sell** perishable property · do a **ministerial act**.
- **O.XXVI:** r.1, 4, 4A witnesses (sick, exempt, outside jurisdiction); **r.9 local investigation** (measure land, market value, mesne profits); r.10A scientific; r.11 accounts; r.13 partition.
- **r.10(2):** commissioner's report and evidence are **part of the record**; he can be examined.
- **Costs (S.35):** in the court's discretion — normally **costs follow the event** (loser pays); reasons if not.
- **S.35A:** false or vexatious claim/defence → **compensatory costs up to ₹3,000** (Vinod Seth: ceiling unrealistic — award realistic costs).
- **S.35B:** costs for causing delay — payment is a **condition precedent** to continuing the suit or defence.

Costs at a glance

Section	Kind of costs	Key point
S.35	General costs	Follow the event; reasons if not
S.35A	Compensatory	False/vexatious — up to ₹3,000
S.35B	Delay costs	Pay first, then continue

§ SECTIONS TO QUOTE

S.75 Power of the court to issue commissions.

S.35 Costs in the court's discretion; reasons if costs do not follow the event.

S.35B Costs for causing delay — condition precedent to further prosecution.

O.XXVI r.1, 9, 10A, 11, 13 Commissions to examine witnesses, local investigation, scientific investigation, accounts, partition.

S.35A Compensatory costs for false or vexatious claims — up to ₹3,000.

REAL-LIFE STORY

In an encroachment dispute at Nizampet, each side produces a different survey sketch. The court appoints an **Advocate-Commissioner with a Mandal surveyor** under **O.XXVI r.9** to measure the plots. His report shows a 2-foot encroachment; it becomes part of the record, and both sides can cross-examine him.

GOLDEN RULES — REMEMBER THESE

- ★ Commissions (S.75): **examine · local investigation · accounts · partition · scientific · sale · ministerial act**.
- ★ Commissioner's report is **part of the record** (r.10(2)).
- ★ Costs **follow the event** (S.35); false claims **₹3,000** (S.35A); delay costs are a **condition precedent** (S.35B).

⚖ Vinod Seth v Devinder Bajaj
(2010) 8 SCC 1

STORY A High Court asked the plaintiff to give an undertaking to pay damages to the defendant if his suit failed — as a condition for continuing the suit.

HELD The Supreme Court set this aside: the CPC does not allow such a condition. It observed that S.35A's ceiling of ₹3,000 is unrealistic and recommended that **realistic costs** be awarded so that false litigation is discouraged.

WHY IT MATTERS The leading modern case on costs — use it with S.35 and S.35A.

⚖ Salem Advocate Bar Association v Union of India
(2005) 6 SCC 344

STORY Challenge to the CPC amendments.

HELD The Court observed that costs should be **actual reasonable costs**, including the cost of the time spent by the successful party, to discourage frivolous litigation and adjournments.

WHY IT MATTERS Supports the call for realistic costs.

IN THE EXAM

- C · 10-mark June/July 2011 (backlog) — Remedies under the CPC for encroachment on a neighbouring plot
- C · 10-mark 2014 — "A" purchased a center plot admeasuring 400 Sq.yards, who is a second purchaser. While constructing "A" encroached 150 Sq.yards of the adjacent...

Write it like this: 'Local investigation (O.XXVI r.9)' and 'Compensatory costs (S.35A)' are typical short notes.

UNIT III · TOPIC 31

31 Stay, temporary injunctions and receivers

★★★ asked in 9 of 23 papers · 6-mark note ×9 · 15-mark essay ×1 · 10-mark problem ×3

S.94 · O.XXXIX r.1–10 · O.XL r.1–5 · S.10 (stay of suit) · O.XLI r.5 (stay in appeal)

Think first: *Laxmi's neighbour starts building a wall across her passage tonight. The suit will take years. What stops the wall now?*

1 IN ONE LINE

A temporary injunction is granted only when **three locks open together**: a **prima facie case**, the **balance of convenience**, and **irreparable injury**.

The three locks of an injunction

1. **Prima facie case** — a serious question to be tried
2. **Balance of convenience** — more harm if refused than if granted
3. **Irreparable injury** — money can't make it good

All three → temporary injunction (Dalpat Kumar)

P · B · I — all three must open

GET IT — SIMPLY

- **'Stay' has three meanings:** stay of **suit** (S.10/S.151) · stay of **execution** (O.XXI r.26; appeal court O.XLI r.5 — an appeal is **not a stay**; needs substantial loss, no delay, security) · **temporary injunction** (O.XXXIX).
- **O.XXXIX r.1:** property in danger of being **wasted, damaged, alienated** or sold in execution; defendant about to **dispose** of property to cheat creditors; or threatening to **dispossess/injure** the plaintiff. **r.2:** to restrain a breach of contract or other injury.
- Three locks must open together — **prima facie case · balance of convenience · irreparable injury** (Dalpat Kumar) — plus clean hands and no delay.
- **r.3:** notice first — **ex parte** only if delay would defeat the object, with **reasons recorded** (Shiv Kumar Chadha); **r.3A:** decide within **30 days**.
- **r.2A:** disobedience → **attachment** + **civil prison up to 3 months**. **r.4:** vary or vacate.
- **Receiver (O.XL):** where **just and convenient** — to manage, collect rents, preserve property; an **officer of the court**, not anyone's agent; furnishes security and accounts. Five 'panch sadachar' rules (Krishnaswamy Chetty).
- Appellate courts should not disturb the trial court's injunction discretion unless perverse (Wander v Antox).

Temporary v perpetual

	Temporary injunction	Perpetual injunction
Law	O.XXXIX CPC	Ss.37–42 Specific Relief Act
When	During the suit	In the final decree
Purpose	Keep the status quo	Final decision on rights

BARE ACT — READ IT LIKE THIS · O.XXXIX R.1

> *'Where in any suit it is proved by affidavit or otherwise — (a) that any property in dispute … is in danger of being wasted, damaged or alienated by any party … or wrongfully sold in execution…, or (b) that the defendant threatens, or intends, to remove or dispose of his property with a view to defrauding his creditors, or (c) that the defendant threatens to dispossess the plaintiff or otherwise cause injury to the plaintiff in relation to any property in dispute… the Court may by order grant a temporary injunction…'*

proved by affidavit or otherwise	Interim stage — affidavits and documents are enough.
(a) wasted, damaged, alienated	Protect the disputed property itself.
(b) defrauding his creditors	Stop the defendant emptying his pockets before the decree.
(c) dispossess … or injury	Protect the plaintiff's possession — Laxmi's passage.
the Court may	Discretion — exercised on the three tests, not automatically.

§ SECTIONS TO QUOTE

O.XXXIX r.1–2 Cases in which a temporary injunction may be granted.

O.XXXIX r.3, 3A Notice before injunction; ex parte with reasons; decide within 30 days.

O.XLI r.5 Appeal not a stay; stay on substantial loss, no delay, security.

O.XXXIX r.2A Disobedience — attachment and civil prison up to 3 months.

O.XL r.1–4 Appointment, remuneration, duties and liability of receivers.

✎ REAL-LIFE STORY

Laxmi's neighbour starts digging foundations and builds a wall into her 5-ft passage in Uppal. She sues for a permanent injunction and applies under **O.XXXIX r.1(c)**. She shows the sale deed and plan (**prima facie case**); stopping a half-built wall harms the neighbour less than losing the passage (**balance of convenience**); a wall once built would block her access permanently (**irreparable injury**). The court grants an ex parte interim injunction recording reasons, and hears both sides within 30 days.

★ GOLDEN RULES — REMEMBER THESE

- ★ Injunction locks: **P-B-I** — **P**rima facie case · **B**alance of convenience · **I**rreparable injury (Dalpat Kumar).
- ★ Ex parte only with **reasons** (Shiv Kumar Chadha); decide in **30 days** (r.3A).
- ★ Disobedience → **attachment + civil prison up to 3 months** (r.2A).
- ★ Receiver = **officer of the court**; 'just and convenient'; **panch sadachar**.
- ★ Appeal is **not** a stay (O.XLI r.5).

⚖ Dalpat Kumar v Prahlad Singh

(1992) 1 SCC 719

STORY In a suit for specific performance, the plaintiff sought a temporary injunction restraining the sale of the property.

HELD The Supreme Court explained the **three essentials**: (1) a prima facie case — a bona fide dispute raised needing investigation; (2) irreparable injury — material injury that cannot be adequately compensated by damages; (3) balance of convenience — comparative mischief or hardship likely to arise from granting or refusing. These are not mechanical rules but guides to judicial discretion.

WHY IT MATTERS The must-quote case for every injunction answer.

⚖ Morgan Stanley Mutual Fund v Kartick Das

(1994) 4 SCC 225

STORY A consumer forum granted an ex parte interim injunction against an IPO without notice.

HELD The Court laid down guidelines for **ex parte injunctions**: grant only where irreparable harm would ensue, where refusal would cause greater injustice, considering the time when the applicant first noticed the act, whether he acquiesced, and that the applicant must show utmost good faith; the injunction should be for a limited period.

WHY IT MATTERS Explains when r.3's 'defeated by delay' exception applies.

⚖ Shiv Kumar Chadha v Municipal Corporation of Delhi

(1993) 3 SCC 161

STORY Civil courts were routinely granting ex parte injunctions against demolition of unauthorised constructions.

HELD Held: the proviso to O.XXXIX r.3 is **mandatory** — when granting an ex parte injunction, the court must record reasons why the object would be defeated by delay.

WHY IT MATTERS Reasons are compulsory for ex parte injunctions.

IN THE EXAM

- C · 10-mark June/July 2011 (backlog) — Remedies under the CPC for encroachment on a neighbouring plot
- C · 10-mark 2014 — "A" entered in to an agreement of sale of his property with "B". "B" agreed to the offer of "A" and paid sufficient amount to wards advance....

Write it like this: Injunction essays are near-certain: grounds (r.1, 2) + P-B-I with Dalpat Kumar + ex parte (r.3, 3A, Shiv Kumar Chadha) + disobedience (r.2A) + one example.

UNIT III · TOPIC 32

32 Judgment, decree, interest and interim orders

★★☆ asked in 5 of 23 papers · 6-mark note ×4 · 15-mark essay ×1

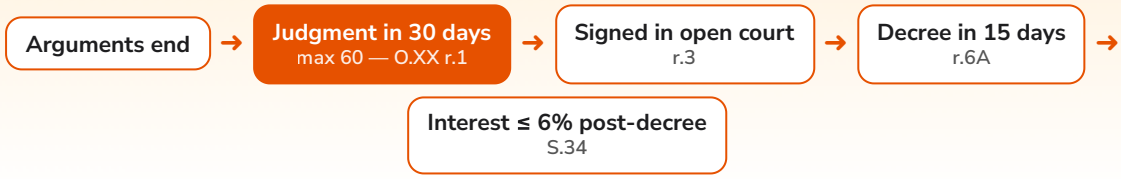
S.33 · S.34 · O.XX r.1–20 · S.2(2), (9), (14) · S.94

Think first: *After all the arguments, when must the judge decide — and what must the decision contain?*

1 IN ONE LINE

After the hearing the court **pronounces judgment** (ordinarily within 30 days, at most 60), and a **decree is drawn up** that agrees with it.

From arguments to decree — the clock



GET IT — SIMPLY

- **S.33:** after hearing, the court pronounces **judgment**; a **decree** follows.
- **O.XX r.1:** in open court — ordinarily within **30 days**, at most **60 days** with reasons. A judgment is not a judgment until **pronounced** (Surendra Singh).
- **r.3:** dated and **signed** in open court — after that, changed only for clerical slips (S.152) or on review.
- **r.4–5:** contents — **concise statement · points for determination · decision · reasons**; a finding on **each issue**. A cryptic order is no judgment (Balraj Taneja).
- **r.6, 6A:** the **decree** agrees with the judgment; drawn up within **15 days**; till then the last para of the judgment acts as the decree.
- Special decrees: possession and **mesne profits** (r.12), specific performance (r.12A), accounts, **partition** (r.18 — preliminary then final).
- **Interest (S.34):** suit-to-decree at a reasonable rate; decree-to-payment **up to 6%** (more in commercial transactions).
- **Interim orders (S.94):** arrest/attachment before judgment, injunction, receiver, other interlocutory orders — to keep justice from being defeated.

O.XX r.4 — what a judgment contains

1 Concise statement	2 Points	3 Decision	4 Reasons
what the case is	for determination	on each point / issue	why — the soul of a judgment

§ SECTIONS TO QUOTE

S.33 Judgment after hearing; decree follows.

O.XX r.1, 3 Pronouncement within 30 (max 60) days; signing; no alteration except S.152 / review.

O.XX r.4–5 Contents of judgment; finding on each issue.

O.XX r.6, 6A Contents of decree; drawn up within 15 days.

S.34 Interest — up to 6% after decree (higher in commercial transactions).

S.94 Supplemental proceedings — arrest, attachment, injunction, receiver, other interlocutory orders.

✎ REAL-LIFE STORY

The judge finishes hearing arguments in a money suit on 2 May. She pronounces judgment on 25 May (within 30 days): decree for ₹8 lakh with **interest at 9% from the suit to the decree** (contract rate), and **6% from the decree till payment** (S.34). The decree is drawn up on 5 June (within 15 days).

★ GOLDEN RULES — REMEMBER THESE

- ★ Judgment: **30 days, max 60** (O.XX r.1); **signed** = final (r.3).
- ★ Contents: **case · points · decision · reasons** (r.4); finding on **each issue** (r.5).
- ★ Decree agrees with judgment, drawn in **15 days** (r.6A).
- ★ Post-decree interest **≤ 6%** (S.34), more in commercial cases.

⚖ Surendra Singh v State of Uttar Pradesh

AIR 1954 SC 194

STORY A judge wrote and signed a judgment but died before it was delivered in court; another judge pronounced it.

HELD The Supreme Court held that a judgment is the **final decision of the court intimated to the parties and the world at large** by formal pronouncement in open court; a judgment written but not delivered is not a judgment of the court.

WHY IT MATTERS Explains why *pronouncement* is essential — use it with O.XX r.1 and r.3.

⚖ Balraj Taneja v Sunil Madan

(1999) 8 SCC 396

STORY A decree was passed without reasons after the defendant failed to file a WS.

HELD Held: a judgment must state the **points, decisions and reasons** (O.XX r.4–5); a cryptic order is not a judgment.

WHY IT MATTERS Contents of a judgment.

✍ IN THE EXAM

- **B · 15-mark** June/July 2011 (backlog) — Interim orders a court may pass; purpose of appointing commissions
- **A · 6-mark** Nov/Dec 2009 — Interim orders

Write it like this: If asked 'Judgment and its contents' — S.2(9) + S.33 + O.XX r.1, 3, 4, 5 + Surendra Singh.

UNIT III · TOPIC 33

33 Execution — concept, courts and general principles

★★★ asked in 1 of 23 papers · 6-mark note ×1

S.36–46 **O.XXI r.1–9** **Art. 136 Limitation Act**

? **Think first:** *Prakash won a money decree in Hyderabad, but the debtor and his house are now in Warangal. Which court makes him pay?*

1 IN ONE LINE

Execution is the process of **turning the decree into reality**. It is done by the court that passed the decree, or by the court to which it is sent.

Transfer of a decree for execution

Decree passed — Hyderabad → Apply to transfer (S.39) → Warangal court executes (same powers — S.42) → Certifies result (S.41)

GET IT — SIMPLY

- **Execution** = turning the decree into reality through the court — money, property, an act or a restraint. 'A litigant's troubles begin after the decree' (Rahul S. Shah).
- **S.36:** execution rules apply to **orders** too. **S.38:** executed by the court that **passed** it or the court it is **sent** to (S.37 explains 'court which passed').
- **S.39:** send the decree where the JD **resides/works**, where his **property** is, where the **land** to be sold or delivered is, or for other recorded reasons. A court can't execute **outside its jurisdiction** (S.39(4)).
- **S.42:** the transferee court has the **same powers**. **S.40** another State; **S.44A** reciprocating countries; **S.46 precept** — ask another court to attach (2 months).
- **O.XXI r.1–2:** payment into court or out of court — out-of-court payment must be **certified** (30 days, Art. 125).
- **Limitation:** execute within **12 years** (Art. 136); **mandatory injunction — no limit**. Courts should finish execution within **six months** (Rahul S. Shah).

§ SECTIONS TO QUOTE

S.36 Execution provisions apply to orders too.

S.37–38 Court which passed the decree, or court to which it is sent, executes.

S.39 Transfer of decree for execution; no execution outside the court's jurisdiction.

S.42 Powers of the transferee court.

S.46 Precepts — attachment by another court on request.

O.XXI r.1–2 Modes of paying money; payment out of court must be certified.

Lim. Art. 136 Execution within 12 years; mandatory injunction — no limit.

REAL-LIFE STORY

Prakash gets a money decree from the Hyderabad City Civil Court against Gopal, who has since moved to Warangal and owns a house there but nothing in Hyderabad. Prakash applies under **S.39** to transfer the decree to the Warangal court, which executes it with the **same powers (S.42)** by attaching and selling the Warangal house.

GOLDEN RULES — REMEMBER THESE

- ★ Executes: **court that passed** or **court it is sent to** (S.38).
- ★ Transfer grounds (S.39): **JD resides / has property / land is there / other reason**.
- ★ Transferee court has the **same powers** (S.42); **precept** = attach on request (S.46).
- ★ Execution limit **12 years** (Art. 136); mandatory injunction — **no limit**.

⚖ Rahul S. Shah v Jinendra Kumar Gandhi

(2021) 6 SCC 418

STORY A decree-holder had been fighting for years to get possession under a decree because of objections in execution.

HELD The Supreme Court, noting that **'the difficulties of a litigant begin after obtaining a decree'**, issued directions: the trial court should examine the property and third-party interests while trying the suit itself; executing courts should decide objections speedily and **complete execution within six months** of filing, with explanations for any delay.

WHY IT MATTERS The key modern case on the problems of execution and the court's duty to speed it up.

IN THE EXAM

- A · 6-mark April/May 2023 — Execution

Write it like this: 'Who can execute a decree?' — S.37, 38, 39, 42 with an example of transfer.

UNIT III · TOPIC 34

34 Powers of the executing court, S.47 and the execution procedure

★★★ asked in 1 of 23 papers · 6-mark note ×1

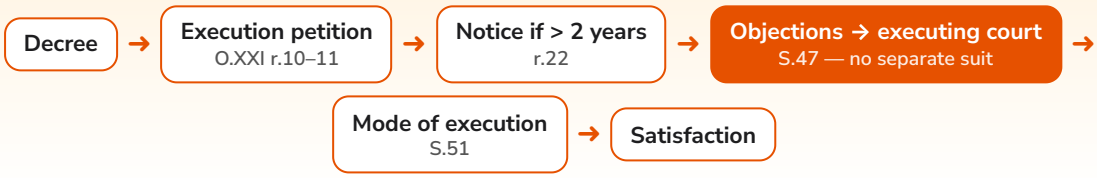
S.47 · S.48–50 · O.XXI r.10–26 · O.XXI r.97–106

Think first: *The judgment-debtor says the decree itself is wrong. Can the executing court reconsider it?*

IN ONE LINE

All questions **between the parties relating to execution** must be decided by the executing court itself — **not by a separate suit** (S.47). And the executing court **cannot go behind the decree**.

The execution road



GET IT — SIMPLY

- **S.47:** every question between the **parties** about **execution, discharge or satisfaction** is decided by the **executing court — not by a separate suit**. Auction-purchaser counts as a party.
- The executing court **cannot go behind the decree** — only a **nullity** (no inherent jurisdiction, apparent on record) can be attacked in execution (Vasudev Modi).
- S.47 questions: executable? satisfied? property liable? identity of property? limitation? legal representatives (S.50 — liable only to the extent of the deceased's estate)?
- **Procedure (O.XXI):** apply (r.10) — **oral** for a money decree when the JD is in court, else **written** with particulars (r.11); transferee of decree (r.16); **notice to JD** if applying **after 2 years** (r.22); order execution (r.23); **stay** for reasonable time (r.26).
- **Resistance to possession (r.97–106):** all questions — even **title** — decided **in execution itself** (r.101); the order has the force of a decree (r.103). Frivolous objections attract costs (Rahul S. Shah).

SECTIONS TO QUOTE

S.47 Questions relating to execution, discharge or satisfaction — decided by the executing court, not by a separate suit.

O.XXI r.10–11 Application for execution — oral (money decree) or written with particulars.

O.XXI r.97–103 Resistance to delivery of possession — all questions decided in execution; force of a decree.

S.50 Execution against legal representatives — limited to the deceased's property in their hands.

O.XXI r.22 Notice to show cause where application is more than 2 years after decree.

REAL-LIFE STORY

Akbar has a decree for possession of a shop. When the bailiff arrives, the judgment-debtor's cousin resists, saying he is a tenant of the shop. Akbar applies under **O.XXI r.97**; the executing court enquires and decides the cousin's claim **in the execution proceeding itself** (r.101) — no separate suit is needed.

GOLDEN RULES — REMEMBER THESE

- ★ S.47 = **parties + execution/discharge/satisfaction** → executing court only; **no separate suit**.
- ★ Executing court **cannot go behind the decree** — except a **nullity** (Vasudev Modi).
- ★ Notice to JD if execution sought **after 2 years** (r.22).
- ★ Obstruction to possession → decided **in execution** (r.97–103).

⚖ Vasudev Dhanjibhai Modi v Rajabhai Abdul Rehman
(1970) 1 SCC 670

STORY In execution of an eviction decree, the tenant objected that the Small Cause Court had no jurisdiction to pass it.

HELD The Supreme Court held that the **executing court cannot go behind the decree** — it cannot question the decree on the ground that it is erroneous in law or fact. Only where the decree is a **nullity** — the court lacked inherent jurisdiction — can the objection be raised in execution, and such a defect must appear on the face of the record.

WHY IT MATTERS The leading case on the limits of the executing court's power.

⚖ Rahul S. Shah v Jinendra Kumar Gandhi
(2021) 6 SCC 418

STORY Execution was being stalled by repeated objections by third parties.

HELD The Court directed executing courts to decide objections under O.XXI r.97–106 promptly and **not to entertain frivolous objections**; it may award costs and even order police assistance to deliver possession.

WHY IT MATTERS Shows how the r.97 procedure is meant to work.

IN THE EXAM

- **A · 6-mark** Jan/Feb 2015 — Execution petition

Write it like this: 'Questions to be determined by the executing court (S.47)' — define, give the bar on separate suit, the 'cannot go behind the decree' rule and Vasudev Modi.

UNIT III · TOPIC 35

35 Modes of execution — including arrest and detention

★★★ **asked in 10 of 23 papers** | 6-mark note ×4 | 15-mark essay ×5 | 10-mark problem ×3

S.51 **S.55–59** **O.XXI r.30–40**

Think first: *Murali owes ₹4 lakh, drives a new car, and pays nothing. Can the court send him to prison? Could it send a woman debtor?*

1 IN ONE LINE

A decree may be executed by **delivery of property, attachment and sale, arrest and detention, appointment of a receiver, or any other mode** the case needs (S.51). Arrest for a money decree is allowed only if the judgment-debtor **can pay but will not**.

S.51 — five modes of execution

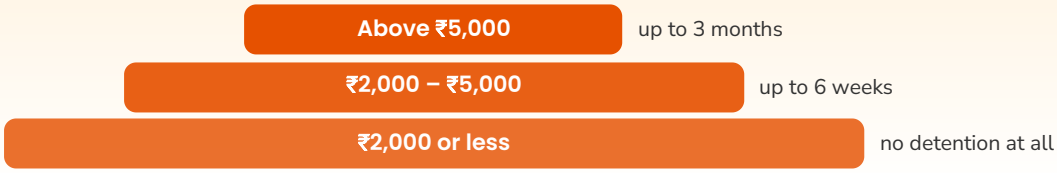
1 Delivery	2 Attachment & sale	3 Arrest & detention	4 Receiver	5 Other mode
of the specific property	of JD's property	only if can pay but won't	to manage/collect	as the relief needs

D · A · A · R · O

GET IT — SIMPLY

- **S.51 — five modes:** **delivery · attachment & sale · arrest & detention · receiver · any other mode**.
- **Proviso — arrest for a money decree** only after a show-cause and reasons, where the JD: is likely to **abscond** or has **dishonestly transferred/concealed** property; or **has the means and refuses or neglects** to pay; or owes it in a **fiduciary** capacity.
- Poverty alone is no ground — some **bad faith** is needed (Jolly George Varghese, read with **Art. 21**).
- Decree-wise: money → arrest/attachment/both (r.30); movable → seizure (r.31); **specific performance / injunction** → detention and/or attachment (r.32); land → delivery (r.35).
- **S.55:** no entry into a dwelling-house **between sunset and sunrise**. **S.56:** **no woman** arrested for a money decree. **S.57:** decree-holder pays subsistence.
- **S.58:** > ₹5,000 → up to **3 months**; ₹2,000–5,000 → **6 weeks**; ≤ ₹2,000 → **no detention**. Release doesn't wipe out the debt; no re-arrest on the same decree.
- Procedure: notice (r.37) → warrant (r.38) → **inquiry** into means (r.40). **S.135–135A:** judges, parties/witnesses attending court, legislators in session — exempt.

S.58 — how long in civil prison?



§ BARE ACT — READ IT LIKE THIS · S.51 PROVISO

> *'Provided that where the decree is for the payment of money, execution by detention in civil prison shall not be ordered unless, after giving the judgment-debtor an opportunity of showing cause ... the Court, for reasons recorded in writing, is satisfied — (a) that the judgment-debtor ... is likely to abscond ... or has ... dishonestly transferred, concealed, or removed any part of his property...; or (b) that the judgment-debtor has, or has had since the date of the decree, the means to pay ... and refuses or neglects...; or (c) that the decree is for a sum for which the judgment-debtor was bound in a fiduciary capacity to account.'*

shall not be ordered unless	Arrest is the exception — the rule is no arrest.
opportunity of showing cause	Natural justice — r.37 notice first.
reasons recorded in writing	The order must show why.
(a) abscond / dishonest transfer	Running away or hiding property.
(b) has the means ... refuses	Ability + unwillingness — bad faith (Jolly George).
(c) fiduciary capacity	Trustee-type money, e.g. an agent holding funds.

§ SECTIONS TO QUOTE

S.55 Arrest — no entry into a dwelling-house between sunset and sunrise.

S.56 No arrest of women in execution of money decrees.

S.58 Period of detention and release.

O.XXI r.30–32 Modes for money decrees, movables, specific performance and injunctions.

O.XXI r.37, 40 Show-cause notice and inquiry before arrest.

✎ REAL-LIFE STORY

Murali owes ₹4 lakh under a decree. He drives a new car, and his salary slips show a good income, but he pays nothing. After **notice (r.37)** and an **inquiry (r.40)**, the court records that he **has the means but refuses to pay** (S.51 proviso (b)) and orders detention for up to **3 months** (S.58). If the JD were a woman, she could not be arrested at all under **S.56**.

★ GOLDEN RULES — REMEMBER THESE

- ★ Modes (S.51): **D-A-A-R-O** — **D**elivery · **A**ttachment & sale · **A**rrest · **R**eceiver · **O**ther.
- ★ Arrest for money only if **can pay + will not** / absconding / fiduciary (S.51 proviso; **Jolly George**).
- ★ No night entry (S.55); **no women** for money decrees (S.56).
- ★ S.58: **>₹5,000 → 3 months; ₹2,000–5,000 → 6 weeks; ≤₹2,000 → none**.

⚖ Jolly George Varghese v Bank of Cochin

(1980) 2 SCC 360

STORY Judgment-debtors were ordered to be arrested in execution of a money decree only because they had not paid, without any inquiry into their present means.

HELD Krishna Iyer J. held that under the proviso to S.51, read with **Article 21** of the Constitution and Article 11 of the ICCPR ('no one shall be imprisoned merely on the ground of inability to fulfil a contractual obligation'), a JD cannot be detained merely because he is poor; there must be **some element of bad faith** — present ability to pay and wilful refusal, or dishonest transfer. Mere past means are not enough.

WHY IT MATTERS The landmark case on arrest and detention — write it in every answer on S.51 or S.58.

✍ IN THE EXAM

- **C · 10-mark** May/June 2010 (backlog) — Decree-holder seeks civil prison for a judgment-debtor who has no property — can he succeed?
- **C · 10-mark** 2020 — 'A' filed E.P. against 'B' and sought for attachment and sale of property of 'B'. He further prayed for the arrest of 'B'. Can he do so?

Write it like this: 'Arrest and detention in execution' — S.51 proviso + S.55, 56, 58 + Jolly George. Problems on arresting a woman, at night, or a poor debtor come often.

UNIT III · TOPIC 36

36 Attachment and sale in execution

★★☆ asked in 5 of 23 papers · 6-mark note ×2 · 15-mark essay ×1 · 10-mark problem ×3

S.60 **S.61–64** **O.XXI r.41–96**

? **Think first:** *Ganesh, a Siddipet farmer, owes ₹3 lakh. Can the decree-holder take his plough, bullocks, seed and the house he lives in?*

1 IN ONE LINE

The decree-holder can **attach and sell the judgment-debtor's property** — but certain things can **never** be attached (S.60). A court-auction sale can be set aside by **depositing the money (r.89)** or for **material irregularity or fraud (r.90)**.

S.60 — what can NEVER be attached

1 Clothes & vessels
beds, bedding, religious ornaments

2 Tools & farm needs
artisan's tools; plough, cattle, seed

3 Farmer's / labourer's house
occupied by him

4 Pension
government and other pensions

5 Wages
labourers, domestic servants

6 Salary
₹1,000 + ⅔ of the rest exempt

7 PF / PPF / insurance
compulsory deposits

8 Right to sue / expectancy
spes successionis; future maintenance

GET IT — SIMPLY

- **S.60(1):** almost all saleable property of the JD can be attached — land, houses, goods, money, cheques, debts, shares.
- **Never attachable (proviso)** — the picture lists the favourites: clothes and cooking vessels · **artisan's tools** · **farmer's implements, cattle, seed** · house of an **agriculturist/labourer** · books of account · mere **right to sue** · **pension** · **wages** · **salary — first ₹1,000 + ⅔ of the rest** · PF/PPF · **expectancy of succession** · future **maintenance**.
- **How:** movables — **actual seizure** (r.43); debts/shares — **prohibitory order** (r.46); salary — order to employer (r.48); land — **prohibitory order, drum-beat and affixing** (r.54).
- **S.64:** any private transfer after attachment is **void against the attachment**. **r.58:** third-party claims decided by the executing court.
- **Sale:** proclamation after notice to JD (r.66 — mandatory, Desh Bandhu Gupta) · decree-holder bids only with leave (r.72) · buyer pays **25% at once, balance in 15 days** (r.84–85).
- **Undo the sale: r.89** — deposit decree amount + **5% of price** for the buyer (60 days) · **r.90** — material irregularity/fraud + substantial injury · **r.91** — JD had no saleable interest · **r.92** — otherwise sale becomes **absolute**; certificate (r.94).

Attachment to auction

Attach r.43 / 46 / 54 → **Proclamation** notice to JD — r.66 → **Auction** 25% now, rest in 15 days → **Set aside?** r.89 deposit + 5% · r.90 fraud → **Sale absolute** r.92 · certificate r.94

§ SECTIONS TO QUOTE

S.60 Property liable to attachment and sale; proviso lists exempt property (salary: ₹1,000 + ⅔ of the rest).

S.64 Private alienation after attachment is void against claims under the attachment.

O.XXI r.54 Attachment of immovable property — prohibitory order, proclamation.

O.XXI r.58 Adjudication of claims and objections to attachment.

O.XXI r.84–86 Deposit of 25%; balance in 15 days; default.

O.XXI r.89–92 Setting aside sale — deposit; irregularity/fraud; no saleable interest; sale absolute.

REAL-LIFE STORY

Ganesh, a farmer in Siddipet, has a money decree of ₹3 lakh against him. The decree-holder seeks to attach his **plough, bullocks and seed-grain**, and his **farm house** where he lives. All are **exempt under S.60(1)(b) and (c)**. His fixed deposit and a second plot of land can be attached.

GOLDEN RULES — REMEMBER THESE

- ★ Exempt: **clothes · tools · farmer's implements & house · pension · wages · salary (₹1,000 + ⅔) · PF · right to sue · expectancy · maintenance**.
- ★ Attachment of land = **prohibitory order** (r.54); transfer after it is **void** (S.64).
- ★ Purchaser: **25% at once, balance in 15 days** (r.84–85).
- ★ Set aside sale: **deposit + 5%** (r.89) · **irregularity/fraud + substantial injury** (r.90).

⚖ **Desh Bandhu Gupta v N.L. Anand & Rajinder Singh**
(1994) 1 SCC 131

STORY The JD's property was sold in execution without notice to him at the stage of settling the proclamation of sale.

HELD The Supreme Court held that **notice to the JD before the proclamation of sale (O.XXI r.66) is mandatory**; a sale held without it, which deprives him of the chance to object to the valuation and terms, is vitiated and can be set aside.

WHY IT MATTERS Shows the importance of the sale procedure and 'material irregularity'.

IN THE EXAM

- C · 10-mark June/July 2011 (backlog) — Can a debtor's pension be attached?
- C · 10-mark January 2018 — A, wants to attach the agricultural produce and implement of the judgment debtor 'X' in an execution petition for recovery of the debt. Is it...

Write it like this: Problems on attaching a pension, salary, a farmer's tools or cattle come often (2011, 2018) — check the S.60 proviso item by item.

UNIT III · TOPIC 37

37 Restitution, inherent powers and other general provisions

★★☆ asked in 4 of 23 papers · 6-mark note ×5

S.144 · S.148 · S.148A · S.151 · S.152–153

Think first: *The decree under which ₹5 lakh was recovered is reversed in appeal. Does the loser need a whole new suit to get it back?*

1 IN ONE LINE

If a decree is reversed, **things must be put back** as they were (S.144). And whenever the Code is silent, the court may use its **inherent power** to do justice (S.151).

The court's safety valves

1 S.144 Restitution	2 S.148A Caveat	3 S.151 Inherent power	4 S.152 Slips
put things back; no new suit	notice before any order; 90 days	ends of justice; not against the Code	clerical/arithmetical errors

The court's act shall harm no one

GET IT — SIMPLY

- **S.144 — restitution:** when a decree/order is **varied or reversed**, the court that passed it puts the parties back where they would have been — with **interest, damages, mesne profits**. **No separate suit** (S.144(2)); it is a **deemed decree**.
- Principle: ***actus curiae neminem gravabit*** — an act of the court shall harm no one; a party who enjoyed an interim order and loses must compensate (South Eastern Coalfields).
- **S.148:** court may extend time **it** fixed (not statutory time) — up to 30 days in all. **S.148A — caveat:** applicant must give the caveator **notice**; valid **90 days**.
- **S.151 — inherent powers:** to do **ends of justice** and prevent **abuse of process** where the Code is silent — but never **against** an express provision (Manohar Lal Chopra).
- Uses of S.151: consolidate suits, stay outside S.10, recall orders got by fraud, correct the court's own mistakes, restore where no rule applies.
- **S.152:** clerical or arithmetical slips corrected any time. **S.153:** general power to amend defects.

SECTIONS TO QUOTE

S.144 Restitution on variation or reversal of a decree; no separate suit.

S.148A Caveat — notice to caveator; valid for 90 days.

S.151 Saving of inherent powers — ends of justice; prevent abuse of process.

S.152 Correction of clerical or arithmetical mistakes.

REAL-LIFE STORY

On the strength of a trial-court decree, Srinivas recovered ₹5 lakh from Ali in execution. The appellate court reverses the decree. Ali applies under **S.144** to the trial court and gets the ₹5 lakh back **with interest** — he does not need a new suit.

GOLDEN RULES — REMEMBER THESE

- Restitution (S.144) = put parties back + interest/mesne profits; **no separate suit**; **deemed decree**.
- **Actus curiae neminem gravabit** — the act of the court harms no one.
- S.151: for **ends of justice / prevent abuse**; cannot override express provisions (Manohar Lal Chopra).
- Caveat **90 days** (S.148A).

⚖ South Eastern Coalfields Ltd v State of M.P.

(2003) 8 SCC 648

STORY A party enjoyed the benefit of an interim stay that was later vacated, and argued that it need not pay interest for the period of the stay.

HELD The Supreme Court applied the principle of restitution: **a party who loses at the end must compensate the other for the benefit it enjoyed under an interim order** — the court's act shall prejudice no one (*actus curiae neminem gravabit*). S.144 is not exhaustive; courts also have inherent power to grant restitution.

WHY IT MATTERS The leading case on restitution and its basis in justice.

⚖ Manohar Lal Chopra v Rai Bahadur Rao Raja Seth Hiralal

AIR 1962 SC 527

STORY A court issued an injunction using S.151 although O.XXXIX did not cover the situation.

HELD Held: S.151 recognises powers **inherent in every court** to do justice; they can be used where the Code is silent, but **not in conflict with what the Code expressly provides**.

WHY IT MATTERS The classic case on the scope and limits of inherent powers.

IN THE EXAM

- A · 6-mark May/June 2010 (backlog) — Caveat
- A · 6-mark July/Aug 2012 — Right to lodge a caveat

Write it like this: Short notes on 'Restitution' or 'Inherent powers' — one definition, the maxim, two uses, one case.

✓ Check yourself — Unit III

1. Only the plaintiff appears and summons was duly served. What may the court do?
2. Four remedies against an ex parte decree?
3. Three tests for a temporary injunction?
4. Can a woman be arrested in execution of a money decree?
5. How much of a salary is exempt from attachment?
6. A decree is reversed in appeal. How does the loser get his money back — new suit?

Answers: 1. Proceed ex parte (O.IX r.6(1)(a)) · **2.** O.IX r.13 · appeal S.96(2) · review · suit for fraud · **3.** Prima facie case · balance of convenience · irreparable injury (Dalpat Kumar) · **4.** No — S.56 · **5.** First ₹1,000 and two-thirds of the rest (S.60(1)(i)) · **6.** No — restitution under S.144 (no separate suit)

UNIT IV

Special suits, supplemental proceedings and the road upward

Some plaintiffs and defendants need special rules — the Government, the public, minors, the poor, the neutral stakeholder. Then: catching a debtor before he runs, and climbing the ladder of appeal, review and revision.

The story of this unit. Not every suit is Meena v Builder. Read it in three blocks: **special parties** — the Government (Topic 38), the public (39), minors and persons of unsound mind (40), the poor and the neutral stakeholder (41) → **securing the decree in advance** — arrest and attachment before judgment (42) → **going upward** — first and second appeals (43), appeals from orders (44), and reference, review and revision (45). *Government suits, indigent persons, interpleader, arrest before judgment, appeals and review/revision are all regular favourites.*

38 Suits by or against the Government and public officers ★★★ p. 75

39 Suits relating to public matters — public nuisance and public charities ★★☆ p. 77

40 Suits by or against minors and persons of unsound mind ★☆☆ p. 79

41 Suits by indigent persons and interpleader suits ★★★ p. 80

42 Incidental and supplementary proceedings — arrest and attachment before judgment ★★★ p. 82

43 Appeals from original decrees and second appeals ★★★ p. 84

44 Appeals from orders and general provisions on appeals ★☆☆ p. 86

45 Reference, review and revision ★★★ p. 88

UNIT IV · TOPIC 38

38 Suits by or against the Government and public officers

★★★ asked in 12 of 23 papers · 6-mark note ×3 · 15-mark essay ×3 · 10-mark problem ×7

S.79 S.80 S.81 S.82 O.XXVII

Think first: *GHMC plans to demolish Rafiq's house tomorrow. The law says give two months' notice before suing. Must he wait and watch?*

1 IN ONE LINE

You can sue the Government — but name it correctly (S.79), give **two months' written notice first** (S.80), and remember a decree against it **cannot be executed for three months** (S.82).

The S.80 route map

Suing the Government — is the relief urgent?

No	Yes — e.g. demolition tomorrow	Notice had small defects
Send **S.80 notice** → wait **2 months** → file the suit (plaint mentions the notice).	File **at once with leave** (S.80(2)); court hears the Government before granting relief.	**Not fatal** if it identified you and the claim (S.80(3)).

GET IT — SIMPLY

- **S.79:** name the party as **Union of India** (Central) or **State of ___** (State) — not 'the Collector' or 'Revenue Department'.
- **S.80(1):** no suit against the Government or a **public officer** (for an official act) until **two months after a written notice** — to a Secretary (Central/State), the General Manager (railways), the Collector, or the officer.
- Notice must give name, description, residence, **cause of action** and **relief**; the plaint must say notice was given.
- Object: a chance to **reconsider and settle**; the Government must act like a model litigant (Geeta Iron & Brass).
- **S.80(2): urgent relief** — sue at once **with the court's leave**; but no relief without hearing the Government; if no urgency, plaint returned.
- **S.80(3):** minor defects in the notice are **not fatal** if it identifies the plaintiff and substantially shows the claim (Ghanshyam Dass). Without (2) or (3), notice is **mandatory** (Bihari Chowdhary).
- **S.81:** no arrest or attachment before judgment of the public officer. **S.82:** decree executable only if **unsatisfied for 3 months**; no arrest.
- **O.XXVII:** Government pleader receives process (r.4); Government must be **joined** when an officer is sued (r.5A); court first tries to **settle** (r.5B).

Government suits — start to finish

Name correctly (S.79) → 2 months' notice (S.80) → Suit (O.XXVII) → Decree → Wait 3 months (S.82 — then execute)

Name it · Notice it · Wait 3 months to execute

BARE ACT — READ IT LIKE THIS · S.80(1)

> *'No suit shall be instituted against the Government ... or against a public officer in respect of any act purporting to be done by such public officer in his official capacity, until the expiration of two months next after notice in writing has been delivered to, or left at the office of ...'*

No suit shall be instituted	A bar on filing — not just on hearing.
against the Government or a public officer	Covers both; suits *by* the Government don't need it.
act ... in his official capacity	Private acts of an officer don't need notice.
two months next after notice	Count two full months from delivery.
notice in writing ... delivered	Written, to the specified office — Secretary / Collector / GM / officer.

SECTIONS TO QUOTE

- **S.79** Union of India / State as the party name.
- **S.80(2)** Urgent relief — with leave of court, without notice; show cause before relief.
- **S.80(3)** No dismissal for mere defects in the notice.
- **S.81** No arrest or attachment before judgment of a public officer; exemption from appearance.
- **S.82** Decree against Government executable only after 3 months unsatisfied.
- **O.XXVII r.5A, 5B** Government to be joined; court to assist settlement.

REAL-LIFE STORY

The GHMC demolishes part of Rafiq's compound wall in Tolichowki without notice, claiming it is on the road margin. Before suing for damages, Rafiq must send a **notice under S.80** (and under the municipal law) and wait **two months**. If the GHMC is about to demolish his **house** tomorrow, he can file at once under **S.80(2)** with the **court's leave** and seek an urgent injunction; the court will hear the GHMC before granting relief.

GOLDEN RULES — REMEMBER THESE

- ★ Name: **Union of India / State of ___** (S.79).
- ★ S.80: **2 months' written notice** — urgent cases: **leave of court** (S.80(2)); minor defects: **not fatal** (S.80(3)).
- ★ Object: chance to **settle** (Geeta Iron).
- ★ Decree against Government: **3 months**, no arrest (S.82).

⚖ State of Punjab v Geeta Iron & Brass Works Ltd
(1978) 1 SCC 68

STORY A company sent a S.80 notice to the State about money due; the State ignored it and later fought the suit on technical pleas.

HELD Krishna Iyer J. said S.80 is meant to give the Government **a chance to settle just claims without litigation**; Governments must not ignore such notices or treat them as a mere formality and then raise technical objections — they should respond as a 'model litigant'.

WHY IT MATTERS Explains the **object** of S.80 — quote it in any essay.

⚖ Bihari Chowdhary v State of Bihar
(1984) 2 SCC 627

STORY A suit was filed against the State without the two months' notice under S.80.

HELD The Court held that S.80 (before the urgent-relief exception) is **mandatory** and a suit filed without the notice is not maintainable; the provision is explicit and admits of no exceptions except those the statute itself makes.

WHY IT MATTERS Shows S.80 is mandatory — use with S.80(2) to show the 1976 relaxation.

IN THE EXAM

- C · 10-mark May/June 2010 (backlog) — Suit against the State Government without the required notice — can it succeed?
- C · 10-mark June/July 2011 (backlog) — Procedure for a district administration suing for breach of contract

Write it like this: Part C problems against GHMC / municipality / Government (2015, 2017, 2019) — check notice, urgency (S.80(2)) and the party name (S.79).

UNIT IV · TOPIC 39

39 Suits relating to public matters — public nuisance and public charities

★★☆ asked in 4 of 23 papers · 6-mark note ×4

S.91 S.92 S.93

Think first: *Fumes from a chemical godown make a whole colony sick at night, but no one has been personally hurt yet. Can anyone sue?*

1 IN ONE LINE

Wrongs against the public can be sued for by the **Advocate General, or by two or more persons with the court's leave**.

Suits for the public — two sections

	S.91 — Public nuisance	S.92 — Public trusts
About	Wrong affecting the public	Charitable/religious public trust
Who sues	AG or 2+ persons with leave	AG or 2+ **interested** persons with leave
Relief	Declaration, injunction	Remove trustee, scheme, accounts, sale...
Special point	No special damage needed	Must be for the public; cy-près (S.92(3))

Public wrong → 91 · Public trust → 92

GET IT — SIMPLY

- **S.91 — public nuisance:** suit for declaration/injunction by the **Advocate General** or **two or more persons with the court's leave** — **no special damage needed**. A person with **special damage** can still sue on his own (S.91(2)).
- **S.92 — public charitable or religious trusts:** AG or **two or more persons having an interest**, with **leave**, in the principal civil court.
- S.92 reliefs: remove/appoint trustees · vest property · direct removed trustee to hand over · **accounts** · allocate property · let/sell/mortgage · **settle a scheme** · other relief.
- **S.92(2):** these reliefs can be claimed **only** in a S.92 suit. **S.92(3) — cy-près:** if the original purpose fails, use the property for a similar charitable purpose.
- Essentials: **public** trust · charitable/religious · breach or need for directions · **suit for the public, not a personal right** (Paramatmanand) · leave.
- Leave filters out frivolous suits — better to hear the trustees before granting it (Narayana Chettiar). **S.93:** Collector may act for the AG outside presidency towns.

§ SECTIONS TO QUOTE

S.91 Public nuisance — Advocate General or two or more persons with leave; no special damage needed.

S.92(1) Public charitable/religious trusts — Advocate General or two or more interested persons with leave; reliefs (a)–(h).

S.92(2) Such reliefs can be claimed only in a suit under S.92.

S.92(3) Cy-près application of trust property.

S.93 Exercise of Advocate General's powers beyond presidency towns.

✎ REAL-LIFE STORY

A chemical godown in a residential colony at Jeedimetla leaks fumes every night. Five residents, none of whom has fallen sick, obtain **leave** and sue under **S.91** for an injunction against the public nuisance.

★ GOLDEN RULES — REMEMBER THESE

- ★ S.91: **public nuisance** — AG or **2+ persons with leave**; no special damage needed.
- ★ S.92: **public charitable/religious trust** — AG or **2+ interested persons with leave**; reliefs (a)–(h).
- ★ S.92 suit must be **for the public**, not personal (Paramatmanand).
- ★ S.92(3): **cy-près**.

⚖ Swami Paramatmanand Saraswati v Ramji Tripathi
(1974) 2 SCC 695

STORY Some persons filed a suit under S.92 about the management of a math, but their real grievance was a personal one.

HELD Held: a suit under S.92 is a **representative suit for the benefit of the public**; if the real object is to vindicate a **personal right**, it is not a S.92 suit, even if the reliefs look like those in S.92. The court must look at the allegations in the plaint to decide this.

WHY IT MATTERS The test for whether a suit falls under S.92.

⚖ R.M. Narayana Chettiar v N. Lakshmanan Chettiar
(1991) 1 SCC 48

STORY Leave under S.92 was granted without hearing the proposed defendants.

HELD Held: though not mandatory, it is **desirable that the court gives notice to the defendants before granting leave** under S.92, because the object of leave is to prevent public trusts from being harassed by frivolous suits.

WHY IT MATTERS Explains the purpose of 'leave of the court'.

IN THE EXAM

- A · 6-mark July/Aug 2012 — Suits relating to public matters
- A · 6-mark January 2019 — Suits relating to public nuisance and public charities.

Write it like this: A short note on S.92 — essentials list + reliefs + Paramatmanand.

UNIT IV · TOPIC 40

40 Suits by or against minors and persons of unsound mind

★☆☆ asked in 3 of 23 papers · 15-mark essay ×2 · 10-mark problem ×1

O.XXXII r.1–16 · O.XXXII-A

Think first: *A 12-year-old inherits a share in a flat. Who files the partition suit — and can his uncle quietly settle it?*

1 IN ONE LINE

A minor **sues through a 'next friend'** and is **defended through a 'guardian ad litem'**; neither can compromise the minor's case **without the court's leave**.

Who speaks for the minor?

	Next friend	Guardian ad litem
For	Minor **plaintiff**	Minor **defendant**
Appointed by	Acts himself	**Court** (r.3)
Who can be	Major, sound mind, no adverse interest	Same + **consent**
Compromise	Only with leave (r.7)	Only with leave (r.7)

Minor attacks → next FRIEND · Minor defends → GUARDIAN

GET IT — SIMPLY

- Minor = under **18** (Majority Act).
- **Minor plaintiff → next friend** (r.1) — suit in the minor's name; filed without one → plaint taken off the file (r.2).
- **Minor defendant → guardian ad litem**, **appointed by the court** (r.3) — continues through appeal and execution.
- **r.4:** anyone **major, of sound mind, with no adverse interest** (and consenting, for a guardian) can act; natural or court-appointed guardian preferred.
- **r.6:** can't receive money under the decree without leave. **r.7:** **no compromise without the court's leave** — otherwise **voidable** against the minor (binding on others).
- **r.8–11:** retirement, removal (adverse interest, neglect), replacement. **r.12:** on turning 18 the minor **elects** to continue or abandon.
- **r.15:** same rules for persons of **unsound mind** or unable to protect their interests.
- Decree against an **unrepresented** minor doesn't bind him. **O.XXXII-A:** family suits — settle first, in camera, welfare expert.

§ SECTIONS TO QUOTE

O.XXXII r.1 Minor sues through a next friend.

O.XXXII r.3 Guardian for the suit appointed by the court for a minor defendant.

O.XXXII r.4 Who may be next friend / guardian — major, sound mind, no adverse interest, consent.

O.XXXII r.7 No compromise without leave — otherwise voidable against the minor.

O.XXXII r.12, 15 Election on attaining majority; application to persons of unsound mind.

REAL-LIFE STORY

Twelve-year-old Ayaan inherits a share in a flat. His uncle, who lives with him, files a partition suit **as his next friend** (r.1). Midway, the uncle agrees to a compromise giving Ayaan a smaller share, without the court's leave. When Ayaan turns 18, he can **avoid the compromise** under **r.7** — it is voidable against him.

GOLDEN RULES — REMEMBER THESE

- ★ Minor plaintiff → **next friend**; minor defendant → **guardian ad litem** (court-appointed).
- ★ Who can act: **major + sound mind + no adverse interest (+ consent)** (r.4).
- ★ Compromise **without leave → voidable** against the minor (r.7).
- ★ Same rules for **persons of unsound mind** (r.15).

IN THE EXAM

- **C · 10-mark** Jan/Feb 2015 — Probate of a will in favour of a minor (procedure)
- **B · 15-mark** December 2015 (Code 3191) — How a suit is instituted against a minor

Write it like this: Typical short note — use the table, r.4 and r.7. No leading case is usually expected; the rules are tested.

UNIT IV · TOPIC 41

41 Suits by indigent persons and interpleader suits

★★★ **asked in 13 of 23 papers** 6-mark note ×8 15-mark essay ×4 10-mark problem ×1

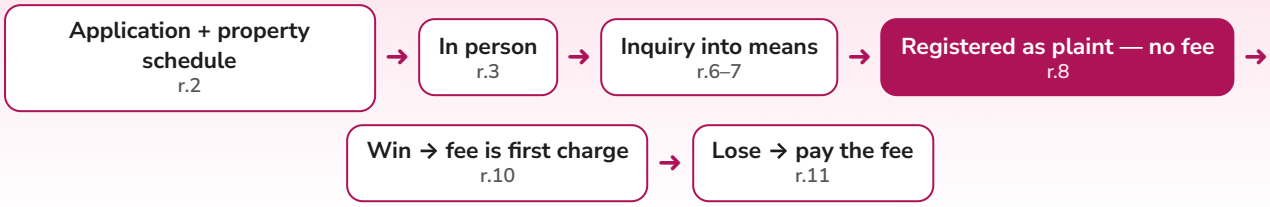
O.XXXIII r.1–18 **O.XLIV** **S.88** **O.XXXV r.1–6**

Think first: *Pushpa can't afford the court fee on a ₹15 lakh claim. And a bank holds a deposit claimed by both a widow and a son. What does the Code offer each?*

1 IN ONE LINE

A person **too poor to pay the court fee** can sue as an indigent person (O.XXXIII). A **neutral holder of money or property** claimed by two rivals can make them fight it out between themselves (interpleader).

Suing as an indigent person



→ GET IT — SIMPLY

- **Indigent person (O.XXXIII r.1):** without **sufficient means to pay the court fee** (ignoring exempt property and the suit property). Companies too (Khader International).
- Procedure: application with plaint particulars + **schedule of property** (r.2), presented **in person** (r.3), examined (r.4), notice to the other side and **Government pleader**, inquiry (r.6–7); if allowed — registered as a **plaint** (r.8).
- **r.5 rejection:** not framed properly · not indigent · **fraudulent disposal** within 2 months · no cause of action · gave someone an **interest** in the suit · barred by law · a **financier** funds the case.
- **r.10:** wins → court fee is a **first charge** on what she recovers. **r.11:** loses → she pays the fee. **r.9** permission withdrawn for vexatious conduct. **O.XLIV:** indigent appeals.
- **Interpleader (S.88; O.XXXV):** two or more claim the **same debt/property adversely**; the holder claims **no interest** (except costs) and is **ready to deliver** → he sues all claimants, deposits the thing, is **discharged** (r.4), and they **fight it out**.
- No interpleader if a suit where all rights can be decided is already **pending**; plaint must say **no collusion** (r.1); **agents and tenants** can't interplead against principals/landlords (r.5).

Interpleader — five ticks

1. Two or more persons claim the **same** debt / property
2. Their claims are **adverse** to each other
3. Plaintiff claims **no interest** (except costs)
4. He is **ready to pay or deliver** it
5. **No collusion**; no suit already pending to decide it

→ Interpleader suit (S.88) — stakeholder discharged, claimants fight

§ SECTIONS TO QUOTE

O.XXXIII r.1 Suits by indigent persons; who is an indigent person.

O.XXXIII r.5 Grounds for rejecting the application.

O.XXXIII r.10–11 Court fee — first charge if he wins; payable if he loses.

S.88 Interpleader suit — adverse claims to the same property; stakeholder with no interest.

O.XXXV r.1–5 Plaint, payment into court, stay of other suits, discharge of plaintiff; agents and tenants barred.

REAL-LIFE STORY

Pushpa, a daily-wage worker whose husband died in a lorry accident, wants to claim ₹15 lakh as damages but cannot pay the ad valorem court fee. She applies under **O.XXXIII** with a schedule of her few belongings. After an inquiry, the court lets her sue as an **indigent person**. When she wins, the court fee is recovered as a **first charge** on the damages (r.10).

GOLDEN RULES — REMEMBER THESE

- ★ Indigent = **no sufficient means to pay court fee** (exempt property and subject-matter excluded).
- ★ Rejection grounds (r.5): **not framed · not indigent · fraudulent disposal · no cause · interest given to another · barred · financier**.
- ★ Win → fee is a **first charge** (r.10); lose → **pay the fee** (r.11).
- ★ Interpleader: **adverse claims · no interest · ready to deliver · no collusion · no pending suit**; agents/tenants **can't** (r.5).

⚖ **Union Bank of India v Khader International Construction**
(2001) 5 SCC 22

STORY A company in financial trouble sought permission to sue the bank as an indigent person; the bank argued only natural persons could be 'indigent'.

HELD The Supreme Court held that the word 'person' in O.XXXIII includes **juristic persons such as companies**; a company without sufficient means to pay the court fee can sue as an indigent person. The provisions are beneficial and should be construed liberally to ensure access to justice.

WHY IT MATTERS The leading case on who can be an indigent person.

IN THE EXAM

- C · 10-mark 2017 — X is an indigent person He wants to file a suit against 'X' for recovery of Rs one lakh based on a promissory note What is the procedure that he...
- B · 15-mark January 2018 — What is meant by Inter pleader Suits? Discuss.

Write it like this: Both are short-note favourites. For interpleader, list the five essentials and add the bank-deposit example.

UNIT IV · TOPIC 42

42 Incidental and supplementary proceedings — arrest and attachment before judgment

★★★ asked in 10 of 23 papers · 6-mark note ×5 · 15-mark essay ×3 · 10-mark problem ×3

S.94 · S.95 · O.XXXVIII r.1–13 · S.75–78

Think first: *Kishore owes ₹12 lakh, has listed his flat for sale and booked a one-way ticket to Dubai. Must the creditor wait for the decree?*

IN ONE LINE

Before the suit is decided, the court may **arrest a defendant about to abscond**, or **attach property he is about to remove** — but whoever obtains such orders on insufficient grounds must **pay compensation up to ₹50,000** (S.95).

Two ways to secure the decree in advance

	Arrest before judgment	Attachment before judgment
Rule	O.XXXVIII r.1	O.XXXVIII r.5
Intent	Delay plaintiff / avoid process	Obstruct execution
Signs	Absconding, leaving India, removing property	About to dispose of / remove property
Result	Security for **appearance**	Security to **produce property**, else attach
Not allowed	Suits for immovable property	Without specifying the property

Wrongly obtained? Pay up to ₹50,000 — S.95

GET IT — SIMPLY

- **S.94:** to stop justice being defeated — arrest, attachment, injunction, receiver, other interlocutory orders.
- **Arrest before judgment (O.XXXVIII r.1):** defendant, **with intent to delay or avoid the court's process**, has **absconded / is about to**, or has **removed property**, or is about to **leave India** → warrant to show cause why he shouldn't give **security for appearance**. Paying the amount stops arrest.
- **Not in suits for immovable property** (S.16(a)–(d) kinds) — the land isn't going anywhere.
- **Attachment before judgment (r.5):** defendant, **with intent to obstruct execution**, is about to **dispose of or remove** property → security or show cause; plaintiff must **specify the property**; otherwise void (r.5(4)).
- **r.6** attach if no security; **r.9** withdrawn on security or dismissal; **r.10** strangers' earlier rights unaffected; **r.11** no re-attachment in execution.
- A **drastic power** — not to turn an unsecured debt into a secured one (Raman Tech).
- **S.95:** arrest/attachment/injunction on **insufficient grounds** → compensation **up to ₹50,000** (no separate suit).

§ SECTIONS TO QUOTE

S.94 Supplemental proceedings — arrest, attachment, injunction, receiver, interlocutory orders.

O.XXXVIII r.1 Arrest before judgment — intent to delay/avoid; absconding; leaving India.

O.XXXVIII r.9–10 Withdrawal of attachment; rights of strangers not affected.

S.95 Compensation up to ₹50,000 for arrest, attachment or injunction obtained on insufficient grounds.

O.XXXVIII r.5 Attachment before judgment — intent to obstruct execution; about to dispose/remove property.

✎ REAL-LIFE STORY

Kishore owes Nagaraju ₹12 lakh. Nagaraju learns that Kishore has listed his only flat for urgent sale and booked a one-way ticket to Dubai. Nagaraju files a money suit and applies under **O.XXXVIII r.5** (attachment of the flat before judgment) and **r.1(b)** (arrest — about to leave India). If it later turns out that Kishore was only going on a two-week holiday and the flat sale was for a bigger house in Hyderabad, Kishore can claim **compensation under S.95**.

★ GOLDEN RULES — REMEMBER THESE

- ★ Arrest before judgment: **intent to delay + absconding / leaving India** (r.1); **not** in suits for immovable property.
- ★ Attachment before judgment: **intent to obstruct execution + about to dispose/remove** (r.5); specify the property.
- ★ Drastic remedy — not to secure an unsecured debt (**Raman Tech**).
- ★ Wrongful arrest/attachment/injunction → compensation **up to ₹50,000** (S.95).

⚖ **Raman Tech. & Process Engineering Co v Solanki Traders**
(2008) 2 SCC 302

STORY A trial court ordered attachment before judgment of a defendant company's property merely because the plaintiff had a strong money claim.

HELD The Supreme Court held that attachment before judgment is a **drastic and extraordinary power** to be used sparingly and strictly in accordance with O.XXXVIII r.5. The court must be satisfied, on specific materials, that the defendant is about to dispose of or remove his property **with intent to obstruct or delay** execution. It is not meant to convert an unsecured debt into a secured one or to pressure the defendant to settle.

WHY IT MATTERS The leading case on attachment before judgment — always cite it.

IN THE EXAM

- C · 10-mark May/June 2019 — Arrest of a defendant in a suit for recovery of immovable property
- C · 10-mark February 2025 — Is arrest of a defendant permissible in a suit for recovery of immovable property?

Write it like this: 'Arrest of the defendant in a suit for immovable property' has come in 2018, 2019 and 2025 — answer: O.XXXVIII r.1 does not permit it; explain why with S.94.

UNIT IV · TOPIC 43

43 Appeals from original decrees and second appeals

★★★ asked in 10 of 23 papers | 6-mark note ×5 | 15-mark essay ×6

S.96–103 | O.XLI | O.XLII | S.100A

Think first: *Divya lost in the trial court. Can she appeal on the facts — and then go to the High Court on the facts again?*

1 IN ONE LINE

A **first appeal** lies from every original decree and re-opens **facts and law**. A **second appeal** to the High Court lies only on a **substantial question of law** (S.100).

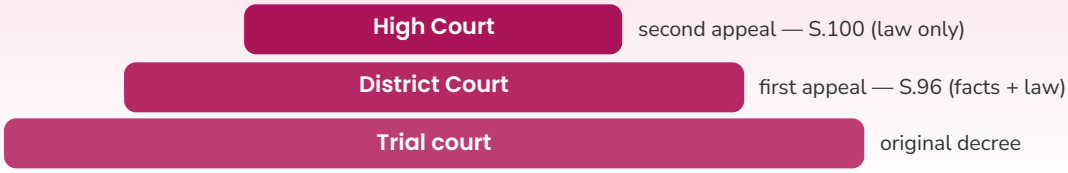
First appeal v second appeal

	First appeal — S.96	Second appeal — S.100
From	Original decree	Appellate decree
To	District Court / HC (by value)	High Court only
Scope	Facts **and** law	Only **substantial question of law**
Barred	Consent decree; small cause ≤ ₹10,000 (law only)	Money suit ≤ ₹25,000 (S.102)
Time	30 days / 90 days to HC	90 days

GET IT — SIMPLY

- **Appeal is a creature of statute** — unlike a suit, no inherent right (Ganga Bai).
- **First appeal — S.96:** from **every original decree** (also **ex parte**); **not from a consent decree**; small-cause suits up to **₹10,000** — on law only. Re-opens **facts and law**; a valuable right — reasons needed, especially when reversing (Santosh Hazari).
- **S.97:** preliminary decree not appealed can't be questioned later. **S.99:** no reversal for errors not affecting merits or jurisdiction.
- **Second appeal — S.100:** to the **High Court** from an appellate decree, only on a **substantial question of law**, formulated at admission.
- Substantial question = **debatable**, not settled (or settled law ignored), and **material** to the decision (Chunilal Mehta; Hero Vinoth). Concurrent facts aren't disturbed unless **perverse** (Gurdev Kaur).
- **S.100A:** no Letters Patent appeal from a single judge. **S.102:** no second appeal in money suits up to **₹25,000**. **S.103:** HC may decide facts in limited cases.
- **S.107** appellate powers: decide finally · remand · frame issues · additional evidence. Limitation: **90 days** to HC, **30 days** to others (Art. 116).

The appeal ladder



BARE ACT — READ IT LIKE THIS · S.100(1)

> *'Save as otherwise expressly provided … an appeal shall lie to the High Court from every decree passed in appeal by any Court subordinate to the High Court, if the High Court is satisfied that the case involves a substantial question of law.'*

decree passed in appeal	Only appellate decrees — not original decrees.
subordinate Court	District Court / Senior Civil Judge sitting in appeal.
if the High Court is satisfied	Admission is not automatic — the HC must find the question.
substantial question of law	Debatable, material to the result — not facts or evidence.
S.100(3)–(5)	Memorandum states it; HC formulates it; hearing is confined to it.

SECTIONS TO QUOTE

S.96 Appeal from original decree; ex parte decree; no appeal from consent decree; small causes ≤ ₹10,000.

S.97 Preliminary decree not appealed cannot be challenged later.

S.99 No reversal for errors not affecting merits or jurisdiction.

S.100A No Letters Patent appeal from a single judge in such appeals.

S.102 No second appeal in money suits up to ₹25,000.

S.103 High Court may decide issues of fact in certain cases.

S.107 Powers of the appellate court.

REAL-LIFE STORY

Divya loses a suit for declaration of title in the Junior Civil Judge's court. She files a **first appeal** in the District Court, which re-examines the whole evidence and reverses the decree. Her opponent cannot go to the High Court simply arguing that the District Judge 'believed the wrong witnesses' — that is a question of fact. He can file a **second appeal** only if he can frame a **substantial question of law**, e.g. 'Whether an unregistered gift deed can convey title to immovable property?'

GOLDEN RULES — REMEMBER THESE

- ★ Appeal is a **statutory right**, not inherent.
- ★ S.96: from **every original decree** (incl. ex parte); **not** from consent decree; small cause ≤ ₹10,000 — **law only**.
- ★ S.100: **High Court**, **substantial question of law**, formulated at admission.
- ★ S.102: no second appeal in money suits ≤ **₹25,000**.
- ★ Powers (S.107): **decide finally · remand · frame issues · additional evidence**.

⚖ Santosh Hazari v Purushottam Tiwari
(2001) 3 SCC 179

STORY A first appellate court reversed the trial court's findings without dealing with the reasons given by the trial court.

HELD The Supreme Court held that a **first appeal is a valuable right**: the first appellate court must address itself to all issues and decide with reasons, especially when reversing findings. It also explained that a 'substantial question of law' must be debatable and must have a material bearing on the decision.

WHY IT MATTERS The best case to describe the duty of the first appellate court and the meaning of a substantial question of law.

⚖ Sir Chunilal V. Mehta & Sons Ltd v Century Spinning & Mfg Co Ltd
AIR 1962 SC 1314

STORY The question was whether the case involved a 'substantial question of law' for an appeal to the Supreme Court.

HELD The Court laid down the test: a question is substantial if it is of **general public importance, or directly and substantially affects the rights of the parties**, and is not finally settled by the highest court, or is not free from difficulty, or calls for discussion of alternative views.

WHY IT MATTERS The classic test of 'substantial question of law'.

IN THE EXAM

- B · 15-mark December 2010 — Powers of the appellate court in first appeals
- B · 15-mark 2015 — What is an Appeal? Distinguish 'First Appeal' from 'Second Appeal'?

Write it like this: 'Distinguish first and second appeal' — the table + Santosh Hazari + Chunilal Mehta test. Very frequent in Part A and B.

UNIT IV · TOPIC 44

44 Appeals from orders and general provisions on appeals

★★★ asked in 2 of 23 papers · 15-mark essay ×2

S.104–108 · O.XLIII · O.XLI r.5, 22, 23, 23A, 25, 27, 33

Think first: *The trial court refuses Raju an injunction; the District Court agrees. Can he file a second appeal to the High Court?*

1 IN ONE LINE

Only **orders listed in S.104 and O.XLIII r.1** are appealable — and there is **no second appeal from an order**.

O.XLI — five tools of every appellate court

1 Stay — r.5	2 Cross-objection — r.22	3 Remand — r.23/23A/25	4 Additional evidence — r.27	5 Any decree — r.33
substantial loss · no delay · security	respondent, within one month	send back for (re)trial or findings	wrongly refused · due diligence · court needs it	even for non-appealing respondents

GET IT — SIMPLY

- Orders are appealable **only if listed** — **S.104** + **O.XLIII r.1**.
- Popular O.XLIII r.1 items: **return of plaint** (a) · refusing to **restore** a suit (c) · refusing to set aside an **ex parte decree** (d) · sale orders (j) · **abatement** (k) · **arrest/attachment before judgment** (q) · **injunctions** (r) · **receivers** (s) · granting **review** (w).
- **S.104(2): no second appeal from an appellate order** — at most Art. 227 supervision.
- **S.105:** an error in a non-appealable order can be raised in the appeal against the **decree**. **r.1A:** compromise objections in the decree appeal. **S.106:** appeal goes where the decree appeal would go.
- **O.XLI r.5 — stay:** appeal is **not a stay**; needs **substantial loss + no delay + security**.
- **r.22 — cross-objection** by a respondent within **one month** of notice; survives withdrawal/dismissal of the appeal.
- **r.23, 23A, 25 — remand**; **r.24** decide finally if evidence suffices; **r.33** pass any proper decree, even for non-appealing respondents.
- **r.27 — additional evidence** only if: trial court wrongly refused · not available despite **due diligence** · appellate court **requires** it — reasons recorded (Ibrahim Uddin).

§ SECTIONS TO QUOTE

S.104 Orders from which appeals lie; no appeal from an order passed in appeal under this section.

S.105 Errors in non-appealable orders may be raised in the appeal against the decree.

O.XLI r.22 Cross-objection within one month of notice.

O.XLI r.27 Additional evidence in appeal — limited grounds.

O.XLIII r.1 List of appealable orders (return of plaint, refusal to set aside ex parte decree, injunction, receiver, etc.).

O.XLI r.5 Stay — substantial loss, no delay, security.

O.XLI r.23, 23A, 25 Remand; framing issues and referring them.

✎ REAL-LIFE STORY

The trial court refuses Raju's application for a temporary injunction. He files an **appeal under O.XLIII r.1(r)** in the District Court, which also dismisses it. Raju cannot file a **second appeal** to the High Court (S.104(2)) — at most he can approach the High Court under its **supervisory jurisdiction (Art. 227)**.

★ GOLDEN RULES — REMEMBER THESE

- ★ Only **listed orders** are appealable — S.104 + **O.XLIII r.1**.
- ★ **No second appeal** from an appellate order (S.104(2)).
- ★ Stay: **substantial loss · no delay · security** (r.5).
- ★ Cross-objection: **one month** (r.22); survives dismissal of appeal.
- ★ Additional evidence: **refused wrongly · due diligence · court requires** (r.27; Ibrahim Uddin).

⚖ Shah Babulal Khimji v Jayaben D. Kania
(1981) 4 SCC 8

STORY A single judge of the Bombay High Court refused to appoint a receiver and grant an injunction on the original side; the question was whether a Letters Patent appeal lay.

HELD The Court classified orders into **final**, **preliminary** and **intermediary (interlocutory)** judgments, and held that orders listed in O.XLIII r.1 decided by a trial judge of a chartered High Court are 'judgments' under the Letters Patent and are appealable; an interlocutory order that **decides a vital right of a party** can be a 'judgment'.

WHY IT MATTERS The landmark explanation of kinds of orders and their appealability.

⚖ Union of India v Ibrahim Uddin
(2012) 8 SCC 148

STORY In a property dispute, a party sought to produce new documents at the appellate stage.

HELD Held: O.XLI r.27 is an **exception**, not a right; additional evidence can be allowed only within its narrow grounds — not to fill gaps or patch up a weak case — and the appellate court must record reasons.

WHY IT MATTERS The leading modern case on additional evidence in appeal.

IN THE EXAM

- B · 15-mark January 2019 — What are the various types of Appeals under CPC?
- B · 15-mark April/May 2022 — Procedure of appeals from original decrees and from orders

Write it like this: Short notes on 'cross-objection' and 'additional evidence in appeal' are frequent — learn r.22 and r.27 grounds.

UNIT IV · TOPIC 45

45 Reference, review and revision

★★★ asked in 11 of 23 papers · 6-mark note ×9 · 15-mark essay ×1 · 10-mark problem ×1

S.113 · O.XLVI · S.114 · O.XLVII · S.115

Think first: *Mohan found the original 1985 partition deed after losing. A Junior Civil Judge decided a ₹40-lakh suit beyond his limits. Which 'R' fits each?*

1 IN ONE LINE

Reference — a lower court **asks the High Court** a doubtful question of law. **Review** — the **same court looks again** at its own decision. **Revision** — the **High Court corrects jurisdictional errors** of subordinate courts where no appeal lies.

The three Rs — a top question

	Reference	Review	Revision
Who starts	Lower court	Aggrieved party	Aggrieved party / HC
Goes to	High Court	**Same court**	High Court
Ground	Doubt on law; validity of Act	New evidence · error apparent · sufficient reason	Jurisdictional error · illegality · material irregularity
When	Case pending	Appeal not filed / not allowed	Case decided; no appeal to HC
Note	Compulsory for validity of an Act	No second review; 30 days	Interlocutory: only if it would end the suit

Reference ASKS · Review RE-LOOKS · Revision CORRECTS

GET IT — SIMPLY

- **Reference (S.113; O.XLVI):** a lower court with a **reasonable doubt on a question of law** (in a non-appealable case) asks the **High Court**; **compulsory** where it thinks an Act/Ordinance is **invalid** and no higher court has said so.
- **Review (S.114; O.XLVII):** the **same court** looks again — when an appeal is allowed but not filed, or not allowed.
- Review grounds: **new and important evidence** (despite due diligence) · **error apparent on the face of the record** · **other sufficient reason** (analogous). **30 days** (Art. 124).
- Review rules: same judge if available (r.5); rejection **not appealable** (r.7); **no second review** (r.9). Not an **appeal in disguise** (Aribam; Kamlesh Verma).
- **Revision (S.115):** **High Court**, a **case decided** by a subordinate court, **no appeal** to the HC, and a **jurisdictional error** — (a) jurisdiction not vested, (b) failure to exercise it, (c) illegality / material irregularity.
- **Proviso (1999):** no revision of an interlocutory order unless, **decided the applicant's way, it would have ended the suit** (Shiv Shakti). Revision is no stay (S.115(3)); otherwise Art. 227.

BARE ACT — READ IT LIKE THIS · S.115(1)

> *'The High Court may call for the record of any case which has been decided by any Court subordinate to such High Court and in which no appeal lies thereto, and if such subordinate Court appears — (a) to have exercised a jurisdiction not vested in it by law, or (b) to have failed to exercise a jurisdiction so vested, or (c) to have acted in the exercise of its jurisdiction illegally or with material irregularity, the High Court may make such order in the case as it thinks fit.'*

may call for the record	Discretionary and supervisory — not a right like appeal.
case which has been decided	'Case' is wide — even part of a proceeding (S.S. Khanna).
no appeal lies thereto	If an appeal lies, use the appeal.
(a) / (b) / (c)	Only **jurisdictional** errors — not every mistake of fact or law.
Proviso	Interlocutory orders only if they would have finally disposed of the suit.

SECTIONS TO QUOTE

S.113; O.XLVI Reference to the High Court; compulsory where validity of an Act is in question.

S.114; O.XLVII r.1 Review — new evidence, error apparent, other sufficient reason; same court.

O.XLVII r.7, 9 Rejection not appealable; no second review.

REAL-LIFE STORY

After a decree, Mohan finds the **original registered partition deed of 1985** in an old trunk, which he could not trace despite searching at the time of the trial. He applies for **review** to the same court (new and important evidence, due diligence).

GOLDEN RULES — REMEMBER THESE

- ★ Reference: lower court → HC on **doubtful law**; **compulsory** if validity of an Act is in question.
- ★ Review: **same court** — **new evidence · error apparent · sufficient reason**; **no second review**; **30 days**.
- ★ Revision: **HC**, **case decided**, **no appeal**, **3 jurisdictional errors**; interlocutory only if it would **finally dispose** (Shiv Shakti).
- ★ Review ≠ appeal in disguise (**Aribam, Kamlesh Verma**).

⚖ Kamlesh Verma v Mayawati
(2013) 8 SCC 320

STORY A review petition was filed in the Supreme Court seeking to re-argue the merits of an earlier judgment.

HELD The Court summarised when review is **maintainable** (new and important evidence despite due diligence; error apparent on the face of the record; any other sufficient reason analogous to these) and when it is **not** (repetition of old arguments; minor mistakes of no consequence; an 'appeal in disguise'; an error that needs a long process of reasoning to be seen).

WHY IT MATTERS The best checklist for review.

⚖ Aribam Tuleshwar Sharma v Aribam Pishak Sharma
(1979) 4 SCC 389

STORY The High Court reviewed its own earlier judgment because it now took a different view of the law.

HELD Held: the power of review is **not an appellate power**; it may be exercised for an error apparent on the face of the record, not because the court thinks a different view is possible.

WHY IT MATTERS Classic statement that review is not an appeal in disguise.

⚖ Shiv Shakti Co-operative Housing Society v Swaraj Developers
(2003) 6 SCC 659

STORY A revision was filed against an interlocutory order after the 1999 amendment.

HELD Held: after the amended proviso, revision lies against an interlocutory order **only if that order, had it been made in favour of the applicant, would have finally disposed of the suit or proceeding**; the test is not whether the order was capable of finally disposing of the case.

WHY IT MATTERS Explains the 1999 proviso to S.115.

IN THE EXAM

- C · 10-mark May/June 2016 — A judgment was delivered against 'X' by a lower court and against that he wants to file a 'Review' petition in next appellate court. Is it...
- B · 15-mark April/May 2023 — Grounds for revision

Write it like this: 'Distinguish reference, review and revision' — the four-column table plus one case each. This is one of the most asked questions in Unit IV.

✓ Check yourself — Unit IV

1. How long a notice before suing the Government, and under which section?
2. When can a decree against the Government be executed?
3. Can a defendant be arrested before judgment in a suit for possession of land?
4. Second appeal lies only on...?
5. Three grounds of review?
6. Can an agent file an interpleader suit against his principal?

Answers: 1. Two months — S.80 · **2.** After it remains unsatisfied for three months (S.82) · **3.** No — O.XXXVIII r.1 excludes suits for immovable property · **4.** A substantial question of law (S.100) · **5.** New evidence (due diligence) · error apparent · other sufficient reason · **6.** No — O.XXXV r.5

UNIT V

The Limitation Act, 1963 — the law of time

Every right has a clock. Learn how long the clock runs, when it starts, what pauses it, what restarts it — and when running out of time ends the right itself.

The story of this unit. Every complete past paper had at least one Limitation question — so treat this unit as guaranteed marks. Ask the questions in this order: **Is it late — and what if nobody objects?** (Topic 46, S.3) → **How long, and from when?** (47, the Schedule and S.4, S.12) → **Can I get extra time?** — condonation for appeals (48), legal disability (49), excluded periods (50) → **Can the clock restart?** — acknowledgment and part payment (51) → **What if the owner sleeps for 12 years?** — the title itself is lost; easements by prescription (52). *Golden numbers: 3 years for money and contracts, 12 years for possession and execution, 1 year for defamation, 30 days / 90 days for appeals.*

46 Law of limitation — concept, object and the bar under S.3 ★★★ p. 91

47 The Schedule and computing the period of limitation ★★★ p. 93

48 Extension of the prescribed period — condonation of delay (S.5) ★★★ p. 95

49 Legal disability — minors, insanity and idiocy ★★★ p. 97

50 Exclusion of time — indigent applications, wrong court, stays, notice, death and fraud ★☆☆ p. 98

51 Acknowledgment, part payment, new parties and continuing wrongs ★★☆ p. 100

52 Easements by prescription, extinguishment of title and adverse possession ★★☆ p. 102

UNIT V · TOPIC 46

46 Law of limitation — concept, object and the bar under S.3

★★★ asked in 10 of 23 papers · 6-mark note ×3 · 15-mark essay ×7 · 10-mark problem ×2

S.1 S.2 S.3 S.29 S.10

? **Think first:** *Swapna sues in 2025 for a 2021 loan. The defendant doesn't even mention limitation. Can the judge still throw the suit out?*

1 IN ONE LINE

The law of limitation **bars the remedy, not the right** (except S.27). A suit, appeal or application filed after the prescribed period **shall be dismissed** — even if no one raises limitation as a defence (S.3).

The heart of the subject

	Remedy barred (most suits)	Right extinguished (S.27)
What is lost	Only the right to sue	Title to the property itself
Debt / property	Debt survives — can be paid, adjusted, revived by written promise (S.25(3) Contract Act)	Possessor's title becomes complete (Art. 65)
Example	Time-barred loan	12 years' adverse possession

Limitation kills the remedy — S.27 kills the right

GET IT — SIMPLY

- Limitation = the time within which you must go to court. After it, the **remedy is barred, the right survives** — the debt can still be paid or adjusted.
- Exception: **S.27** — for **possession of property**, the **right itself** is extinguished.
- Why: litigation must end (*interest reipublicae ut sit finis litium*); the law helps the vigilant, not sleepers (*vigilantibus non dormientibus jura subveniunt*); evidence fades; long enjoyment deserves peace (Rajender Singh).
- The Act: **1963**, in force **1-1-1964**; **32 sections**, **137 Articles** in 3 Divisions.
- **S.2(h):** **nothing is in good faith without due care and attention**. **S.2(l):** 'suit' excludes appeals and applications.
- **S.3:** a late suit, appeal or application **shall be dismissed even if limitation is not pleaded** — the court checks it itself (Noharlal Verma). A suit is instituted when the plaint is **presented**; indigent — when the application is made; set-off/counter-claim — when pleaded.
- **S.29(2):** a special/local law's period applies, and **Ss.4–24 apply unless expressly excluded**. S.29(3): not for marriage and divorce laws.
- **S.10:** no limitation against a **trustee** holding property for a specific purpose.

BARE ACT — READ IT LIKE THIS · S.3(1)

> *'Subject to the provisions contained in sections 4 to 24 (inclusive), every suit instituted, appeal preferred, and application made after the prescribed period shall be dismissed, although limitation has not been set up as a defence.'*

Subject to sections 4 to 24	The escape routes — holidays, condonation, disability, exclusions, acknowledgment.
every suit … appeal … application	All three kinds of proceedings.
after the prescribed period	The Schedule's period as computed under the Act.
shall be dismissed	Mandatory — no discretion.
although … not set up as a defence	The court must raise it on its own.

SECTIONS TO QUOTE

S.2(h) Good faith — nothing is in good faith which is not done with due care and attention.

S.2(l) Suit does not include an appeal or an application.

S.10 No limitation for suits against trustees for specific purposes to follow trust property.

S.29 Special/local law period prevails; Ss.4–24 apply unless expressly excluded; not to marriage and divorce suits.

REAL-LIFE STORY

Swapna lent ₹2 lakh to her friend in March 2021 and never asked for it back. She files a suit in June 2025. The defendant does not even plead limitation. The judge must still **dismiss the suit under S.3** — the 3-year period (Art. 19) expired in March 2024. Swapna's **right** to the money survives (her friend can still pay voluntarily), but her **remedy** in court is gone.

GOLDEN RULES — REMEMBER THESE

- ★ Limitation bars the **remedy, not the right** — except **S.27** (possession).
- ★ Maxims: **interest reipublicae...** and **vigilantibus non dormientibus...**
- ★ S.3: dismiss **even if not pleaded**; the court checks limitation itself.
- ★ Act of **1963**, in force **1-1-1964**; **32 sections, 137 Articles**.
- ★ S.29: special law period prevails; **Ss.4–24 apply unless expressly excluded**.

⚖ Rajender Singh v Santa Singh
AIR 1973 SC 2537

STORY A dispute over agricultural land where one side had been in possession for decades and the other sought recovery.

HELD The Supreme Court said the object of limitation is to **prevent the disturbance or deprivation of what may have been acquired in equity and justice by long enjoyment**, or what may have been lost by a party's own inaction, negligence or laches.

WHY IT MATTERS The best one-line statement of the object of the law of limitation.

⚖ Noharlal Verma v District Co-operative Central Bank Ltd
(2008) 14 SCC 445

STORY An appeal was filed beyond time and the appellate court decided it on merits without considering limitation, as no one raised it.

HELD Held: under S.3 it is the **duty of the court to examine limitation on its own**; a suit, appeal or application filed beyond time must be dismissed even if limitation is not set up as a defence — the provision is mandatory.

WHY IT MATTERS Shows the mandatory nature of S.3.

IN THE EXAM

- C · 10-mark Undated (Code 1025, Part C only) — Limitation bars remedy not right; when to file if limitation expires during court vacation
- C · 10-mark 2020 — 'X' discharged a time barred debt and later after realization now he wants to file a suit for recovery of the same from 'Y'. Is it maintainable?...

Write it like this: Essay 'Object of the law of limitation' — meaning + maxims + remedy v right + S.3 + Rajender Singh. Add the 'remedy barred / right extinguished' table.

UNIT V · TOPIC 47

47 The Schedule and computing the period of limitation

★★★ asked in 8 of 23 papers · 6-mark note ×2 · 15-mark essay ×3 · 10-mark problem ×4

Schedule (Arts. 1–137) · S.4 · S.12 · S.24

Think first: *Kalyan's decree is dated 3 January; he gets the certified copy on 25 January. When is the last day for his appeal?*

1 IN ONE LINE

The Schedule says **how long you have and from when time starts**. S.4 helps when the court is closed on the last day; S.12 tells you **which days are not counted**.

Computing limitation — four steps

Find the Article → Starting point (column 3) → Add the period → Exclusions & extensions (S.4, 12–15, 6) → Fresh start? (S.18, 19)

GET IT — SIMPLY

- **Schedule: Suits — Arts. 1–113 · Appeals — 114–117 · Applications — 118–137**. Each Article: **description · period · when time starts**.
- **Residuary:** Art. **113** (suits) and Art. **137** (applications) — **3 years**. Government suits — **30 years** (Art. 112).
- **S.4:** last day falls when the **court is closed** (vacation, holiday) → file on the **reopening day**. Applies only to the Schedule's period.
- **S.12:** exclude the **first day**; for appeals/revision/review exclude the **day of judgment** and the **time to get the certified copy** (of decree and judgment); time taken before applying for the copy is not excluded.
- **S.24:** Gregorian calendar.
- Four steps for any 'last date' problem: **Article → starting point → add period → apply exclusions/extensions/fresh starts**.

The Articles you must know

Art.	Suit / appeal / application	Period	Starts from
19	Money lent	3 years	Loan made
22	Deposit payable on demand	3 years	Demand made
35	Pro-note on demand	3 years	Date of note
54	Specific performance	3 years	Date fixed / refusal
59	Cancel an instrument	3 years	Facts known
64 / 65	Possession — previous possession / title	12 years	Dispossession / adverse possession
74–76	Malicious prosecution, libel, slander	1 year	Acquittal / publication / words
113	Any other suit	3 years	Right accrues
116	Appeal under CPC	90 days HC / 30 days others	Decree date
122 / 123	Restore suit / set aside ex parte	30 days	Dismissal / decree
124 / 131	Review / revision	30 / 90 days	Decree date
136	Execution	12 years (mandatory injunction — none)	Decree enforceable
137	Any other application	3 years	Right accrues

3 years for money · 12 for land and execution · 1 for defamation

§ SECTIONS TO QUOTE

Schedule First Division: Suits Arts. 1–113 · Second: Appeals Arts. 114–117 · Third: Applications Arts. 118–137.

S.4 Period expiring when the court is closed — file on the reopening day.

S.12 Exclusion of the first day and of time for obtaining copies of decree/judgment/award.

S.24 Gregorian calendar for computing time in instruments.

REAL-LIFE STORY

A decree is passed against Kalyan on **3 January 2026**. He applies for a certified copy on 5 January and receives it on 25 January. His first appeal to the District Court must be filed within **30 days** (Art. 116(b)). Count: exclude the day of the decree (S.12(2)) and the **20 days** spent getting the copy (5–25 Jan). Last date ≈ **23 February 2026**. If 23 February is a court holiday, he may file on the **reopening day** (S.4).

GOLDEN RULES — REMEMBER THESE

- ★ Divisions: **Suits 1–113 · Appeals 114–117 · Applications 118–137**.
- ★ Residuary: **Art. 113 (suits) and Art. 137 (applications) — 3 years**; Government suits **30 years** (Art. 112).
- ★ S.4: **court closed on the last day → file on reopening**.
- ★ S.12: exclude the **first day** + **time for copies**.
- ★ Numbers to remember: **3 years** (most money/contract suits), **12 years** (possession, execution), **1 year** (defamation, malicious prosecution), **90/30 days** (appeals).

IN THE EXAM

- C · 10-mark Undated (Code 1025, Part C only) — Limitation bars remedy not right; when to file if limitation expires during court vacation
- C · 10-mark January 2019 — When limitation expires during summer holidays, when the court is closed then when can the suit can be filed? Give reasons.

Write it like this: Part C questions on 'last date to file' and 'limitation during court vacation' (S.4) come often. Show the four computation steps.

UNIT V · TOPIC 48

48 Extension of the prescribed period — condonation of delay (S.5)

★★★ asked in 13 of 23 papers | 6-mark note ×5 | 15-mark essay ×5 | 10-mark problem ×4

S.5 | Collector, LA v Mst. Katiji | N. Balakrishnan

Think first: *Fatima was in the ICU when her appeal period ran out. Can the court forgive the delay? Would it, if she had filed a suit late?*

1 IN ONE LINE

An **appeal or application** (but **not a suit**) may be admitted after the period if the applicant shows **sufficient cause** for the delay.

Can the delay be condoned?

Filed late — is it a suit, or an appeal/application?

Suit	Appeal / application	O.XXI execution application
No S.5. Look only at S.4, S.6–24 (disability, exclusions, acknowledgment). Otherwise dismissed (S.3).	**S.5** — show **sufficient cause** for the whole delay; court may condone.	**No S.5.**

S.5 forgives appeals — never suits

GET IT — SIMPLY

- **S.5:** an **appeal or application** (not an O.XXI execution application) may be admitted late if the party shows **sufficient cause**. Being misled by an HC order/practice can be sufficient cause (Expl.).
- **S.5 never applies to suits**. A late suit can be saved only by Ss.4, 6–24.
- Sufficient cause = a reason beyond control despite **due diligence** — illness, bona fide wrong advice, delay in copies, death in family, Government file movement (some latitude), poverty/illiteracy. Explain the **whole** delay.
- Approach: **liberal** — substantial justice beats technicalities; no presumption that delay is deliberate; no pedantic 'every day' rule (Collector v Katiji).
- The **explanation matters more than the length** of delay; limitation rules aren't meant to destroy rights (N. Balakrishnan). But negligence or mala fides is no cause.
- Procedure: a separate application with affidavit along with the appeal (O.XLI r.3A); notice to the other side; decided first.

BARE ACT — READ IT LIKE THIS · S.5

> *'Any appeal or any application, other than an application under any of the provisions of Order XXI of the Code of Civil Procedure, 1908, may be admitted after the prescribed period, if the appellant or the applicant satisfies the court that he had sufficient cause for not preferring the appeal or making the application within such period.'*

Any appeal or any application	Not suits — the most-tested point.
other than … Order XXI	Execution applications excluded.
may be admitted	Discretion — not a right.
satisfies the court	Burden on the applicant, usually by affidavit and documents.
sufficient cause	Read liberally — Katiji, N. Balakrishnan.

SECTIONS TO QUOTE

S.5 Expl. Being misled by an order, practice or judgment of the High Court may be sufficient cause.

O.XLI r.3A Appeal filed late must be accompanied by an application for condonation of delay.

REAL-LIFE STORY

Fatima's appeal period ended on 10 March, but she was in the ICU after a road accident from 1 March to 15 April. She files her appeal on 25 April with a **S.5 application** and hospital records explaining the delay. The court **condones** it — sufficient cause shown.

GOLDEN RULES — REMEMBER THESE

- S.5 → **appeals and applications only**; **not suits**, not O.XXI execution applications.
- Ground: **sufficient cause** + **due diligence**; misled by HC practice counts (Expl.).
- Liberal approach — **substantial justice over technicalities** (Katiji).
- **Explanation matters more than length** (N. Balakrishnan).

⚖ Collector, Land Acquisition, Anantnag v Mst. Katiji
(1987) 2 SCC 107

STORY The State filed an appeal four days late in a land compensation matter; the High Court refused to condone the delay.

HELD The Supreme Court (Thakkar J.) condoned the delay and laid down **six principles** for a liberal approach: (1) ordinarily a litigant does not benefit by filing late; (2) refusing condonation can throw out a meritorious matter at the threshold; (3) 'every day's delay must be explained' does not mean a pedantic approach — a rational, common-sense, pragmatic approach is needed; (4) when substantial justice and technical considerations are pitted against each other, substantial justice deserves preference; (5) there is no presumption that delay is deliberate; (6) the judiciary is respected for its capability to remove injustice. The State, too, deserves the same approach as private litigants.

WHY IT MATTERS The most important case on S.5 — write its principles in every answer.

⚖ N. Balakrishnan v M. Krishnamurthy
(1998) 7 SCC 123

STORY An application to set aside an ex parte decree was delayed by 883 days because of the conduct of the applicant's advocate.

HELD The Court condoned the delay, holding that **rules of limitation are not meant to destroy the rights of parties** but to see that they do not resort to dilatory tactics; the length of delay is not material — the acceptability of the explanation is. Condonation is discretionary, and an appellate court should not interfere unless the discretion was exercised wrongly.

WHY IT MATTERS Adds two key ideas: purpose of limitation rules, and 'explanation matters more than length'.

IN THE EXAM

- C · 10-mark May/June 2016 — A plaintiff, who wants to file a suit in the lower court and whose cause of action is time barred, files a condone relay petition in the same...
- C · 10-mark 2015 — The limitation period for filing a suit is three years. However, the plaintiff has imprisoned during the period of such three years. Can he seek...

Write it like this: Problems where a plaintiff in prison or ill files a **suit** late (2015, 2019): answer — S.5 does not apply to suits; check S.6 (imprisonment is not a disability under the 1963 Act) → suit barred.

UNIT V · TOPIC 49

49 Legal disability — minors, insanity and idiocy

★★★ asked in 10 of 23 papers | 6-mark note ×6 | 15-mark essay ×4 | 10-mark problem ×2

S.6 S.7 S.8 S.9

Think first: *Lakshman's 3-year period began in 2022. He went to prison in 2023 and fell mentally ill in 2024. Does either stop the clock?*

1 IN ONE LINE

If, when time should start, the person is a **minor, insane or an idiot**, he may sue **within the same period after the disability ends** — but never more than **3 years after it ends** (S.8). Once time starts running, **nothing stops it** (S.9).

The disability test

Was the person a minor, insane or an idiot at the moment the right arose?

Yes	No — disability came later	Imprisoned / ill / poor
Time starts when the disability ends (S.6) — but not beyond **3 years after it ends** (S.8).	**No effect** — once time runs it never stops (S.9).	**Not a disability** — normal period applies.

GET IT — SIMPLY

- **S.6:** if, **when time should start**, the person is a **minor**, **insane** or an **idiot**, he gets the **same period after the disability ends**. 'Minor' includes a **child in the womb**.
- Two disabilities together, or one following another **without a gap** → after **both** end. Disability till death → **legal representative** gets the period from death.
- **Only three disabilities** — **imprisonment is not one** (it was under the 1908 Act); nor are poverty, illiteracy, illness, absence abroad.
- **S.7:** one of several joint claimants under disability — if the others can give a **discharge** without him, time runs against **all**; if not, against none.
- **S.8:** never more than **3 years after the disability ends** (or death); and S.6/7 don't apply to **pre-emption**.
- **S.9:** **once time starts running, nothing stops it** — a later disability doesn't help. Proviso: suspended while a debtor administers the creditor's estate.

S.6 + S.8 worked example

2010
Ravi (10) dispossessed — Art. 64: 12 yrs → 2022

2018
turns 18 — disability ends

2021
S.8 cap: 3 years after cessation

2022
ordinary 12-year period still runs → LAST DATE 2022

§ SECTIONS TO QUOTE

S.6 Legal disability — minority, insanity, idiocy existing when time begins; same period after it ceases.

S.7 Disability of one of several persons — depends on whether others can give a discharge.

S.8 No application to pre-emption suits; no extension beyond 3 years from cessation of disability or death.

S.9 Once time begins to run, no subsequent disability or inability stops it.

✎ REAL-LIFE STORY

S.6 alone: Rohan was **16** in 2020 when a neighbour's lorry smashed his new bicycle — a claim for compensation with a 3-year period. He turns 18 in 2022. Under **S.6** he may sue within **3 years after turning 18** — up to 2025 — instead of 2023.

★ GOLDEN RULES — REMEMBER THESE

- ★ Only **3 disabilities**: **minor (incl. child in womb) · insane · idiot**. Imprisonment ×.
- ★ Disability must exist **when time starts**.
- ★ Same period **after** disability ends — cap: **3 years after cessation** (S.8); not for pre-emption.
- ★ **S.9**: once time runs, **nothing stops it**.

IN THE EXAM

- C · 10-mark 2015 — The limitation period for filing a suit is three years. However, the plaintiff has imprisoned during the period of such three years. Can he seek...
- C · 10-mark May/June 2019 — Plaintiff imprisoned during the limitation period — can delay be condoned later?

Write it like this: Classic Part C: 'plaintiff was imprisoned / fell ill after the cause of action'. Answer with S.6 (only 3 disabilities), S.9 (subsequent disability no effect) and S.5 (no condonation for suits).

UNIT V · TOPIC 50

50 Exclusion of time — indigent applications, wrong court, stays, notice, death and fraud

★★★ asked in 1 of 23 papers · 15-mark essay ×1

S.13 S.14 S.15 S.16 S.17

Think first: *Gopi spent two years before the Consumer Commission, which finally said it had no jurisdiction. Are those two years lost?*

1 IN ONE LINE

Some periods are **simply not counted**: time spent prosecuting a case **in good faith in a court without jurisdiction** (S.14), time when the suit was **stayed by an injunction** or **while waiting for a statutory notice** (S.15). And where there is **fraud or mistake, time runs only from its discovery** (S.17).

Periods the law doesn't count

1 S.13 rejected indigent application	**2 S.14** wrong court in good faith — same matter, same parties	**3 S.15(1)** stay / injunction on filing	**4 S.15(2)** statutory notice period — e.g. S.80
5 S.15(5) defendant absent from India	**6 S.16** death before right accrues	**7 S.17** fraud or mistake — from discovery	

Exclusion pauses the clock — it doesn't restart it

GET IT — SIMPLY

- Exclusion = those days are **simply not counted** — the clock pauses, it doesn't restart.
- **S.13:** time spent on a rejected **indigent** application made in good faith.
- **S.14:** time spent prosecuting another **civil** proceeding with **due diligence and good faith** in a court that lacked **jurisdiction** (or a like defect) — **same matter**, **same parties**. Read liberally (Consolidated Engineering).
- **S.15:** period of a **stay/injunction** on filing; period of a **statutory notice** (two months of S.80 CPC); insolvency/winding-up periods; time the **defendant was absent from India**.
- **S.16:** person dies before the right accrues → time from when there is a **legal representative**.
- **S.17:** suit based on **fraud**, right **concealed by fraud**, **mistake**, or document fraudulently hidden → time from **discovery** (or when it could reasonably be discovered). Not against a **bona fide purchaser** for value.

§ SECTIONS TO QUOTE

S.13 Exclusion of time for a rejected indigent application.

S.14 Exclusion of time spent bona fide in a court without jurisdiction — same matter, due diligence, good faith.

S.15 Exclusion: stay by injunction; statutory notice period (S.80 CPC); insolvency; defendant's absence from India.

S.16 Death before the right to sue accrues — time from when there is a legal representative.

S.17 Fraud or mistake — time runs from discovery; bona fide purchaser protected.

REAL-LIFE STORY

Gopi sues his contractor in the **Consumer Commission** for defective construction, in good faith and with diligence. After two years the Commission holds that he is not a 'consumer' and it has no jurisdiction. When he files a civil suit, the **two years are excluded under S.14** — it was the same matter, against the same party, in a forum that lacked jurisdiction.

GOLDEN RULES — REMEMBER THESE

- ★ S.14: **civil · same matter · same parties · due diligence + good faith · defect of jurisdiction**.
- ★ S.15: **stay** period and **notice** period (S.80 CPC) excluded; defendant **abroad** excluded.
- ★ S.17: **fraud/mistake → from discovery**; not against a **bona fide purchaser**.
- ★ Remember: exclusion **stops the clock** for that period; it does not restart it.

⚖ **Consolidated Engineering Enterprises v Principal Secretary, Irrigation Department**
(2008) 7 SCC 169

STORY A contractor prosecuted an application in a court that lacked jurisdiction and then approached the correct court under the Arbitration Act.

HELD The Supreme Court held that S.14 must be **interpreted liberally to advance the cause of justice**, and set out its conditions: both proceedings are civil, prosecuted with due diligence and in good faith, the failure was due to defect of jurisdiction or a like cause, and the earlier proceeding related to the same matter in issue in a court. S.14 applied to arbitration proceedings too, as the Arbitration Act did not exclude it.

WHY IT MATTERS The leading case on the conditions of S.14.

IN THE EXAM

- **B · 15-mark** January 2019 — What are the various grounds, for extension of period of limitation? When does the condemnation comes to an end?

Write it like this: 'Section 14' is a frequent short note — list the five conditions and give the Consumer Commission example.

UNIT V · TOPIC 51

51 Acknowledgment, part payment, new parties and continuing wrongs

★★☆ asked in 8 of 23 papers · 6-mark note ×5 · 15-mark essay ×2 · 10-mark problem ×1

S.18 S.19 S.20 S.21 S.22 S.23

? **Think first:** *Kumar borrowed ₹1 lakh in June 2022. In March 2025 he messaged 'I know I owe you, give me time.' Has the creditor's clock restarted?*

1 IN ONE LINE

A **written, signed acknowledgment** of liability (S.18), or a **part payment** of the debt or interest (S.19), made **before the period expires**, starts a **fresh period** from that date.

Two ways to restart the clock

	S.18 — Acknowledgment	S.19 — Part payment
What	Written admission of liability	Payment towards debt/interest
Form	In writing + signed	Payment + written acknowledgment of it
Timing	**Before expiry**	**Before expiry**
Effect	Fresh period from signing	Fresh period from payment

Before expiry → fresh period · After expiry → only S.25(3) Contract Act

GET IT — SIMPLY

- **S.18:** a **written, signed acknowledgment** of a **subsisting liability**, made **before the period expires** → a **fresh period from the date of signing**.
- It can omit the exact amount, refuse payment, claim set-off, or be addressed to someone else — still valid (Expl.). Oral evidence of its **contents** is not allowed. Must show a **jural relationship** like debtor–creditor (Shapoor Freedom Mazda).
- **S.19: part payment** of the debt (or interest on a legacy) **before expiry** → fresh period from payment — but there must be a **written acknowledgment of the payment** in the payer's hand or signed by him.
- After expiry? S.18/19 can't revive it — only a **written promise to pay** (S.25(3) Contract Act).
- **S.20:** agents, guardians count; one **joint contractor/partner/executor** doesn't bind the others.
- **S.21:** a **new party** added later — suit against him starts **when added** (unless omitted by good-faith mistake).
- **S.22: continuing** breach or tort → fresh period **every moment** it continues — only if the **act itself** continues, not just its effects (Balakrishna Savalram).
- **S.23:** acts actionable only on special damage → time from when the **injury results**.

§ BARE ACT — READ IT LIKE THIS · S.18(1)

> *'Where, before the expiration of the prescribed period for a suit or application in respect of any property or right, an acknowledgment of liability in respect of such property or right has been made in writing signed by the party against whom such property or right is claimed … a fresh period of limitation shall be computed from the time when the acknowledgment was so signed.'*

before the expiration	Timing is everything — after expiry it does nothing under S.18.
acknowledgment of liability	Admits a present debt/right — need not promise to pay.
in writing signed	Oral admissions don't count; signature by self or authorised agent.
fresh period … from … signed	A new full period starts from that date.

§ SECTIONS TO QUOTE

S.19 Part payment of debt or interest before expiry — fresh period; written acknowledgment of payment needed.

S.20 Agents, guardians; joint contractors do not bind each other.

S.21 New party — suit instituted against him when added; good-faith mistake proviso.

S.22 Continuing breach or tort — fresh period every moment it continues.

S.23 Acts actionable only on special damage — time from when injury results.

REAL-LIFE STORY

Kumar borrowed ₹1 lakh from Salim on **1 June 2022** (3-year period ends 1 June 2025). On **1 March 2025** Kumar sends a WhatsApp message *signed with his name* saying 'I know I owe you ₹1 lakh, please give me more time.' That is a **written signed acknowledgment before expiry** → a fresh 3-year period runs from 1 March 2025 (S.18). If, instead, he paid ₹10,000 by a cheque on 1 March 2025, the **part payment** (with the cheque as written evidence in his hand) also gives a fresh period from that date (S.19).

GOLDEN RULES — REMEMBER THESE

- ★ Acknowledgment (S.18): **subsisting liability · writing · signed · before expiry** → fresh period from signing.
- ★ Part payment (S.19): **before expiry** + **written acknowledgment of payment** → fresh period from payment.
- ★ After expiry → only **S.25(3) Contract Act** (written promise).
- ★ New party (S.21) → suit against him starts **when he is added**.
- ★ Continuing wrong (S.22) → fresh period **every moment** — but only if the **act itself** continues.

⚖ Shapoor Freedom Mazda v Durga Prosad Chamaria
AIR 1961 SC 1236

STORY A mortgagor's letter referred to the mortgage and the mortgagee's rights; the question was whether it was an acknowledgment under S.19 of the 1908 Act (now S.18).

HELD The Supreme Court held that an acknowledgment must relate to a **present subsisting liability**, must indicate the existence of a **jural relationship** between the parties (like debtor and creditor), and must be made with the intention of admitting it; it need not contain a promise to pay. Statements are to be construed liberally, but the court cannot make a new statement for the party.

WHY IT MATTERS The leading case on what counts as an acknowledgment.

⚖ Balakrishna Savalram Pujari Waghmare v Shree Dhyaneshwar Maharaj Sansthan
AIR 1959 SC 798

STORY The trustees of a temple wrongfully excluded hereditary worshippers; the worshippers sued many years later, claiming a continuing wrong.

HELD Held: a continuing wrong is one where the **wrongful act itself continues and causes continuing injury**; where the wrongful act is complete (as an ouster), even though its effect continues, it is not a continuing wrong and S.23 of the 1908 Act (now S.22) does not apply.

WHY IT MATTERS The test for 'continuing wrong' under S.22.

IN THE EXAM

- C · 10-mark Nov/Dec 2009 — Promissory note executed, interest paid, promised repayment missed — can the creditor sue in 2009?
- B · 15-mark December 2010 — Acknowledgement — essentials and effect on limitation

Write it like this: 'Effect of acknowledgment' and 'part payment' are very frequent short notes and Part C problems — always check the date: before or after expiry?

UNIT V · TOPIC 52

52 Easements by prescription, extinguishment of title and adverse possession

★★☆ asked in 4 of 23 papers · 10-mark problem ×4

S.25 · S.26 · S.27 · Art. 64 · Art. 65 · S.29(4)

Think first: *Shabana's uncle fenced her plot in 2010 and openly treated it as his. She sues in 2025. Who owns the plot now?*

1 IN ONE LINE

Twenty years of **peaceful, open, uninterrupted use as of right** gives an easement (S.25). Twelve years of **adverse possession** ends the owner's right — **the title itself is extinguished** (S.27, Art. 65).

Adverse possession — the checklist

1. **Nec vi** — without force (peaceful)
2. **Nec clam** — not secret (open)
3. **Nec precario** — not by permission (hostile, as owner)
4. Actual, **continuous**, uninterrupted
5. For **12 years** (Government — 30)

All ✓ → owner's title extinguished (S.27, Art. 65); possessor becomes owner

No force · No secret · No permission

GET IT — SIMPLY

- **S.25 — easement by prescription:** light/air, way, watercourse — enjoyed **peaceably, openly, as of right, without interruption for 20 years** → right becomes absolute. **Government** property — **30 years**. The 20 years must end within **2 years before the suit**; 'interruption' = obstruction by another acquiesced in for **one year**.
- **S.26:** time of a life interest or lease over 3 years excluded if the reversioner resists within 3 years.
- **S.27:** when the period to sue for **possession** ends, the owner's **right itself is extinguished** — the only section that kills the right.
- **Adverse possession:** actual, **open** (*nec clam*), **peaceful** (*nec vi*), **hostile** without permission (*nec precario*), continuous — for **12 years** (30 against Government). Burden on the claimant; tenants/licensees/co-owners need a clear **ouster** (Karnataka Wakf Board).
- **Art. 64** — previous possession: 12 years from **dispossession**. **Art. 65** — title: 12 years from when the defendant's possession becomes **adverse**.
- **Sword and shield:** the adverse possessor can also **sue** to protect his title (Ravinder Kaur Grewal, 2019).
- **S.29(4):** where the Easements Act applies, its S.15 governs (same 20 years).

Don't confuse the two

	Easement by prescription — S.25	Adverse possession — S.27 + Art. 65
Claimant gets	A right **over** another's land (way, light)	**Ownership** of the land
Period	20 years (Govt 30)	12 years (Govt 30)
Claims as	Easement, as of right	Owner, hostile
Nature	Peaceable, open, uninterrupted	Nec vi, nec clam, nec precario

§ SECTIONS TO QUOTE

S.25 Easements by prescription — 20 years' peaceable, open, uninterrupted enjoyment as of right (30 years for Government property).

S.26 Exclusion in favour of the reversioner of the servient tenement.

S.27 Extinguishment of right to property on expiry of the period for a suit for possession.

Art. 64 Possession based on previous possession — 12 years from dispossession.

Art. 65 Possession based on title — 12 years from when defendant's possession becomes adverse.

Art. 112 Suits by the Government — 30 years.

REAL-LIFE STORY

For 22 years, Ramulu's family has walked openly through a neighbour's open land to reach the main road in their village, without asking permission and without anyone stopping them. They have acquired a **right of way by prescription** (S.25). If the neighbour now builds a wall, Ramulu can sue for an injunction.

GOLDEN RULES — REMEMBER THESE

- ★ Easement (S.25): **peaceable · open · as of right · uninterrupted · 20 years** (Government **30**).
- ★ S.27: on expiry of the possession period, **title is extinguished** — the only 'right barred' section.
- ★ Adverse possession: **nec vi · nec clam · nec precario** + hostile + continuous + **12 years** (Art. 65).
- ★ Art. 64 (previous possession, from dispossession) v Art. 65 (title, from adverse possession).
- ★ Sword **and** shield — **Ravinder Kaur Grewal (2019)**.

⚖ Ravinder Kaur Grewal v Manjit Kaur

(2019) 8 SCC 729

STORY A person in long adverse possession filed a suit for declaration of title and injunction; earlier decisions had said adverse possession could only be used as a defence.

HELD A three-judge bench held that once the period expires, the owner's title is **extinguished under S.27** and the possessor **acquires title**; such a person can use adverse possession as a **sword as well as a shield** — he can sue for declaration, injunction or possession if dispossessed. Art. 65 does not restrict the right to the defendant.

WHY IT MATTERS The most important modern case on S.27 and adverse possession.

⚖ Karnataka Board of Wakf v Government of India

(2004) 10 SCC 779

STORY The Wakf Board claimed property; the Government claimed title by adverse possession.

HELD The Court explained that adverse possession must be **'nec vi, nec clam, nec precario'** — without force, without secrecy, without permission — and the claimant must show: on what date he came into possession, the nature of his possession, whether the factum of possession was known to the other party, how long it continued, and that it was open and undisturbed. A person pleading adverse possession has no equities in his favour, since he is trying to defeat the rights of the true owner.

WHY IT MATTERS The checklist case for proving adverse possession.

IN THE EXAM

- C · 10-mark December 2015 (Code 3105) — Suit filed in 2012 for recovery of property possessed by the defendant since 1998 — maintainable?
- C · 10-mark 2017 — How and when a person's rights to property extinguishes under the Indian Limitation Act 1963?

Write it like this: 'Right to property extinguished / suit after 12 years' possession' has come in 2015, 2017, 2018 and 2025 — answer with S.27 + Art. 65 + essentials of adverse possession + Ravinder Kaur Grewal.

✓ Check yourself — Unit V

1. Does S.5 (condonation) help a plaintiff who files a suit late?
2. Is imprisonment a legal disability under the 1963 Act?
3. Last day falls in the court's summer vacation. When to file?
4. An acknowledgment signed after the period expired — fresh period under S.18?
5. Which section ends the right itself, not just the remedy?
6. Period for a prescriptive easement over Government land?

Answers: 1. No — S.5 covers appeals and applications only · **2.** No — only minority, insanity, idiocy (S.6) · **3.** On the reopening day (S.4) · **4.** No — only a written promise under S.25(3) Contract Act · **5.** S.27 (with Art. 65 — 12 years) · **6.** 30 years (S.25(3))

Previous-year paper analysis

325 questions · 23 Osmania papers · 2009–2025 — as per previous year question paper analysis, not a prediction

Unit I
99 questions
The Code, the courts and the start of a suit

Unit II
53 questions
Pleadings — what each side must say, and how

Unit III
69 questions
The trial, interim protection and execution

Unit IV
68 questions
Special suits, supplemental proceedings and the road upward

Unit V
60 questions
The Limitation Act, 1963 — the law of time

Two patterns stand out: **every complete paper had at least one Limitation Act question**, and Part C problems keep returning to the same few situations — they are answered on the next pages.

Stars	Topic	Papers	A	B	C	Page
★★★	4. Place of suing — where to file the suit	14/23	11	0	9	14
★★★	12. Res judicata (S.11)	13/23	1	8	4	28
★★★	48. Extension of the prescribed period — condonation of delay (S.5)	13/23	5	5	4	95
★★★	16. The plaint — its essential particulars	13/23	6	6	1	36
★★★	41. Suits by indigent persons and interpleader suits	13/23	8	4	1	80
★★★	20. Set-off and counter-claim	12/23	10	4	3	42
★★★	38. Suits by or against the Government and public officers	12/23	3	3	7	75
★★★	45. Reference, review and revision	11/23	9	1	1	88
★★★	6. Parties to a suit — joinder, misjoinder and non-joinder	10/23	6	2	6	18
★★★	3. Suits of a civil nature — jurisdiction of civil courts (S.9)	10/23	5	5	3	12
★★★	46. Law of limitation — concept, object and the bar under S.3	10/23	3	7	2	91
★★★	35. Modes of execution — including arrest and detention	10/23	4	5	3	68
★★★	49. Legal disability — minors, insanity and idiocy	10/23	6	4	2	97
★★★	42. Incidental and supplementary proceedings — arrest and attachment before judgment	10/23	5	3	3	82
★★★	43. Appeals from original decrees and second appeals	10/23	5	6	0	84
★★★	2. Important definitions — decree, judgment, order and others	10/23	10	1	1	10
★★★	11. Res sub judice — stay of suit (S.10)	10/23	7	1	2	26
★★★	25. Non-appearance of parties and ex parte proceedings	9/23	3	2	6	52
★★★	31. Stay, temporary injunctions and receivers	9/23	9	1	3	61
★★★	47. The Schedule and computing the period of limitation	8/23	2	3	4	93
★★☆	51. Acknowledgment, part payment, new parties and continuing wrongs	8/23	5	2	1	100
★★☆	9. Summons and service of summons (including foreign summons)	7/23	3	3	1	23
★★☆	30. Commissions and costs	6/23	2	3	2	59
★★☆	21. Striking out and amendment of pleadings	6/23	4	0	2	43
★★☆	7. Frame of suit and cause of action	6/23	6	0	0	20
★★☆	36. Attachment and sale in execution	5/23	2	1	3	70
★★☆	32. Judgment, decree, interest and interim orders	5/23	4	1	0	64
★★☆	52. Easements by prescription, extinguishment of title and adverse possession	4/23	0	0	4	102

★★☆	14. Pleadings — meaning and the basic rules	4/23	1	3	0	33
★★☆	18. Return of plaint and rejection of plaint	4/23	1	3	0	39
★★☆	23. Framing of issues	4/23	1	2	1	47
★★☆	19. Written statement — the defendant's answer	4/23	3	0	1	40
★★☆	37. Restitution, inherent powers and other general provisions	4/23	5	0	0	72
★★☆	29. Hearing of the suit and affidavits	4/23	4	0	0	58
★★☆	39. Suits relating to public matters — public nuisance and public charities	4/23	4	0	0	77
★☆☆	40. Suits by or against minors and persons of unsound mind	3/23	0	2	1	79
★☆☆	44. Appeals from orders and general provisions on appeals	2/23	0	2	0	86
★☆☆	13. Foreign courts and foreign judgments	2/23	2	0	0	30
★☆☆	28. Examination of witnesses and admissions	2/23	2	0	0	56
★☆☆	1. Codification of civil procedure — the CPC at a glance	1/23	0	1	0	8
★☆☆	8. Institution of suits	1/23	0	1	0	22
★☆☆	15. Forms of pleading	1/23	0	0	1	35
★☆☆	26. Summoning and attendance of witnesses	1/23	0	0	1	54
★☆☆	50. Exclusion of time — indigent applications, wrong court, stays, notice, death and fraud	1/23	0	1	0	98
★☆☆	24. Appearance of parties, examination of parties and adjournments	1/23	1	0	0	50
★☆☆	33. Execution — concept, courts and general principles	1/23	1	0	0	65
★☆☆	34. Powers of the executing court, S.47 and the execution procedure	1/23	1	0	0	67
☆☆☆	5. Transfer of suits	0/23	0	0	0	16
☆☆☆	10. Bars to a suit — when the court must not try it	0/23	0	0	0	25
☆☆☆	17. Production and marking of documents with the plaint	0/23	0	0	0	37
☆☆☆	22. Section 89 — settlement of disputes outside the court (ADR)	0/23	0	0	0	45
☆☆☆	27. Discovery, production, impounding and return of documents	0/23	0	0	0	55

Part C problem solver

The problems that came back again and again — with the answer in a few lines

Every Part C answer (10 marks) uses the same four boxes. Write the answer in this shape and the examiner can see each mark:

I Issue	L Law	A Application	C Conclusion
One line — what is to be decided?	Section/Order + its conditions (+ proviso).	Match each condition to the facts — one by one.	Clear answer + one case name.

Arrest of the defendant in a suit for immovable property Asked: Jan 2018 · May/June 2019 · Feb 2025	**Not allowed.** O.XXXVIII r.1 excludes suits for immovable property (S.16(a)–(d) kinds) — land cannot abscond. Protect the land by a temporary injunction (O.XXXIX).	Topic 42 p. 82
Effect of non-joinder of a necessary party Asked: May/June 2016 · Jan 2019 · Feb 2025	**Fatal** — O.I r.9 proviso. But the court may add him at any stage (O.I r.10). Apply the two Kasturi tests: relief against him + no effective decree without him.	Topic 6 p. 18
Remedies against an ex parte decree Asked: 2009 · Dec 2010 · undated · Jan/Feb 2015 · Dec 2015	**Four remedies:** O.IX r.13 (30 days — not served / sufficient cause) · appeal S.96(2) · review · suit if the decree was got by fraud (Bhanu Kumar Jain).	Topic 25 p. 52
Right to property extinguished / suit after 12+ years' possession Asked: Dec 2015 · 2017 · Jan 2018 · Feb 2025	**Barred** — 12 years (Art. 65) from when possession became adverse; owner's **title extinguished** (S.27) if possession was nec vi, nec clam, nec precario (Ravinder Kaur Grewal).	Topic 52 p. 102
Suit against GHMC / municipality (notice, demolition) Asked: undated · 2015 · 2017 · Jan 2019	**S.80 notice** (and municipal-law notice) — wait two months. Urgent demolition → sue at once **with leave** (S.80(2)); court hears the body first. Name the party correctly.	Topic 38 p. 75
Limitation ends during court vacation Asked: undated · Jan 2019	File on the day the **court reopens** — S.4 (only for the Schedule period).	Topic 47 p. 93
Plaintiff imprisoned — can delay be condoned? Asked: 2015 · May/June 2019	**No.** Imprisonment is not a legal disability (S.6 lists only minority, insanity, idiocy); S.5 doesn't apply to suits; once time runs it doesn't stop (S.9). Suit barred.	Topic 49 p. 97
Negotiable-instrument suit in a Junior Civil Judge's court Asked: May/June 2016 · May/June 2019	Check the court's **pecuniary limit** (S.6, S.15) and **place** (S.20). If within limits — maintainable; if not — plaint **returned** under O.VII r.10.	Topic 4 p. 14
Amendment to correct omissions in a declaration suit Asked: 2014 · May/June 2019	**Allowed liberally** before trial if needed for the real question (O.VI r.17); after trial begins only with **due diligence** (proviso; Vidyabai). Apply Revajeetu's factors.	Topic 21 p. 43
Death of plaintiff or defendant during the suit Asked: 2009 · Aug/Sept 2013	**No abatement if the right to sue survives** (O.XXII r.1) — bring LRs on record in 90 days (r.3/4); else abates; set aside abatement in 60 days (r.9). Personal actions die.	Topic 6 p. 18
Defamation — where to sue Asked: 2009 · Dec 2015	**S.19** — where the defamation was published (wrong done) **or** where the defendant resides — plaintiff's choice.	Topic 4 p. 14
Encroachment on a neighbour's plot — remedy Asked: 2011 · 2014	Suit for **possession / mandatory and permanent injunction** where the land is (S.16); **temporary injunction** (O.XXXIX); **Advocate-Commissioner** to measure (O.XXVI r.9).	Topic 31 p. 61

Set-off of one money claim against another Asked: Dec 2015 · Apr/May 2023	**Legal set-off** (O.VIII r.6) if an ascertained, legally recoverable sum in a money suit; else **equitable set-off** (same transaction) or a **counter-claim** (r.6A).	Topic 20 p. 42
Attachment of pension / agricultural implements Asked: 2011 · Jan 2018	**Exempt** — pensions (S.60(1)(g)); agriculturist's implements, cattle and seed-grain (S.60(1)(b)). Other property can be attached.	Topic 36 p. 70

Latin maxims card

One maxim in an answer shows the examiner you know the principle behind the section

Res judicata pro veritate accipitur
A judicial decision must be accepted as correct — S.11.

Nemo debet bis vexari pro una et eadem causa
No one should be troubled twice for the same cause — S.11, O.II r.2.

Interest reipublicae ut sit finis litium
It is in the public interest that litigation ends — S.11, Limitation.

Vigilantibus non dormientibus jura subveniunt
The law helps the vigilant, not those who sleep — Limitation.

Actio personalis moritur cum persona
A personal action dies with the person — O.XXII (defamation).

Actus curiae neminem gravabit
An act of the court shall harm no one — S.144 restitution.

Dominus litis
Master of the suit — the plaintiff chooses whom to sue (O.I r.10).

Audi alteram partem
Hear the other side — summons, notice, ex parte rules.

Ubi jus ibi remedium
Where there is a right, there is a remedy — S.9.

Sub judice
Under judicial consideration — S.10.

Ad litem
For the purposes of the suit — guardian ad litem (O.XXXII).

Ex parte
In the absence of one side — O.IX r.6, 13.

De novo
Afresh — suit after return of plaint starts de novo.

Cy-près
As near as possible — S.92(3) charitable trusts.

Nec vi, nec clam, nec precario
Without force, without secrecy, without permission — adverse possession, easements.

Animus possidendi
Intention to possess as owner — adverse possession.

Spes successionis
A mere chance of inheriting — not attachable (S.60).

In camera
In private — family suits (O.XXXII-A).

Numbers to remember

Summons to be served	within 30 days of institution (S.27)
Written statement	30 days → max 90 (commercial: 120, strict)
List of witnesses	within 15 days of issues (O.XVI r.1)
Adjournments	max 3 to a party (O.XVII r.1)
Judgment	within 30 days, max 60 (O.XX r.1); decree in 15 days
Post-decree interest	up to 6% (S.34)
Compensatory costs	up to ₹3,000 (S.35A)
Ex parte injunction	decide within 30 days (O.XXXIX r.3A); disobedience → 3 months' prison
Notice to Government	2 months (S.80); decree executable after 3 months (S.82)
Wrongful arrest/attachment/injunctio	compensation up to ₹50,000 (S.95)
First appeal bar	small cause ≤ ₹10,000 — law only (S.96(4))
Second appeal bar	money suit ≤ ₹25,000 (S.102)
Detention (S.58)	>₹5,000 → 3 months; ₹2,000–5,000 → 6 weeks; ≤₹2,000 → none
Salary exempt (S.60)	first ₹1,000 + ⅔ of the rest
Court auction	25% at once, balance in 15 days; set aside on deposit + 5% (O.XXI r.84, 85, 89)
Caveat	valid 90 days (S.148A)

Execution of decree	12 years (Art. 136); mandatory injunction — no limit
Easement by prescription	20 years; Government land 30 years (S.25)
Appeal under CPC	90 days to HC, 30 days to other courts (Art. 116)
LRs on record / set aside abatement	90 days / 60 days (Art. 120 / 121)
Residuary suit / application	3 years (Art. 113 / 137)

Possession on title / adverse possession	12 years (Art. 65); Government 30 years (Art. 112)
Legal disability cap	3 years after it ends (S.8)
Set aside ex parte decree / restore suit	30 days (Art. 123 / 122)
Review / revision	30 days / 90 days (Art. 124 / 131)

Last-minute revision — the ★★★ topics

If you have one evening left: read these lines, then the golden-rule box of each topic

2 **Important definitions — decree, judgment, order and others** — A **judgment** gives the reasons, a **decree** declares the rights, and an **order** is every other formal decision of a civil court. p. 10

3 **Suits of a civil nature — jurisdiction of civil courts (S.9)** — Every civil court can try **all suits of a civil nature** unless their cognizance is barred — expressly or by necessary implication. p. 12

4 **Place of suing — where to file the suit** — File in the **lowest court competent** to try it (S.15) — and in the right place: where the **land lies** (S.16), where the **wrong was done or the defendant lives** (S.19), or where the **defendant lives or the cause of action arose** (S.20). p. 14

6 **Parties to a suit — joinder, misjoinder and non-joinder** — Bring in everyone you need a relief against; leave out those you don't. A suit fails for **non-joinder of a necessary party** — not for other mistakes about parties. p. 18

11 **Res sub judice — stay of suit (S.10)** — When the **same matter is already pending** between the same parties in a competent court, the later suit is not dismissed — its **trial is stayed**. p. 26

12 **Res judicata (S.11)** — A matter **directly and substantially in issue**, heard and finally decided by a competent court, cannot be tried again between the same parties. p. 28

16 **The plaint — its essential particulars** — The plaint is the **plaintiff's written statement of claim**. O.VII r.1 lists what every plaint must contain. p. 36

20 **Set-off and counter-claim** — **Set-off** is a **shield** — it reduces or wipes out the plaintiff's money claim. A **counter-claim** is a **sword** — a cross-suit the defendant can win independently. p. 42

25 **Non-appearance of parties and ex parte proceedings** — Who turns up decides what happens: **neither party → dismissed; only defendant → dismissed; only plaintiff → ex parte**. And there are four ways to undo an ex parte decree. p. 52

31 **Stay, temporary injunctions and receivers** — A temporary injunction is granted only when **three locks open together**: a **prima facie case**, the **balance of convenience**, and **irreparable injury**. p. 61

35 **Modes of execution — including arrest and detention** — A decree may be executed by **delivery of property, attachment and sale, arrest and detention, appointment of a receiver, or any other mode** the case needs (S.51). Arrest for a money decree is allowed only if the judgment-debtor **can pay but will not**. p. 68

38 **Suits by or against the Government and public officers** — You can sue the Government — but name it correctly (S.79), give **two months' written notice first** (S.80), and remember a decree against it **cannot be executed for three months** (S.82). p. 75

41 **Suits by indigent persons and interpleader suits** — A person **too poor to pay the court fee** can sue as an indigent person (O.XXXIII). A **neutral holder of money or property** claimed by two rivals can make them fight it out between themselves (interpleader). p. 80

42 **Incidental and supplementary proceedings — arrest and attachment before judgment** — Before the suit is decided, the court may **arrest a defendant about to abscond**, or **attach property he is about to remove** — but whoever obtains such orders on insufficient grounds must **pay compensation up to ₹50,000** (S.95). p. 82

43 **Appeals from original decrees and second appeals** — A **first appeal** lies from every original decree and re-opens **facts and law**. A **second appeal** to the High Court lies only on a **substantial question of law** (S.100). p. 84

45 **Reference, review and revision** — **Reference** — a lower court **asks the High Court** a doubtful question of law. **Review** — the **same court looks again** at its own decision. **Revision** — the **High Court corrects jurisdictional errors** of subordinate courts where no appeal lies. p. 88

46 **Law of limitation — concept, object and the bar under S.3** — The law of limitation **bars the remedy, not the right** (except S.27). A suit, appeal or application filed after the prescribed period **shall be dismissed** — even if no one raises limitation as a defence (S.3). p. 91

47 **The Schedule and computing the period of limitation** — The Schedule says **how long you have and from when time starts**. S.4 helps when the court is closed on the last day; S.12 tells you **which days are not counted**. p. 93

48 **Extension of the prescribed period — condonation of delay (S.5)** — An **appeal or application** (but **not a suit**) may be admitted after the period if the applicant shows **sufficient cause** for the delay. p. 95

49 **Legal disability — minors, insanity and idiocy** — If, when time should start, the person is a **minor, insane or an idiot**, he may sue **within the same period after the disability ends** — but never more than **3 years after it ends** (S.8). Once time starts running, **nothing stops it** (S.9). p. 97

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You are ready.

Read the topics in order once, revise the golden rules twice, and walk into the hall with the pictures in your head. In the exam: define, quote the section, break it into conditions, add a case and a real-life example.



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